

MR. FELDMAN: THANK YOU, YOUR HONOR. CALL MARCUS LAWSON.

MARCUS LAWSON, CALLED AS A WITNESS BY THE DEFENDANT, HAVING BEEN DULY SWORN, TESTIFIED AS FOLLOWS:

THE CLERK: SIR, WOULD YOU PLEASE STATE YOUR NAME AND SPELL IT FOR THE RECORD.

THE WITNESS: MY NAME IS MARCUS LAWSON. M-A-R-C-U-S L-A-W-S-O-N.

MR. FELDMAN: PROCEED, YOUR HONOR?

THE COURT: YES, SIR.

DIRECT EXAMINATION BY MR. FELDMAN

Q SIR, WHAT'S YOUR PRESENT OCCUPATION?

A I'M THE PRESIDENT OF GLOBAL COMPUSEARCH. WE ARE A COMPUTER FORENSICS FIRM LOCATED IN SPOKANE, WASHINGTON.

Q CAN YOU TELL ME, SIR, A LITTLE BIT ABOUT YOUR ACADEMIC TRAINING, PLEASE.

A I HAVE A BACHELOR'S DEGREE IN THE ADMINISTRATION OF JUSTICE FROM PORTLAND STATE UNIVERSITY. AND I ALSO HAVE A J. D. DEGREE FROM PEPPERDINE UNIVERSITY SCHOOL OF LAW IN MALIBU.

Q HAVE YOU SERVED AS AN ADJUNCT PROFESSOR AT ANY INSTITUTIONS?

A AT PORTLAND STATE UNIVERSITY I HAVE.

Q WITH REGARD TO YOUR POST-EDUCATIONAL TRAINING, COULD YOU TELL THE JURY A LITTLE ABOUT THAT, PLEASE.

A POST EDUCATION IS I LEFT LAW SCHOOL IN 1983. WHEN I GRADUATED, I TOOK A JOB WITH U. S. SECRET SERVICE. THE FIRST LAW ENFORCEMENT ACADEMY I WENT TO WAS THE BASIC LAW ENFORCEMENT ACADEMY FOR TREASURY AGENTS IN 1983. THAT'S IN GLENCO, GEORGIA. SHORTLY AFTER GRADUATING FROM THAT, I WENT TO THE U. S. SECRET SERVICE TRAINING ACADEMY WHICH WAS AT THAT TIME IN WASHINGTON, D. C.

Q SUBSEQUENT TO YOUR TRAINING AT THE SECRET SERVICE, DID YOU MOVE TO ANY OTHER FEDERAL AGENCIES, SIR?

A YES. I WAS A SECRET SERVICE AGENT FOR APPROXIMATELY FOUR YEARS. AFTER THAT I WENT TO THE DRUG ENFORCEMENT ADMINISTRATION. I WENT TO THE DRUG ENFORCEMENT ADMINISTRATION ACADEMY IN

QUANTICO. I HAVE FORGOTTEN THE EXACT MONTHS. 1987 WAS A D. E. A. AGENT ASSIGNED TO THE LOS ANGELES FIELD OFFICE FOR APPROXIMATELY TWO YEARS.

Q SUBSEQUENT TO YOUR ASSIGNMENT WITH THE D. E. A., DID YOU -- WHAT WAS YOUR NEXT ASSIGNMENT?

A FROM D. E. A. I WENT TO THE UNITED STATES CUSTOMS SERVICE. I WAS A SPECIAL AGENT WITH U. S. CUSTOMS BEGINNING IN 1988 AND CONTINUING UNTIL AUGUST OF 2000.

Q DID YOU HAVE ANY AREAS OF SPECIALIZATION WITHIN THE UNITED STATES CUSTOMS SERVICE?

AYES, I DID.

Q CAN YOU TELL US WHAT THOSE AREAS OR AREA IS OR WERE?

A MY AREA OF SPECIALIZATION WITH U. S. CUSTOMS WAS THE INVESTIGATION OF CHILD PORNOGRAPHY CRIMES.

Q AND SO YOU HAVE BEEN INVESTIGATING CHILD PORN. CRIMES SINCE 1988, SIR?

A SINCE 1988, THAT'S CORRECT.

Q HOW DID THIS PROCESS BEGIN?

A INITIALLY IN 1988, WHEN I CAME TO CUSTOMS FROM D. E. A., I WAS INTERESTED IN INVESTIGATING SOME OTHER CRIMES OTHER THAN NARCOTICS. I LEARNED THAT IN THE ACADEMY THAT U. S. CUSTOMS INVESTIGATED THE IMPORTATION AND DISTRIBUTION OF CHILD PORNOGRAPHY AND BECAME INTERESTED IN INVESTIGATING THOSE TYPES OF CRIMES MYSELF. I DEVELOPED AN UNDERCOVER PROGRAM THAT BASICALLY USED A LOT OF THE SAME TECHNIQUES THAT WE HAD USED IN D. E. A. FOR DRUG UNDERCOVER OPERATIONS AND PUT TOGETHER AN UNDERCOVER OPERATION FOR CHILD PORNOGRAPHY IN THE NORTHWEST. IT WAS REASONABLY SUCCESSFUL. THERE WERE SEVERAL ARRESTS. AND, AS A RESULT, LIKE MANY THINGS IN THE GOVERNMENT, IT SORT OF BECAME MY SHTICK, MY AREA OF EXPERTISE.

Q HAVE YOU EVER TAUGHT LAW ENFORCEMENT IN THE AREA OF COMPUTER-RELATED CHILD PORNOGRAPHY?

A YES, I HAVE.

Q WHAT PARTICULAR LAW ENFORCEMENT AGENCIES HAVE YOU TAUGHT, SIR?

A I'M GOING TO HAVE TO REFER TO MY LIST IF THAT'S ALL RIGHT.

Q PLEASE.

A WHAT I'M REFERRING TO IS I HAVE MY C.V. ON THE STAND, A LIST OF SOME OF THE TRAINING THAT I'VE GIVEN AND RECEIVED AND THEN ALSO THE REPORT AND NOTEBOOK THAT I PREPARED FOR THIS CASE. THE LIST OF TRAINING THAT I'VE GIVEN TO OTHER LAW ENFORCEMENT PERSONNEL SINCE 1988, AND THIS IS SPECIFICALLY RELATED TO CHILD PORNOGRAPHY AND/OR COMPUTER EVIDENCE

IN CHILD PORNOGRAPHY CASES, THE CRIME VICTIMS ASSISTANCE NETWORK IN ASHLAND, OREGON; CUSTOMS CYBER SMUGGLING CENTER IN VIRGINIA; GREAT FALLS, MONTANA, CUSTOMS-SPONSORED SEMINAR FOR MONTANA LAW ENFORCEMENT; NORTHWEST CHILD EXPLOITATION SEMINAR; CRIME VICTIMS ASSISTANCE NETWORK IN EUGENE, OREGON; SPOKANE U. S. ATTORNEY'S OFFICE; SPOKANE/IDAHO PUBLIC DEFENDERS OFFICE; SPOKANE COUNTY PROSECUTOR'S OFFICE; SPOKANE POLICE DEPARTMENT; COWLITZ COUNTY SHERIFF'S OFFICE; LONGVIEW, WASHINGTON, POLICE DEPARTMENT; KELSO, WASHINGTON, POLICE DEPARTMENT; RICHLAND, WASHINGTON, POLICE DEPARTMENT; PASCO, WASHINGTON, POLICE DEPARTMENT; THREE FEDERAL GRAND JURIES IN THE EASTERN DISTRICT OF WASHINGTON; LONGVIEW POLICE DEPARTMENT; KELSO POLICE DEPARTMENT; CITIZENS POLICE ACADEMY; MIDWEST AMERICAN PROBATION/PAROLE OFFICERS ASSOCIATION IN CHICAGO; FEDERAL PUBLIC DEFENDERS INVESTIGATORS ASSOCIATION IN KANSAS CITY, MISSOURI; PIERCE COUNTY SHERIFF'S OFFICE; CLATSOP COUNTY DISTRICT ATTORNEY; PACIFIC COUNTY SHERIFF'S OFFICE; PACIFIC COUNTY DISTRICT ATTORNEY; EUGENE, OREGON, POLICE DEPARTMENT; AMERICAN PROBATION/PAROLE OFFICERS ASSOCIATION; ASTORIA POLICE DEPARTMENT; OREGON STATE POLICE; AND APPROXIMATELY TWENTY PUBLIC SERVICE GROUPS THROUGHOUT THE NORTHWEST.

Q HAVE YOU EVER HAD OCCASION TO TEACH, FOR INSTANCE, AT THE F. B. I. OR THE UNITED STATES POSTAL SERVICE?

A THE NORTHWEST CHILD EXPLOITATION SEMINAR WAS A SEMINAR THAT I COORDINATED. MY AGENCY SPONSORED IT. AND I COORDINATED AND TAUGHT AT THAT SEMINAR. AND WE TAUGHT A NUMBER OF FEDERAL AGENCIES THAT CAME TO THAT SEMINAR, INCLUDING THE F. B. I., POSTAL INSPECTORS. AND I BELIEVE THERE WERE EVEN TWO DEPUTIES FROM THE SAN DIEGO COUNTY SHERIFF'S OFFICE THAT ATTENDED THAT.

Q SIR, NOW, YOU TOLD US THAT YOUR PRESENT OCCUPATION WAS AS THE -- I'M SORRY. I THINK YOU SAID PRESIDENT OF GLOBAL COMPUSEARCH.

A YES.

Q WHAT SORT OF COMPANY -- WHAT'S THE PURPOSE OF YOUR COMPANY?

A WE ASSIST ATTORNEYS THAT ARE INVOLVED IN LITIGATION ISSUES REGARDING ANYTHING TO DO WITH COMPUTERS IN THE COURTROOM. IT CAN INCLUDE RECOVERING EVIDENCE FOR DISCOVERY. WE HAVE A NUMBER OF CRIMINAL CASES. WE ASSIST ATTORNEYS INVOLVED IN LITIGATION WITH COMPUTERS USE.

Q AND HAVE YOU

QUALIFIED AS AN EXPERT WITNESS IN THE COURTS IN THE UNITED STATES?

A YES, I HAVE.

Q SIR, DO YOU HAVE CERTAIN FORENSIC TOOLS THAT YOU UTILIZE TO ASSIST ATTORNEYS IN THE INVESTIGATION OF COMPUTER-RELATED ISSUES?

A YES, SIR.

Q WHAT KIND OF FORENSIC TOOLS?

A IN OUR LABORATORY ACTUALLY HAS A NUMBER OF FORENSICS TOOLS. THE PRIMARY TOOL THAT I USE AND WAS USED IN THIS CASE IS A FORENSIC SOFTWARE CALLED EN CASE.

Q I'M SORRY. E-N-D-C-A-S-E?

A CAPITAL E-N CAPITAL C-A-S-E.

Q AND WHAT'S END CASE?

A IT'S EN. EN CASE. IT'S A FORENSIC SOFTWARE THAT ALLOWS THE INVESTIGATION OF COMPUTER MEDIA WITHOUT ALTERING THE ORIGINAL MEDIA IN TERMS OF TIMES AND DATES AND THINGS LIKE THAT.

Q YOU'VE PREPARED A SERIES OF SCREEN PRINTS, HAVE YOU NOT? AT LEAST TWO -- LET ME JUST SHOW YOU A FEW DOCUMENTS, SLIGHTLY OUT OF SEQUENCE, BUT I'LL COME BACK TO THIS. MR. FELDMAN: COUNSEL. BY MR. FELDMAN:

Q IN CONNECTION WITH THIS CASE, SIR, WERE YOU RETAINED BY THE DEFENSE TO ASSIST US?

A YES, I WAS.

Q AND WHAT DID YOU UNDERSTAND YOUR ASSIGNMENT TO BE?

A I WAS CONTACTED BY YOUR OFFICE APPROXIMATELY A MONTH AGO, AND I WAS ASKED TO REVIEW COMPUTER DISCOVERY THAT YOU HAD OBTAINED OR WERE ABOUT TO OBTAIN. I DON'T RECALL THAT I RECEIVED ANY SPECIFIC DIRECTIONS FROM YOU OTHER THAN REQUESTING TO KNOW WHAT WAS ON THE COMPUTER MEDIA AND IF THERE WERE ANY ISSUES OF IMPORTANCE.

Q WERE YOU EVER ASKED OR DID ANY MEMBER OF THE DEFENSE TEAM ASK YOU TO DETERMINE WHO DOWNLOADED ANY IMAGES?

A NO. THAT WOULD -- THAT WOULD BE AN ISSUE THAT I WOULD ALWAYS LOOK AT. THERE WAS NO SPECIFIC REQUEST TO DO SO BY YOUR OFFICE.

Q AS A RESULT OF THE REQUEST THAT CAME FROM OUR OFFICE, WHAT, IF ANYTHING, DID YOU DO FOR THE PURPOSE OF OBTAINING THE COMPUTER MEDIA IN THIS CASE?

A ACTUALLY A MEMBER OF YOUR OFFICE, MISS REBECCA JONES, SUPPLIED HARD DRIVES THAT HAD BEEN COPIED BY THE SAN DIEGO REGIONAL FORENSICS LABORATORY WHICH REPRESENTED THE COMPUTERS THAT WERE SEIZED IN THIS CASE. THOSE COMPUTERS WERE ACQUIRED IN EN CASE AND EXAMINED INITIALLY HERE IN SAN DIEGO. AFTER DETERMINING THAT MOST OF THE MEDIA DIDN'T CONTAIN ANY KIND OF

QUESTIONABLE IMAGE, I REQUESTED THAT THOSE HARD DRIVES THEN BE SENT TO MY OFFICE IN SPOKANE, WASHINGTON, SO THAT I COULD ANALYZE THEM WITH MORE DETAIL.

Q AND ULTIMATELY DID YOU RECEIVE A CERTAIN NUMBER OF HARD DRIVES IN YOUR OFFICE?

A YES, I DID.

Q CAN YOU TELL US HOW MANY DIFFERENT COMPUTER HARD DRIVES DID YOU CHECK?

A I RECEIVED ACTUALLY FOUR COMPUTER HARD DRIVES, ONE REPRESENTING A LAPTOP COMPUTER, AND I'M NOT CERTAIN WHERE THAT WAS INITIALLY TAKEN FROM. I RECEIVED TWO HARD DRIVES THAT REPRESENTED TWO HEWLETT-PACKARD COMPUTERS THAT WERE SEIZED FROM MR. WESTERFIELD'S OFFICE, AND ONE HARD DRIVE REPRESENTING A GATEWAY COMPUTER THAT WAS SEIZED FROM MR. WESTERFIELD'S SON'S BEDROOM.

Q DID YOU RECEIVE ANY LOOSE MEDIA?

A I'M SORRY?

Q DID YOU RECEIVE ANY LOOSE MEDIA?

A (NO RESPONSE.)

Q DID YOU RECEIVE ANY LOOSE MEDIA?

A NOT IN SPOKANE. I INVESTIGATED THE LOOSE MEDIA HERE IN SAN DIEGO.

Q SO IN SAN DIEGO DID YOU GO TO -- YOU WERE ABLE TO AT LEAST EVALUATE SOME ZIP DISKS, IS THAT RIGHT?

A THE ZIP DISKS AND THE C.D.'S HAD BEEN COPIED BY THE SAN DIEGO REGIONAL FORENSICS LABORATORY HAD BEEN COPIED TO A HARD DRIVE. AND THAT WAS INVESTIGATED HERE IN SAN DIEGO.

Q AND IT WAS YOUR UNDERSTANDING THAT EVERYTHING THAT HAD BEEN INVOLVED IN THE CASE HAD BEEN PROVIDED TO YOU, IS THAT RIGHT?

A YES, SIR.

Q NOW, I'M USING THE TERM LOOSE MEDIA, AND YOU'RE USING THE TERM HARD DRIVE. IS THERE SOME MANNER IN WHICH THE LOOSE MEDIA WAS COPIED ONTO A HARD DRIVE? IS THAT YOUR UNDERSTANDING OF WHAT SAN DIEGO DID?

A YES, SIR.

Q SO ALTHOUGH THEY HAD I GUESS ZIP DISKS AND C.D.'S, YOU HAD ALL OF WHATEVER DATA WAS ON THOSE LOOSE MEDIA ON A HARD DRIVE, IS THAT RIGHT?

A THAT'S CORRECT.

Q WHAT DID YOU DO WITH THAT NOW?

A AS I HAD BEEN ASKED BY YOUR OFFICE, WE -- I BEGAN INVESTIGATING THE MEDIA TO DETERMINE WHAT, IF ANY, CONTRABAND EXISTED ON THE MEDIA, WHO WAS RESPONSIBLE FOR THE DOWNLOADING OF ANY PARTICULAR GIVEN IMAGE. BASICALLY WHAT WAS OF EVIDENTIARY VALUE ON THE HARD DRIVES.

Q SO BASICALLY YOUR TASK WAS TO LOOK THROUGH THE IMAGES THAT HAD BEEN PRESENTED TO YOU AND MAKE OBSERVATIONS AND COMMENTS TO US, IS THAT RIGHT?

A THAT'S RIGHT.

Q AND YOU IN FACT DID THAT, IS THAT RIGHT?

A YES, SIR.

Q HOW MUCH TIME WOULD YOU ESTIMATE YOU'VE SPENT IN THE AREA OF YOUR INVESTIGATION IN SORTING THROUGH OR GOING THROUGH THE HARD DRIVES?

A AT THIS POINT ROUGHLY BETWEEN 125 AND 150 HOURS.

Q AND DID YOU UTILIZE THE SOFTWARE EN CASE ON EACH OF THE COMPUTERS?

A YES, SIR.

Q AND WHAT IS IT THAT EN CASE ALLOWS YOU TO DO?

A IT'S A VERY USEFUL FORENSICS TOOL. IT ALLOWS FOR THE INVESTIGATION OF DATA THAT'S ON A GIVEN PIECE OF MEDIA OR A HARD DRIVE WITHOUT ALTERING THE DATES OF THE FILES WHICH CAN BE VERY IMPORTANT FOR EVIDENTIARY PURPOSES. IT ALSO ALLOWS FOR THE RECOVERY OF DELETED FILES FROM THE UNALLOCATED FILE SPACE OF THE COMPUTER AND ALLOWS THE EXAMINATION OF THOSE.

Q I'M SORRY. YOU JUST TOLD ME IT ALLOWS FOR RECOVERY OF THE DELETED FILES AND ALLOWS FOR?

A THE INVESTIGATION OF FILES THAT ARE IN WHAT'S CONSIDERED TO BE ACTIVE VOLUME OR WHAT YOU SEE WHEN YOU TURN ON THE COMPUTER AND ACCESS YOUR FILES. IT WILL ALLOW YOU TO INVESTIGATE THOSE WITHOUT CHANGING DATES AND TIMES.

Q OKAY. I THINK YOU USED THE TERM ACTIVE VOLUME. I THINK THAT'S A NEW TERM TO US. CAN YOU PLEASE TELL US WHAT YOU MEAN BY THAT.

A WHAT I MEAN IS THE FILES THAT ARE VISIBLE WHEN A PERSON SITS DOWN AND TURNS ON THE COMPUTER, THE FILES THAT COME UP AS AVAILABLE ON THE -- IN THE EXPLORER TREE WHEN YOU CLICK ON DIFFERENT FOLDERS AND OPEN THEM. THE FILES THAT ARE THERE VISIBLE FOR A PERSON TO USE, SEE.

Q CAN YOU TELL HOW AND WHEN DATA WAS ACQUIRED?

A YES. OFTEN.

Q CAN YOU FIND OUT WHAT ACTIVITY WAS PERFORMED ON A PARTICULAR DATE?

A QUITE OFTEN, YES.

Q ARE THERE OTHER THINGS THAT THE SOFTWARE OR YOUR TRAINING AND EXPERIENCE ALLOWS YOU TO DETERMINE?

A IT WILL ALLOW YOU TO DETERMINE IN SOME CASES WHO A PARTICULAR COMPUTER USER IS AND WHAT THEIR ACTIVITY WAS ON A SPECIFIC DATE.

Q HOW?

A THAT IS USUALLY DONE, AT LEAST IN MY OFFICE IT'S USUALLY DONE BY ATTEMPTING TO DETERMINE FROM THE COMPUTER DATA THAT'S AVAILABLE PERSONAL THINGS THAT RELATE TO A SPECIFIC INDIVIDUAL, THAT RELATE ONLY TO THAT PERSON, AND THEN DETERMINING THE DATE AND TIME THAT THOSE FILES WERE ACCESSED, AND THEN COMPARING THAT TO WHAT OTHER ACTIVITY OCCURRED ON THE COMPUTER IN AND AROUND THAT DATE AND TIME.

Q WHAT SORT OF PERSONAL THINGS CAN YOU IDENTIFY?

A FOR INSTANCE, ONE OF THE COMMON THINGS THAT I DO IN VIRTUALLY EVERY CASE THAT WE GET THAT INVOLVES THIS SORT OF INVESTIGATION IN TERMS OF DETERMINING WHO IS USING THE COMPUTER IS A WORD SEARCH FOR THE DIFFERENT E-MAIL ADDRESSES, THE DIFFERENT INTERNET -- EXCUSE ME -- DIFFERENT INTERNET-BASED E-MAIL SERVICES THAT ARE AVAILABLE, SUCH AS HOT MAIL AND YAHOO MAIL. AND I WILL RUN A WORD SEARCH FOR THE WORD HOT MAIL DOT COM. WHICH WILL SEARCH THROUGH THE COMPUTER'S BOTH ACTIVE VOLUME AND THE DELETED FILES AND BRING UP INSTANCES WHERE AT HOT MAIL DOT COM. WAS USED.

Q WITH REGARD TO THE PROGRESS OF YOUR INVESTIGATION, SIR, DID YOU FIRST -- DID YOU START WITH ANY PARTICULAR ONE OF THE HARD DRIVES?

A I STARTED WITH THE GATEWAY HARD DRIVE.

Q OKAY. THAT'S THE HARD DRIVE THAT CAME FROM WHICH ROOM OR YOU'VE IDENTIFIED AS HOW?

A THE SON'S BEDROOM.

Q ALL RIGHT. AND WHAT WERE YOU LOOKING AT THE GATEWAY FOR?

A AGAIN IT WAS ONE OF THE PIECES OF MEDIA THAT WAS SUPPLIED WAS A HARD DRIVE REPRESENTING THE GATEWAY COMPUTER. AND AS I INDICATED, WE BEGAN THAT REVIEW TO DETERMINE WHAT, IF ANY, EVIDENCE WAS THERE THAT WOULD BE OF INTEREST TO YOU OR THE PROSECUTOR OR OF INTEREST IN THIS CASE.

Q AND WHEN YOU INITIALLY REVIEWED THE HARD DRIVE, WHAT, IF ANYTHING, DID YOU NOTE?

A IF I MAY REFER TO MY REPORT, . . .

Q PLEASE.

A I HAVE A GREAT DEAL OF MEDIA, AND IT'S VERY DIFFICULT TO KEEP TRACK OF IT ALL IN MY HEAD. MR. CLARKE: I'M SORRY. MAY I APPROACH JUST TO SEE WHAT THE WITNESS IS LOOKING AT? THE COURT: SURE. MR. FELDMAN: HE'S GOT IT, YOUR HONOR. (PAUSE.) MR. FELDMAN: YOUR HONOR, FOR THE RECORD, WE HAVE PROVIDED COUNSEL WITH DISCOVERY. THE COURT: ALL RIGHT. THE WITNESS: OKAY. I'M READY. BY MR. FELDMAN:

Q CAN YOU TELL ME, PLEASE, AT LEAST WITH REGARD TO THE GATEWAY COMPUTER WHAT DID YOU OBSERVE?

A ONE OF THE ITEMS OF INTEREST THAT I NOTED WAS THAT THE COMPUTER INITIALLY -- I NEED TO BACK UP. INITIALLY I DID NOT KNOW THAT MR. WESTERFIELD EVEN HAD A SON. ALL I KNEW THE GATEWAY COMPUTER HAD BEEN SEIZED FROM A BEDROOM.

Q ALL RIGHT.

A I DIDN'T KNOW IF THAT WAS MR. WESTERFIELD'S BEDROOM OR WHOSE BEDROOM IT WAS.

Q OKAY.

A BUT IN ANALYZING THE DATA IN THE COMPUTER, IT APPEARED TO BE THE COMPUTER BELONGING TO A SON OF MR. WESTERFIELD. MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: YES. AS TO THE CONCLUSION. LAY THE FOUNDATION, PLEASE. SUSTAINED. THE WITNESS: I'M SORRY. BY MR. FELDMAN:

Q SIR, IT'S BEEN EXPLAINED TO YOU THAT THERE'S A DAVID A. WESTERFIELD, IS THAT RIGHT

A YES, SIR.

Q AND IT'S BEEN INDICATED THAT DAVID A. WESTERFIELD IS MY CLIENT, IS OUR CLIENT.

A THAT'S CORRECT.

Q IT'S ALSO BEEN EXPLAINED TO YOU THAT THERE'S A DAVID N. WESTERFIELD, IS THAT RIGHT?

A YES, SIR.

Q AND IT WAS REPRESENTED TO YOU THAT DAVID N. WESTERFIELD MIGHT HAVE BEEN THE SON, IS THAT RIGHT?

A YES, SIR.

Q WITH REGARD TO YOUR STATEMENTS ABOUT THE SON, ARE YOU REFERRING TO COMPUTER FILES THAT REFERENCE DAVID N. WESTERFIELD AS OPPOSED TO DAVID A. WESTERFIELD?

A YES, SIR. MR. CLARKE: OBJECTION. LACK OF FOUNDATION AGAIN. THE COURT: OVERRULED. YOU MAY PROCEED, MR. FELDMAN. BY MR. FELDMAN:

Q WHAT SORTS OF FILES DID YOU SEE THAT CAUSED YOU TO FORM THE OPINION THAT WHAT YOU WERE SEEING BELONGED TO DAVID N. WESTERFIELD AS OPPOSED TO DAVID A. WESTERFIELD?

A WELL, AND THIS IS REALLY WHAT BEGAN MY UNDERSTANDING THAT THERE WAS OBVIOUSLY A YOUNGER PERSON, ANOTHER DAVID WESTERFIELD, OTHER THAN THE DEFENDANT, BECAUSE THE FILES THAT I'M REFERRING TO ARE OR WERE SCHOOL-RELATED FILES. THEY WERE TEXT DOCUMENTS THAT HAD BEEN WRITTEN AS APPARENTLY PART OF A SCHOOL ASSIGNMENT IN THE NAME OF DAVID NEAL WESTERFIELD.

Q AND WHAT CAUSED YOU TO FORM THE OPINION THEY WERE TEXT DOCUMENTS THAT WERE WRITTEN FOR SCHOOL?

A IN THE REPORT THAT I PREPARED FOR YOUR OFFICE I MADE SCREEN PRINTS WHICH IS MY COMMON PRACTICE AS I DO THESE EXAMINATIONS.

Q SIR, LET ME JUST -- MR. FELDMAN: COUNSEL. BY MR. FELDMAN:

Q I WOULD LIKE TO SHOW YOU WHAT'S BEEN PREVIOUSLY MARKED 149. IS -- I'M A LITTLE BIT OFF YOUR SEQUENCE HERE, BUT IS 149 -- WELL, COULD YOU PLEASE TELL THE JURY WHAT'S 149.

A I'M SORRY. I NEED MY GLASSES. I'M NOT SURE EXACTLY WHAT YOU WOULD CALL IT, BUT IT REPRESENTS CLASSES TAKEN AT APPARENTLY SAN DIEGO STATE UNIVERSITY. IT REFERS TO CLASSES LIKE CALCULUS, PRINCIPLES OF PHYSICS, PHYSICS LAB.

Q AND WHAT'S THE NAME YOU SEE AT THE TOP?

A DAVID NEAL WESTERFIELD.

Q DID YOU PROVIDE THAT TO MY OFFICE?

A YES, I DID.

Q THANK YOU. SO WHEN YOU WERE REFERRING TO THE KINDS OF DOCUMENTS THAT MIGHT HAVE INDICATED OWNERSHIP OR THAT MAYBE A STUDENT OTHER THAN DAVID A. WESTERFIELD WAS INVOLVED, 149 WOULD BE SUCH A DOCUMENT, IS THAT RIGHT, SIR?

A THAT'S CORRECT.

Q SIR, WAS THAT DOCUMENT I JUST SHOWED YOU A SCREEN PRINT?

A YES, SIR.

Q WHAT'S A SCREEN PRINT?

A IN THE COURSE OF DOING THE INVESTIGATIONS THAT I DO USING THE EN CASE SOFTWARE, I OFTEN WANT TO DOCUMENT ITEMS THAT I FIND THAT I FEEL ARE GOING TO BE IMPORTANT SO THAT IT'S NOT -- SO IT DOESN'T RELY ON MY SOMETIMES FEEBLE MEMORY, AND PARTICULARLY SO THAT IF I GO -- IF I DO GO TO TESTIFY, THAT I HAVE A DOCUMENT THAT I CAN REFER TO AND SAY THIS IS WHAT I SAW ON THE SCREEN USING EN CASE. I USE A SCREEN CAPTURE PROGRAM THAT BASICALLY FREEZES WHAT I'M LOOKING AT ON THE SCREEN WITH EN CASE, PRINTS IT OUT. AND THEN I, AS I DID HERE, AS OFTEN THE CASE, AS I WRITE THE REPORT, I REFER TO THE SCREEN PRINTS BY NUMBER.

Q SO, IN OTHER WORDS, A SCREEN PRINT REALLY IS JUST -- A SCREEN CAPTURE IS JUST KIND OF LIKE A SNAPSHOT OF WHAT'S ON A PERSON'S COMPUTER SCREEN AT ANY GIVEN TIME.

A THAT'S CORRECT. I GOT IN THE HABIT WORKING UNDERCOVER PROGRAMS FOR U. S. CUSTOMS WHERE THINGS WOULD HAPPEN ON THE COMPUTER THAT YOU WOULD WANT TO DOCUMENT. FOR INSTANCE, THE TRANSFER OF A CHILD PORNOGRAPHY FILE TO ME FROM A SUSPECT. I WOULD CAPTURE WITH A SCREEN CAPTURE AND DOCUMENT THAT FOR COURT PURPOSES LATER.

Q ALL RIGHT. SO IT'S BASICALLY A SNAPSHOT OF WHAT'S ON ANYBODY'S COMPUTER SCREEN AT ANY GIVEN TIME.

A THAT'S CORRECT.

Q WITH REGARD TO THE COMPUTER THAT CONTAINED THE DOCUMENTS FOR DAVID N. WESTERFIELD, WERE YOU ABLE TO, FOR INSTANCE, DETERMINE THE LAST ACCESS DATE OF DOCUMENTS?

A THE EN CASE PROGRAM AS CAN BE SEEN IN A NUMBER OF THE SCREEN PRINTS THAT I TOOK OF SPECIFIC FILES WILL GIVE THE FILE CREATION DATE, THE LAST WRITTEN DATE, AND THE LAST ACCESS DATE OF A GIVEN FILE AS PART OF THE PROGRAM. WHEN YOU LOOK AT ANY GIVEN FILE, THAT INFORMATION IS AVAILABLE UNLESS THE FILE HAS BEEN UNDELETED FROM THE UNALLOCATED FILE SPACE AND THAT INFORMATION LOST.

Q DID YOU HAVE OCCASION TO LOOK INTO WHAT'S CALLED A RECYCLE BIN FOR THE PURPOSE OF DETERMINING PRESENCE OR ABSENCE OF COMPUTER IMAGES?

A YES.

Q IN THE GATEWAY COMPUTER?

A YES.

Q IN THE GATEWAY COMPUTER THAT BELONGED TO DAVID N. WESTERFIELD OR AT LEAST SHOWS INDICATIONS OF DAVID N. WESTERFIELD, IS THAT RIGHT?

A YES, SIR.

Q NOW, YOU GOT A BINDER UP THERE WITH YOU, SIR, IS THAT RIGHT?

A YES, SIR.

Q IF I ASKED TO HAVE THE BINDER MARKED AND YOU LOSE IT, WOULD THAT BE OKAY?

A YES, SIR. MR. FELDMAN: YOUR HONOR, I WOULD ASK TO HAVE MARKED AS THE COURT NEXT IN ORDER THIS BINDER THAT THE WITNESS IS REFERRING TO BECAUSE I'M GOING TO BE REFERRING TO MUCH OF THE -- THE COURT: ALL RIGHT. THAT WILL BE 157 FOR IDENTIFICATION PURPOSES. MR. FELDMAN: THANK YOU. BUT I WOULD ASK THE WITNESS BE PERMITTED TO REMOVE THAT WHICH IS HIS PERSONAL AS OPPOSED TO WHAT WAS PREPARED FOR THE CASE. THE WITNESS: MY C.V. AND THE TRAINING DOCUMENTS I REFERRED TO. MR. FELDMAN: I'M SORRY. I MISSED THE NUMBER. THE COURT: 157. MR. FELDMAN: THANK YOU. (BINDER AND CONTENTS [COMPUTER DOCUMENTS] MARKED TRIAL EXHIBIT NUMBER 157 FOR IDENTIFICATION.) MR. FELDMAN: YOUR HONOR, FOR THE RECORD, I'VE PLACED THE EXHIBIT TAG 157 ON A BINDER THAT READS "WESTERFIELD CASE TRIAL NOTEBOOK." BY MR. FELDMAN:

Q SIR, IS 157 A DOCUMENT THAT I ASKED YOU -- WELL, IS 157 THE ORIGINAL OF COPIES THAT YOU PROVIDED TO MY OFFICE AND THE DISTRICT ATTORNEY'S OFFICE WITHIN THE PAST WEEK OR SO?

A YES. MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: OVERRULED. PROCEED, MR. FELDMAN. MR. FELDMAN: THANK YOU. BY MR. FELDMAN:

Q WERE YOU ABLE TO ANSWER THAT? I JUST DIDN'T HEAR.

A YES, SIR.

Q I WOULD LIKE TO SPECIFICALLY DIRECT YOUR ATTENTION TO A PARTICULAR SCREEN PRINT. WELL, LET ME BACK UP FOR A SECOND. YOU JUST TOLD ME I THINK THAT THERE WERE CIRCUMSTANCES WHERE YOU WERE ABLE TO LOOK INTO THE RECYCLE BIN TO DETERMINE WHETHER OR NOT ANY IMAGES WERE LOCATED THEREIN. IS THAT RIGHT?

A YES, SIR.

Q IN YOUR NOTEBOOK YOU HAVE NUMBERED IN THE UPPER RIGHT CORNER A SERIES OF PAGES, IS THAT CORRECT?

A YES, SIR.

Q IF I TALK TO YOU IN TERMS OF CORRELATE THE NUMBERS OF -- WELL, DOES EACH OF THE NUMBERS ON THE PAGES CORRELATE TO A PARTICULAR SCREEN PRINT THAT'S REFERENCED IN YOUR REPORT?

A YES, SIR.

Q I WOULD LIKE TO DIRECT YOUR ATTENTION, SIR, TO SCREEN PRINTS 8 AND 9.

A YES, SIR.

Q NOW, YOU PREVIOUSLY MENTIONED THAT THERE WAS A SCHOOL DOCUMENT THAT YOU HAD IDENTIFIED THAT YOU CALLED A SCREEN PRINT 1, IS THAT CORRECT?

A YES, SIR.

Q SO, IN OTHER WORDS, 1, 8, AND 9 COME FROM THE SAME COMPUTER, IS THAT RIGHT?

A YES, SIR.

Q IT'S JUST 8 AND 9 ARE DELETIONS OR APPARENT ATTEMPTED DELETIONS OF FILES. IS THAT RIGHT?

A THAT'S CORRECT.

Q TELL ME, SIR, WHAT'S ON EXHIBIT 8? I'M SORRY. 157, SCREEN PRINT 8.

A IS A PICTURE OF A NAKED WOMAN ON A MOTORCYCLE SITTING SORT OF SIDESADDLE ON THE MOTORCYCLE.

Q AND YOU HAVE A BLUE LINE THAT'S DRAWN OR I GUESS IN SOME MANNER COLORED RIGHT ACROSS. WHAT DO YOU MEAN TO COMMUNICATE BY THAT, IF ANYTHING?

A WHAT THAT IS DOING IS SHOWING THE -- THIS IS A VIEW -- MR. FELDMAN: EXCUSE ME. THE WITNESS: I'M SORRY. MR. FELDMAN: MAY I HAVE HIM LIFT THIS UP SO AT LEAST THE JURY CAN SEE THE LINE? I'M JUST ASKING WHAT DIRECTION ON HOW TO DO THIS. YOUR HONOR, THESE ARE THE COPIES OF WHAT I -- THE COURT: NO. I UNDERSTAND. AS BEST YOU CAN, I REALIZE IT'S AWKWARD, MR. LAWSON, BUT IF YOU CAN DO IT COMFORTABLY AND TESTIFY AT THE SAME TIME. THE WITNESS: SURE. NO PROBLEM. THIS IS A SCREEN PRINT OF MY VIEW OF THIS COMPUTER HARD DRIVE IN EN CASE, AND THIS IS LOOKING AT JUST A SPECIFIC PORTION OF THE COMPUTER. WHAT I'M LOOKING AT IS THE RECYCLING BIN FOR THIS COMPUTER. AND THE BLUE HIGHLIGHT IS ACTUALLY PUT THERE BY EN CASE. THAT'S NOT ANYTHING I DID IN MAKING THIS SCREEN PRINT. THE SCREEN PRINT

IS ACTUALLY WHAT WAS ON MY SCREEN AS I AM SEEING THIS. AND WHAT I'VE DONE IS -- YOU CAN HIGHLIGHT INDIVIDUAL FILES AS YOU GO DOWN THIS ROW. AND THIS PARTICULAR FILE IS THE ONE THAT'S HIGHLIGHTED. AND WHEN A FILE IS HIGHLIGHTED, THEN YOU'LL SEE WHAT THE FILE IS IN THE SECOND WINDOW DOWN BELOW. AND THE FILE THAT'S HIGHLIGHTED IS A DELETED FILE FROM THE RECYCLING BIN CALLED DASH C136 DOT B.M.P., WHICH INDICATES IT'S A PICTURE FILE. BY MR. FELDMAN:

Q LET ME STOP YOU FOR A MINUTE. YOU JUST USED AN EXTENSION CALLED DOT B.M.P. I HAVE JUST USED THE WORD EXTENSION. WHY DON'T YOU TELL THE JURY WHAT THE WORD EXTENSION MEANS.

A FILE EXTENSIONS ARE DESIGNATORS ON INDIVIDUAL FILES TO HELP KEEP TRACK OF WHAT INDIVIDUAL FILES ARE. GIVE THE USER A PARTICULAR POINT OF REFERENCE TO KNOW WHAT ANY GIVEN FILE IN THE COMPUTER IS. THE COMPUTER ITSELF DOESN'T ALWAYS NEED TO KNOW THE DESIGNATOR OF THE PARTICULAR FILE TO RECOGNIZE THAT IT IS A FILE OF A SPECIFIC KIND. FOR INSTANCE, EVEN IF THIS FILE HAD A DIFFERENT DESIGNATOR AND IT WAS CALLED DOT T.X.T., REPRESENTING A TEXT FILE, THE COMPUTER WOULD STILL RECOGNIZE IT AS AN IMAGE FILE.

Q I WOULD LIKE TO SHOW YOU WHAT'S BEEN PREVIOUSLY MARKED COURT EXHIBIT 144. 144 LISTS A VARIETY OF EXTENSIONS. IS THAT RIGHT?

A THAT'S CORRECT.

Q YOU JUST DISCUSSED OBSERVING ON THIS PARTICULAR SCREEN PRINT A B.M.P. FILE. IS THAT RIGHT?

A THAT'S CORRECT.

Q SO THAT'S JUST -- THAT'S A KIND OF -- THAT'S A PICTURE FILE, RIGHT?

A YES, SIR.

Q AND THIS PICTURE FILE TO WHICH YOU'RE MAKING REFERENCE APPEARS TO HAVE BEEN DELETED ON SEPTEMBER THE 26TH, 2001, OR WAS IT CREATED ON THAT DATE OR CAN YOU TELL?

A IT WOULD APPEAR THAT THE FILE WAS BOTH CREATED AND DELETED ON 9/26/01. THE LAST ACCESS DATE IS 9/26/01. WHEN YOU FIND A FILE THAT'S BEEN DELETED IN THE RECYCLING BIN, THE LAST ACCESS IS GOING TO BE, FOR THE MOST PART, IN MOST CASES GOING TO BE THE DATE THAT IT WAS THROWN AWAY.

Q ALL RIGHT. AND YOU JUST MENTIONED IN THE RECYCLE BIN, YOU MEAN THE TRASH CAN OF THE COMPUTER?

A CORRECT.

Q SO IF I TRY AND DUMP SOMETHING INTO MY COMPUTER'S TRASH CAN, PEOPLE LIKE YOU CAN COME AND RETRIEVE IT, IS THAT RIGHT?

A YES, SIR.

Q I WOULD LIKE TO DIRECT YOUR ATTENTION TO ANOTHER SCREEN PRINT. 9. THAT'S ANOTHER SCREEN PRINT THAT YOU RECEIVED FROM THE GATEWAY COMPUTER, IS THAT RIGHT, SIR?

A THAT'S CORRECT.

Q WITH REGARD TO SCREEN PRINT 9, CAN YOU TELL THE JURY WHAT'S THAT?

A IT'S ANOTHER -- IT'S A NAKED WOMAN. IT'S A LITTLE BIT MORE GRAPHIC IMAGE THAN THE SCREEN PRINT 8. SHE HAS HER LEGS APART. I WOULD PROBABLY CONSIDER THAT TO BE A PORNOGRAPHIC PICTURE.

Q HOW DO YOU USE THE TERM PORNOGRAPHIC? WHAT DOES THAT MEAN?

A PORNOGRAPHIC MEANING IT'S A MORE LASCIVIOUS POSE THAN SCREEN PRINT 8.

Q MORE SEXUAL?

A MORE SEXUAL.

Q ALL RIGHT. AND 8 AND 9 CAME OUT OF D. N. WESTERFIELD'S COMPUTER, IS THAT RIGHT?

A THAT'S CORRECT.

Q WHAT ABOUT IS THERE, IN YOUR BUSINESS, IS THERE A FORM OF DOWNLOAD OR COMPUTER CALLED AN ANIME' FILE?

A YES, SIR. WELL, IT'S NOT -- THAT'S NOT A -- YOU WANT TO DIFFERENTIATE BETWEEN A TYPE OF FILE AS WE ARE TALKING ABOUT HERE WITH THE DESIGNATOR AND JUST A GENERAL SCHEME OF --

Q OKAY. WHAT I WANT TO JUST, THEN, THE SOFTBALL IS THEN CAN YOU PLEASE IDENTIFY ANIME'. WHAT DO YOU MEAN SO WE ARE ON THE SAME PAGE IN TERMS OF COMMUNICATING?

A ANIME' USUALLY MEANS CARTOON-CREATED -- ANIMATED IMAGES THAT ARE -- THEY CAN BE CREATED BOTH BY HAND AND BY COMPUTER.

Q ARE THOSE AVAILABLE ON THE INTERNET?

A YES. THEY ARE VERY POPULAR.

Q ARE THEY COMMON ON THE INTERNET?

A YES.

Q IS THERE A STYLE OF ANIME' THAT APPEARS FREQUENTLY ON THE INTERNET?

A CERTAINLY NOT ALL, BUT A GOOD PERCENTAGE OF -- IN FACT, I WOULD PROBABLY GO SO FAR AS TO SAY MOST ANIME' IS -- IT'S ORIENTAL-RELATED. IT'S REFERRED TO AS JAPANESE ANIME'. AND I CAN'T PRONOUNCE THE JAPANESE WORD. IT'S HENTAI OR ALONG THOSE LINES THAT REFERS SPECIFICALLY TO JAPANESE ANIMATED.

Q SPECIFICALLY DIRECTING YOUR ATTENTION TO THAT COMPUTER WE'VE BEEN DISCUSSING, THE ONE THAT'S D. N. WESTERFIELD, DID YOU NOTE THE PRESENCE OR ABSENCE OF ANY ANIME' OF A SEXUAL NATURE?

A YES, I DID.

Q SPECIFICALLY DIRECTING YOUR ATTENTION TO SCREEN PRINTS 10 THROUGH 36.

A YES, SIR.

Q SCREEN PRINTS 10 THROUGH 36 GENERALLY DEPICT, DO THEY NOT, ANIME'?

A YES, SIR.

Q WHICH REALLY CONSTITUTES WOMEN OR DRAWINGS OF WOMEN ENGAGED IN ANY NUMBER OF DIFFERENT ACTS WHICH ONE MAY OR MAY NOT CONSIDER SEXUAL, IS THAT RIGHT?

A THAT'S CORRECT.

Q FOR INSTANCE, ON SCREEN PRINT 10 WE SEE WOMEN PLAYING WITH THEMSELVES, IS THAT RIGHT?

A THAT'S CORRECT.

Q THESE ARE ALL NOW CARTOONS, AREN'T THEY?

A YES, SIR.

Q SCREEN PRINT 11 IT APPEARS AS THOUGH THE SEX IS BECOMING MORE GRAPHIC. IS THAT RIGHT?

A THAT'S CORRECT.

Q AND SO ON THROUGHOUT THE SERIES OF -- I'M SORRY. IS THAT TWENTY-SIX PRINTS, SCREEN PRINTS?

A YES.

Q NOW, WITH REGARD TO THESE ANIME'S, THEY ARE A THEME THAT ONE GENERALLY ASSOCIATES WITH THIS TYPE OF MATERIAL. STRIKE THAT. IS THERE A THEME THAT YOU WERE ABLE TO ASSOCIATE WITH THIS PARTICULAR SERIES OF SCREEN PRINTS?

A A CONSIDERABLE NUMBER OF THESE SCREEN PRINTS INVOLVE BONDAGE. SCENARIOS WITH ANIME' WHERE WOMEN ARE TIED IN ROPES AND THINGS LIKE THAT.

Q DOES THE MERE EXISTENCE OF ANIME' THAT DEPICTS WOMEN IN ROPES OR LIKE THAT, DOES THAT -- IS THAT A COMMON THEME? MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: OVERRULED. YOU CAN ANSWER. THE WITNESS: IN MY EXPERIENCE WITH THE ANIME' THAT I OFTEN ENCOUNTER IN THE HARD DRIVES THAT WE ANALYZE IN OUR OFFICE, THAT IS A COMMON THEME AND MAY -- OFTEN INVOLVES BONDAGE SCENARIOS. BY MR. FELDMAN:

Q NOW, I WOULD LIKE TO DIRECT YOUR ATTENTION TO SOME SCREEN PRINTS THAT I THINK YOU'VE IDENTIFIED AS 130 THROUGH 133. FIRST OF ALL, SCREEN PRINTS 130 THROUGH 133, CAN YOU TELL ME, PLEASE, -- MR. FELDMAN: AND, COUNSEL, THEY ARE CORRELATED TO NUMBER. I JUST WANT TO MAKE SURE. . . THE WITNESS: OKAY. BY MR. FELDMAN:

Q LET ME DIRECT YOUR ATTENTION, PLEASE, TO ANIME' 1. I'M SORRY. SCREEN PRINT 133. I'M SORRY. 130. COULD YOU PLEASE TELL ME WHAT THIS SCREEN PRINT 30 DEPICTS.

A IT'S A HOT MAIL. IT'S A SCREEN PRINT AS WE DISCUSSED EARLIER OF A HOT MAIL E-MAIL THAT I WAS ABLE TO RECOVER FROM I BELIEVE THIS IS -- I WANT TO MAKE CERTAIN.

Q IT SAYS AN E-MAIL ADDRESS AT THE BOTTOM, DOESN'T IT?

A I WANTED TO DESCRIBE WHICH COMPUTER IT HAD COME FROM.

Q OKAY.

A ONE OF THE TWO OFFICE COMPUTERS.

Q OKAY.

A ONE OF THE TWO HEWLETT-PACKARD OFFICE COMPUTERS. IT'S GOING TO TAKE ME TOO LONG TO TELL YOU WHICH OF THE TWO.

Q SPECIFICALLY DIRECTING YOUR ATTENTION TO 130, THERE'S AN E-MAIL ADDRESS AT THE BOTTOM, IS THAT RIGHT?

A THAT'S CORRECT.

Q WHAT'S THE E-MAIL ADDRESS?

A CAPITAL D CAPITAL N CAPITAL W E-S-T AT HOT MAIL DOT COM. D. N. WEST AT.

Q YOU'VE USED THE WORD HOT MAIL NOW SEVERAL TIMES. COULD YOU PLEASE TELL US WHAT IS HOT MAIL.

A HOT MAIL IS AN INTERNET-BASED E-MAIL SERVICE THAT'S MADE AVAILABLE BY MICROSOFT FOR PEOPLE TO CREATE E-MAIL ACCOUNTS FOR THEMSELVES. BASICALLY ALL THAT'S NECESSARY IS THAT YOU ACCESS THE HOT MAIL DOT COM. WEB PAGE, ANSWER SOME QUESTIONS, AND YOU CAN CREATE AN E-MAIL ACCOUNT FOR YOURSELF. IT MAY OR MAY NOT BE ACCURATE IN TERMS OF YOUR NAME. MANY PEOPLE USE HOT MAIL E-MAIL ADDRESSES THAT HAVE NOTHING TO DO WITH THEIR NAME. OTHERS DO.

Q IT'S FREE, ISN'T IT?

A IT'S FREE, YES.

Q SO DOES THAT MEAN I CAN JUST GO ON LINE AND CREATE AS MANY E-MAIL ADDRESSES AS I WAS USING HOT MAIL?

A THAT'S CORRECT.

Q SPECIFICALLY DIRECTING YOUR ATTENTION TO 130 AGAIN, WITH REGARD TO 130, IT SAYS ABOVE THE E-MAIL ADDRESS THANKS FOR JOINING ANIME' DOT COM. WHAT'S ANIME' DOT COM.?

A ANIME' DOT COM. IS A WEB SITE THAT OFFERS LINKS TO OTHER ANIME'-RELATED SITES, ANIME' BEING THE TYPE OF MATERIAL THAT WE WERE TALKING ABOUT EARLIER, ANIMATED IMAGES AND FILES THAT ARE AVAILABLE FOR VIEWING ON THE INTERNET. ANIME' DOT COM. IS BASICALLY A LINK PAGE THAT ALLOWS A PERSON TO GO TO OTHER ANIME' PAGES AROUND THE INTERNET.

Q A MOMENT AGO YOU WERE LOOKING FOR I GUESS ONE OF YOUR PAPERS TO HELP YOU FIND -- I'M SORRY. BUT YOU'RE RECOVERING FROM THE FLU, AREN'T YOU

A YES.

Q IT'S KIND OF THE PLAGUE THAT'S GOING AROUND.

A I APOLOGIZE.

Q THAT'S ALL RIGHT. I THINK WE HAVE WATER ON COUNSEL TABLE, SIR, IF YOU NEED IT. AND YOU'RE PROMISING NOT TO SHARE, RIGHT?

A I PROMISE.

Q SIR, YOU WERE TRYING TO IDENTIFY WHICH COMPUTER THIS ANIME' DOT COM. JOINER OR JOINING CAME FROM. LET ME SHOW YOU A PAGE OF YOUR REPORT. IT'S 1476 IN THE DEFENSE DISCOVERY SEQUENCE.

A YES, SIR.

Q DOES LOOKING AT THIS DOCUMENT REFRESH YOUR RECOLLECTION AS TO WHICH COMPUTER THESE ANIME' SCREEN CAPTURES COME FROM?

A YES. WHAT I HAD THOUGHT THAT I REMEMBERED, THESE PARTICULAR SCREEN CAPTURES CAME FROM WHAT I REFERRED TO AS THE SECOND H. P. OFFICE COMPUTER AS OPPOSED TO -- THERE WERE TWO. AND THEY WERE VERY CLOSE TO EACH OTHER IN SIZE. AND THEY WERE ALSO BOTH H. P.'S. SO WE JUST, TO KEEP THEM STRAIGHT IN TERMS OF WHAT I RECOVERED FROM WHICH ONE, ONE IS NAMED NUMBER ONE AND ONE IS NAMED NUMBER TWO.

Q OKAY. AND WITH REGARD TO SCREEN PRINT 131, WHAT DOES SCREEN PRINT 131 DEPICT?

A AGAIN IT'S A SCREEN PRINT OF MY VIEW OF EN CASE LOOKING AT THE TEMPORARY INTERNET FILE FOLDER. THIS WOULD BE AGAIN H. P. COMPUTER NUMBER TWO. AND I AM HIGHLIGHTING AN H.T.M.L. FILE CALLED ANIME'.

Q I'M SORRY. YOU JUST THREW US ANOTHER TERM. H.T.M.L. IT DOESN'T GO UNDER EXTENSIONS, BUT I'M GOING TO ADD IT. I THINK IT'S 141. H.T.M.L. NOW, I KNOW THAT'S HYPERTEXT MARKUP LANGUAGE, BUT I HAVE NO IDEA WHAT THAT MEANS. COULD YOU TELL US, PLEASE.

A SIMPLY EXPLAINED IT JUST REFERS TO A WEB PAGE. IT'S -- HYPERTEXT MARKUP LANGUAGE IS LANGUAGE THAT'S USED TO CREATE WEB PAGES ON THE INTERNET. IT MEANS THAT YOU ARE LOOKING AT A WEB PAGE.

Q SO THE IMPORT OF THE SCREEN CAPTURE 131 IS THAT IT REFLECTS A WEB PAGE, IS THAT RIGHT?

A THAT'S CORRECT.

Q AND A WEB PAGE IS ONE OF THOSE PAGES YOU CAN CLICK TO GET YOURSELF FROM POINT A HYPOTHETICAL ANIME' TO POINT B ANOTHER ANIME' OR SERIES OF IMAGES, IS THAT RIGHT?

A THAT'S CORRECT.

Q 132, DIRECTING YOUR ATTENTION TO SCREEN CAPTURE 132. CAN YOU TELL ME, PLEASE, WHAT DOES SCREEN CAPTURE 132 DEPICT?

A THIS IS THE -- A PAGE FROM ANIME' DOT COM. WHERE A PERSON JOINS ANIME' DOT COM. BY ENTERING THEIR NAME AND THEIR E-MAIL ADDRESS.

Q AGAIN ALL OF THESE COME FROM --

A H. P., HEWLETT-PACKARD COMPUTER NUMBER TWO.

Q AND SOMEHOW BEAR D. N. WEST, IS THAT RIGHT, AS AN IDENTIFIER?

A THAT'S CORRECT.

Q SIR, WITH REGARD TO YOUR EXAMINATION OF GATEWAY FILES, DID YOU NOTICE PORNOGRAPHY FILES IN THE PLURAL?

A YES.

Q AND WITH REGARD TO YOUR EXAMINATION OF THE GATEWAY PORNOGRAPHY FILES, DID YOU NOTE THAT FOR THE MOST PART THEY TENDED TO SHOW OR THEY ALL SHOWED BOTH FILE CREATION DATES AND LAST ACCESS DATES OF DECEMBER 17TH, '01? MR. CLARKE: OBJECTION. I THINK THAT'S LEADING, YOUR HONOR. THE COURT: IT IS. REPHRASE. BY MR. FELDMAN:

Q SIR, I WOULD LIKE TO DIRECT YOUR ATTENTION TO SCREEN PRINTS 37 AND 38.

A YES.

Q WITH REGARD TO 37 AND 38, WHAT DO THEY DEPICT?

A THESE WERE -- AGAIN THESE ARE SCREEN PRINTS OF A VIEW OF A PARTICULAR FILE LOOKING AT THIS COMPUTER WITH EN CASE. AND WHAT I'VE DONE IS HIGHLIGHT A PARTICULAR FILE, EXPAND THE SCREEN SO THAT YOU CAN SEE IT. IN OTHER WORDS, WHEN WE LOOKED BEFORE, WE SAW --

Q I'M SORRY. BUT IF YOU COULD HOLD IT UP HIGHER BECAUSE IT'S HARD TO SEE. AND WE'RE SHOWING ALL THE WAY ACROSS. JUST SO THAT YOU KNOW, SIR, THERE'S EIGHTEEN FOLKS.

A WHEN WE LOOKED AT THE PREVIOUS SCREEN PRINT, WE HAD TWO WINDOWS. ONE WAS WHERE -- IT WAS THE LIST OF FILES THAT WE HAD HIGHLIGHTED, AND THEN THE SECOND WINDOW WAS THE SMALLER VERSION OF THE IMAGE. WHAT I'VE DONE IS ACTUALLY ENLARGED THE ENTIRE IMAGE AND THEN CLICKED ON REPORT WHICH IN EN CASE ALLOWS YOU TO FIND OUT SPECIFIC INFORMATION, THE PROPERTIES BASICALLY OF THAT GIVEN FILE. AND THIS PARTICULAR FILE IS SHOWING LAST ACCESS AND FILE CREATED DATES OF 12/17/01.

Q 38, WHAT DOES 38 SHOW?

A AGAIN THIS IS THE VIEW. IT'S THE SAME THING. IT'S A GIVEN REPORT OF THIS PARTICULAR FILE, AND IT SHOWS LAST ACCESS AND FILE CREATED DATES OF 12/17/01.

Q WHAT DOES THAT MEAN?

A THAT THIS PARTICULAR FILE OR THESE TWO PARTICULAR FILES WERE PLACED ON THIS COMPUTER ON 12/17/01 AND APPARENTLY NEVER ACCESSED BEYOND THAT. IF THEY HAD BEEN ACCESSED AFTER 12/17/01, THEN THAT LAST ACCESS DATE WOULD CHANGE TO WHATEVER DATE IT WAS THAT THE FILE WAS LAST LOOKED AT.

Q ALL RIGHT. DIRECTING YOUR ATTENTION NOW TO A SECOND HARD DRIVE IN A GATEWAY COMPUTER. AND NOW I'M SPECIFICALLY DIRECTING YOUR ATTENTION TO I THINK IT'S CALLED A MAXTOR, M-A-X-T-O-R, 12-GIGABYTE DRIVE. DID YOU EXAMINE A MAXTOR 12-GIGABYTE DRIVE?

A YES, SIR.

Q WHY?

A IT WAS ONE OF THE TWO HARD DRIVES THAT WAS REPRESENTED IN THE DOCUMENTATION THAT CAME WITH THE HARD DRIVES THAT WE RECEIVED FROM THE SAN DIEGO FORENSICS LAB. THERE WAS AN INDICATION THAT THERE WERE TWO HARD DRIVES IN THE GATEWAY, AND THIS IS THE SECOND OF THOSE TWO.

Q DID YOU NOTICE ANYTHING OF CONSEQUENCE OR RELEVANCE IN THERE?

A I DID NOT. AS I RECALL, I THINK IT HAD GAMES PRIMARILY.

Q ALL RIGHT. DID YOU HAVE OCCASION TO EXAMINE A LAPTOP COMPUTER?

A YES, SIR.

Q CAN YOU TELL ME WHAT WAS YOUR PURPOSE IN EXAMINING THE LAPTOP COMPUTER?

A AGAIN IT WAS ONE OF THE PIECES OF MEDIA THAT WAS SUPPLIED TO US FOR EXAMINATION. AND I SUBSEQUENTLY EXAMINED IT TO DETERMINE IF THERE WAS ANYTHING OF EVIDENTIARY VALUE IN THIS CASE.

Q YOU SPECIFICALLY NOTED ACCESS DATES TO THE LAPTOP COMPUTER, IS THAT CORRECT?

A THAT'S CORRECT.

Q WHEN WAS THE LAPTOP COMPUTER ACCESSED?

A I NOTED THAT THE LAPTOP HAD BEEN ACCESSED ON THREE DATES THAT CAME TO -- THAT WERE I FELT POSSIBLY OF IMPORTANCE. 1/31/02, 2/02/02, AND FINALLY 02/04/02.

Q FEBRUARY 4TH, '02?

A THAT'S CORRECT.

Q COULD YOU DETERMINE WHAT ACTIVITY TOOK PLACE ON THOSE DATES?

A I DIDN'T --

Q I'M SORRY. THAT WAS OF RELEVANCE TO THE CASE.

A I'M SORRY. I DIDN'T INCLUDE IT IN MY REPORT. I DIDN'T FIND THAT THERE WAS ANYTHING OF ANY PARTICULAR RELEVANCE THAT WAS ACCESSED ON THOSE DATES.

Q ALL RIGHT. NOW I WOULD LIKE TO DIRECT YOUR ATTENTION TO I THINK IT'S AN H. P. COMPUTER, WHICH YOU REFERRED TO AS H. P. COMPUTER NUMBER ONE, WHICH WAS LOCATED FROM THE OFFICE. IS THAT RIGHT?

A YES, SIR.

Q THAT COMPUTER OSTENSIBLY WAS RECOVERED FROM MR. WESTERFIELD'S OFFICE AND CONTAINS A WESTERN DIGITAL 30-GIGABYTE HARD DRIVE, IS THAT RIGHT?

A THAT'S CORRECT.

Q YOU DID AN INITIAL EXAMINATION OF THAT COMPUTER, IS THAT RIGHT?

A YES, SIR.

Q DID YOU NOTICE WHETHER OR NOT THERE WAS COMPUTER USE AND VISITS TO APPARENT PORNOGRAPHIC WEB SITES ON FEBRUARY THE 4TH, 2002? MR. CLARKE: OBJECTION. I THINK COUNSEL IS LEADING THE WITNESS AGAIN. THE COURT: HE IS. JUST REPHRASE. BY MR. FELDMAN:

Q DID YOU NOTICE WHETHER OR NOT THERE WAS ANY ACCESS OR USE OF THE COMPUTER ON FEBRUARY 4, 2002?

A YES, I DID.

Q WHAT KIND OF VISITS, IF ANY, DID YOU NOTE TO ANY WEB SITES?

A I NOTED THAT THE COMPUTER HAD BEEN USED IN THE AFTERNOON AND EVENING HOURS OF THE 4TH OF FEBRUARY, 2002. AND I NOTED THAT THERE HAD BEEN ACCESS TO BOTH ANIME' SITES AND -- PORNOGRAPHIC ANIME' SITES AND WHAT I REFERRED TO IN MY REPORT AS, QUOTE, TEEN SEX SITES.

Q LET ME REDIRECT YOUR ATTENTION TO DEFENDANT'S EXHIBIT NUMBER A. THE COURT: WHAT? MR. FELDMAN: I'M SORRY. IT'S 142-A. THE COURT: OKAY. BY MR. FELDMAN:

Q THIS IS DEFENDANT'S EXHIBIT 142-A I BELIEVE YOU TOLD ME IS A COPY OF ONE OF YOUR SCREEN PRINTS THAT YOU TOOK FROM THE PARTICULAR COMPUTER WE'RE DISCUSSING. IS THAT CORRECT?

A THAT'S CORRECT.

Q WHAT'S THE TIME OF ACCESS?

A 4:47:58 P.M.

Q I'M SORRY. 4:47:58 P.M., IS THAT RIGHT?

A P.M.

Q OKAY. AND WHAT'S BEING ACCESSED?

A THIS IS A TEMPORARY INTERNET FILE FOR A SITE OR APPARENTLY A SITE CALLED TEEN DREAMER. IT'S A -- WHAT YOU CAN SEE IN THE LOWER PORTION OF

THE REPORT IS THE NAME TEEN DREAMER AND THE TOP OF APPARENTLY A YOUNG WOMAN'S HEAD. IT WOULD BE AN IMAGE THAT WAS ON THIS PARTICULAR PAGE THAT WAS ACCESSED ON THE INTERNET AND ENDED UP IN THE TEMPORARY INTERNET FILES ON 2/4/02.

Q DIRECTING YOUR ATTENTION TO WHAT'S BEEN MARKED 142-B. WHAT'S 142-B?

A IS BASICALLY THE SAME THING. IT'S A COPY OF A TEMPORARY INTERNET FILE THAT WAS FOUND IN THE TEMPORARY INTERNET FILE FOLDERS. THE TEXT ABOVE THE PICTURE IS LESBIAN BORDELLO, AND THE DATE IS SHOWING AS 2/4/02 AT 4:47:58 P.M.

Q DIRECTING YOUR ATTENTION TO WHAT'S BEEN MARKED -- THANK YOU, SIR. DIRECTING YOUR ATTENTION TO WHAT'S BEEN PREVIOUSLY MARKED 143. IS 143 ANOTHER SCREEN CAPTURE THAT YOU PROVIDED?

A YES.

Q AND CAN YOU TELL THE JURY WHAT'S 143.

A NUMBER 143 IS A CAPTURE OF A HOT MAIL MESSAGE THAT I WAS ABLE TO RECOVER. DISCUSSED HOT MAIL BEING AN E-MAIL ACCOUNT, AN INTERNET-BASED E-MAIL ACCOUNT. THIS PARTICULAR E-MAIL IS ADDRESSED TO D. N. WEST FROM HOT MAIL, IT'S FROM EDITOR AT NEWSLETTER DOT PINK FOR FREE DOT COM.

Q WHAT'S PINK FOR FREE DOT COM.?

A IT'S AN ADULT PORNOGRAPHIC WEB SITE THAT OFFERS LINKS TO OTHER PORNOGRAPHIC SITES BASICALLY.

Q AND, SIR, I THINK YOU JUST USED A PHRASE TEMPORARY INTERNET FILES. WHAT ARE TEMPORARY INTERNET FILES?

A THE WINDOWS OPERATING SYSTEM HAS A FOLDER CALLED THE TEMPORARY INTERNET FILE FOLDER THAT ALLOWS FOR THE -- WHAT HAPPENS IS AS A PERSON SEARCHES THE INTERNET USING A PARTICULAR COMPUTER WITH THE WINDOWS OPERATING SYSTEM, THE COMPUTER TAKES FOR LACK OF A BETTER PHRASE SNAPSHOTS OF THE WEB PAGES AND THE IMAGES AND WHATNOT THAT A PERSON GOES TO, STORES THEM IN THE TEMPORARY INTERNET FILE FOLDER, AND THAT WAY, AS I'M SURE PEOPLE HAVE NOTICED IN THE JURY THAT HAVE USED THE INTERNET, WHEN YOU COME BACK TO A PAGE THE SECOND TIME, IT LOADS MUCH FASTER. THE REASON IS BECAUSE IT LOADS FROM THE TEMPORARY INTERNET FILE FOLDER AS OPPOSED TO OUT ON THE INTERNET.

Q SO IT'S A PLACE WHERE FILES GET STORED TEMPORARILY?

A TEMPORARILY. BUT THEY CAN STAY THERE FOR QUITE A WHILE.

Q AND CERTAINLY THEY ARE, I'LL SAY, SUSCEPTIBLE TO YOUR ABILITY TO USE EN CASE TO RETRIEVE THEM. IS THAT A FAIR STATEMENT?

A THAT'S CORRECT.

Q DO YOU USE THE TEMPORARY INTERNET FILES, THEN, TO TRACK INTERNET SURFING? IS THAT RIGHT?

A THAT IS CORRECT. IT IS ONE WAY TO DETERMINE WHERE A PERSON HAS BEEN ON THE INTERNET AND THE SORTS OF WEB SITES THAT THEY HAVE ACCESSED.

Q WITH REGARD TO THE EXHIBITS THAT I JUST SHOWED YOU, WE SPECIFICALLY DISCUSSED THE TIME OF ACCESS. AND 142-A AND -B ARE BOTH SOMEWHERE AROUND 4:47 P.M. AND 58 SECONDS --

A M-HM.

Q -- ON THE 4TH. WE'VE HEARD SOMETHING IN HERE ABOUT DOCTORING THE CLOCK. DOES THAT TERM HAVE ANY MEANING TO YOU?

A WELL, IN THE GENERIC SENSE. I WOULD ASSUME THAT YOU ARE REFERRING TO CHANGING THE DATE ON THE COMPUTER CLOCK OR THE TIME SO THAT IT SHOWED A DIFFERENT DATE AND TIME THAN WAS ACTUALLY THE DATE AND TIME THE PERSON WAS USING THE MACHINE.

Q DO YOU SEE ANY EVIDENCE OF ANY KIND THAT THAT HAPPENED WITH REGARD TO ANY OF THE COMPUTERS THAT YOU WERE LOOKING AT? MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: OVERRULED. YOU MAY ANSWER. THE WITNESS: NO, I DID NOT. BY MR. FELDMAN:

Q HOW WOULD YOU FIND OUT?

A WE'VE HAD THAT COME UP AS AN ISSUE IN AT LEAST TWO CASES THAT I CAN RECALL THAT HAVE COME INTO MY OFFICE IN THE LAST TWO YEARS, WHERE THE ALLEGATION WAS THAT THE COMPUTER CLOCK HAD BEEN CHANGED. AND IN BOTH INSTANCES I WAS NOT ABLE TO DETERMINE THAT THAT HAD OCCURRED. THERE ARE A NUMBER OF WAYS TO DETERMINE THAT. ONE BEING THE REGISTRY FILES FOR THE COMPUTER WHICH KEEPS TRACK OF THE WINDOWS OPERATING SYSTEM AND WHEN THE DATES AND TIMES THAT FILES ARE ACCESSED WHEN THE COMPUTER IS TURNED ON. WHAT I'VE NOTICED IN PARTICULAR AS I'VE GONE OUT AND EXPERIMENTED WITH THAT TO DETERMINE HOW TO FIND THAT OUT, HOW TO FIND OUT IF COMPUTER CLOCKS HAVE BEEN CHANGED, IS THAT ONE WILL FIND -- IN MY EXPERIENCE, ONE WILL FIND THAT, FOR INSTANCE, DATES SUCH AS WE'RE LOOKING AT IN EXHIBIT 142-B WILL NOT BE CONSISTENT. YOU'LL HAVE A LAST ACCESS DATE, FOR INSTANCE, THAT IS EARLIER THAN THE FILE CREATION DATE. SOMETHING THAT BASICALLY IS IMPOSSIBLE. AND WHEN YOU SEE SOMETHING LIKE THAT, THEN YOU KNOW TO LOOK DEEPER IN TERMS OF PERHAPS VIRUS-SCANNING PROGRAMS THAT REGULARLY RUN ON THE COMPUTER AT SPECIFIC TIMES AND DETERMINE IF THERE ARE OTHER THINGS THAT DON'T ADD UP AND MATCH UP IN TERMS OF TIMES AND DATES. I DIDN'T SEE ANYTHING LIKE THAT IN THESE COMPUTERS. I DIDN'T READ ANYTHING IN THE FORENSICS REPORTS OF THE OTHER LAW ENFORCEMENT PEOPLE WHO LOOKED AT THESE COMPUTERS SAYING THAT THERE WAS ANY INDICATION THE CLOCKS WERE NOT ACCURATE.

Q I'M SORRY. YOU JUST MADE REFERENCE TO OTHER FORENSIC REPORTS. YOU WERE PROVIDED WITH INFORMATION THAT WAS REPRESENTED TO YOU TO BE COMPLETE FROM THE R. C. F. L., REGIONAL FORENSICS LABORATORY, IS THAT RIGHT?

A YES, SIR.

Q AND YOU READ REPORTS OF A MR. WATKINS, IS THAT RIGHT?

A YES, SIR.

Q A MR. ARMSTRONG, IS THAT CORRECT?

A I'M SORRY. I THINK IT WAS MR. ARMSTRONG, YES. AND I BELIEVE MR. WATKINS, TOO. BUT I'M NOT POSITIVE.

Q YOU ALSO WERE PROVIDED HIS TESTIMONY, WEREN'T YOU?

A YES, SIR.

Q WITH REGARD TO YOUR TRYING TO ASCERTAIN WHO WAS USING THE COMPUTER AT WHAT TIMES, I WOULD LIKE TO DIRECT YOUR ATTENTION TO SCREEN PRINTS 39, 40, AND 41. WITH REGARD TO YOUR SCREEN PRINTS 39, 40, AND 41, --

A YES, SIR.

Q -- WHAT DID YOU MEAN TO COMMUNICATE BY HAVING THEM PREPARED? FIRST OF ALL, LET ME DIRECT YOUR ATTENTION TO 39. WHAT'S 39?

A 39 IS A CAPTURE OF THE EN CASE VIEW AGAIN OF THIS COMPUTER. AND WE ARE TALKING NOW ABOUT THE H. P. COMPUTER NUMBER ONE. AND IT IS A SCREEN PRINT OF THE EN CASE VIEW OF H. P. NUMBER ONE. AND I'M -- WHAT'S BEEN HIGHLIGHTED OR MY -- WHAT I PUT THE CURSOR ON WAS A PARTICULAR H.T.M.L. FILE WHICH WE TALKED ABOUT WAS A WEB PAGE FILE FOR GET MESSAGE WHICH I RECOGNIZE AS BEING A HOT MAIL MESSAGE THAT WAS RECEIVED ON THIS COMPUTER. AND WHAT YOU'RE SEEING IS THAT THE PERSON LOOKED AT THEIR E-MAIL MESSAGE ON THE INTERNET, AND IT IS CAPTURED AS AN H.T.M.L. FILE BY THE COMPUTER.

Q AND THE DATE?

A 1/12/02 AT 12:51:30 P.M.

Q DIRECTING YOUR ATTENTION TO SCREEN PRINT 40, SIR. WHAT DOES SCREEN PRINT 40 DEPICT?

A THIS IS -- 39 IS SHOWING WHERE THIS PARTICULAR H.T.M.L. FILE WAS FOUND BY EN CASE IN RELATION TO THESE OTHER FILES. THEN NUMBER 40 IS ACTUALLY THE FILE ITSELF. IT IS A HOT MAIL FILE AS WE DISCUSSED. IT IS TO D. N. WEST AT

HOT MAIL DOT COM. IT'S FROM E Z BOOKS AT DARTH DOT S. D. S. U. DOT E.D.U., WHICH I ASSUME WOULD BE SAN DIEGO STATE UNIVERSITY.

Q AND SPECIFICALLY SAYS SUBJECT S. D. S. U. BOOKSTORE, E Z BOOK ORDER CONFIRMATION, IS THAT RIGHT?

A THAT'S CORRECT. THAT'S IN THE SUBJECT LINE HERE.

Q AND 41. WHAT IS SCREEN PRINT 41 INTENDED TO COMMUNICATE?

A AT THE BOTTOM OF SCREEN PRINT 40 YOU SEE -- YOU CAN BEGIN TO SEE THE ACTUAL TEXT OF THE E-MAIL MESSAGE IT SAYS THANK YOU FOR YOUR ORDER. AND IT GIVES A CONFIRMATION NUMBER. THEN THIS IS -- THEN WHAT I DID WAS PAGE DOWN SLIGHTLY SO WHAT I JUST READ IS UP HERE AND NOW YOU'RE SEEING THE BULK OF THE TEXT. AND IT TALKS ABOUT THE COST, \$25.00 FOR A RESHELVING FEE. AND THEN CUSTOMER INFORMATION.

Q SIR, DID YOU NOTICE ANY SCREEN PRINTS OF CONSEQUENCE THAT RELATED TO THE DATE OF DECEMBER 13TH, 2001, AND MORE SPECIFICALLY DIRECTING YOUR ATTENTION TO SCREEN PRINTS 42 THROUGH 47? WITH REGARD TO SCREEN PRINTS 42 TO 47, SIR.

A YES, SIR.

Q WHAT DO SCREEN PRINTS 42 THROUGH 47 COMMUNICATE?

A FOR SOME REASON SOME OF MY COPIES ARE UPSIDE DOWN. I'M NOT SURE WHY.

Q I HAVE RIGHT-SIDE-UP ONES.

A 42, 43, 44, 45, 46, AND 47 REPRESENT ANOTHER E-MAIL FILE THAT WAS -- HOT MAIL FILE THAT WAS RECOVERED FROM THIS COMPUTER. AGAIN TO D. N. WEST AT HOT MAIL DOT COM. IT'S FROM EDITOR AT NEWSLETTER DOT PINK FOR FREE DOT COM., WHICH, AS WE DISCUSSED A FEW MOMENTS AGO, IS AN ADULT PORNOGRAPHIC WEB SITE WITH LINKS TO OTHER ADULT PORNOGRAPHIC WEB SITES.

Q ALL RIGHT. IS THAT WHAT YOU INTENDED TO COMMUNICATE THROUGH THAT SEQUENCE OF SCREEN PRINTS?

A THAT'S CORRECT.

Q SO THIS APPEARS TO BE KIND OF LIKE PORN.-SURFING ACTIVITY ON 13 DECEMBER. MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: SUSTAINED. YOU NEED NOT ANSWER. BY MR. FELDMAN:

Q DOES THIS APPEAR TO BE PORN.-SURFING ACTIVITY ON DECEMBER 13TH? MR. CLARKE: SAME OBJECTION. THE COURT: OVERRULED. YOU MAY ANSWER. THE WITNESS: YES. THAT'S WHAT I WOULD THINK. BY MR. FELDMAN:

Q BY?

A D. N. WEST.

Q THE APPROXIMATE TIME IS 4:47 P.M., ISN'T IT?

A THAT'S CORRECT.

Q WHY DO YOU THINK IT'S -- I'M SORRY. WHY DO YOU THINK THESE SCREEN PRINTS DEPICT PORN. SURFING?

A BECAUSE THAT WAS THE ACTIVITY THAT WAS OCCURRING ON THE COMPUTER ON 2/4/02 AT THAT PARTICULAR TIME.

Q OKAY. SIR, YOU'VE ALSO HAD DEVELOPED SCREEN PRINTS 48 AND 49 WHICH APPARENTLY DOCUMENT A COMPUTER USER'S ACCESS TO ANOTHER SITE THAT'S FREQUENTED BY D. N. WEST AT HOT MAIL. IS THAT RIGHT? MR. CLARKE: OBJECTION. LACK OF FOUNDATION AND PREFACE. THE COURT: AS TO THE PREFACE. JUST REPHRASE THE QUESTION. BY MR. FELDMAN:

Q SPECIFICALLY DIRECTING YOUR ATTENTION TO SCREEN PRINTS 48 AND 49, SIR. WHAT DO THEY TEND TO DEPICT OR WHAT ARE THEY ILLUSTRATIVE OF?

A WHAT I NOTED WAS THAT ON THE DATES THAT I -- ON THE DATES THAT I INCORPORATED IN THE REPORT WHERE I HAD FOUND ACCESS BY D. N. WEST TO HIS HOT MAIL ACCOUNT, I ALSO NOTED IN SEVERAL INSTANCES VERY CLOSE TO THE SAME TIME PROXIMITY, WITHIN A COUPLE MINUTES, THE ACCESS OF A PAGE CALLED -- I HAVE TO READ IT, IT'S BASICALLY PIGGS-HAUSE, P-I-G-G-S DASH H-A-U-S-E, DOT COM., WHICH IS A GAMING SITE.

Q ALL RIGHT. SCREEN PRINTS 50 THROUGH 55 DEMONSTRATE WHAT, SIR?

A THESE ARE AGAIN SCREEN PRINTS THAT I MADE OF MY EN CASE VIEW OF THIS PARTICULAR COMPUTER. SCREEN PRINT 50 IS AGAIN HIGHLIGHTING A PARTICULAR HOT MAIL FILE THAT I FOUND ON 12/15/01. 51 IS -- 50 IS SHOWING WHERE I FOUND THE HOT MAIL IN RELATION TO THE OTHER FILES THAT WERE AROUND IT. AND THEN SCREEN PRINT 51 IS THE FILE ITSELF.

Q ALL RIGHT. AND ARE THESE -- IS THERE A PARTICULAR SITE TO WHICH THESE SCREEN PRINTS REFER? THAT WOULD BE 50 THROUGH 55, RIGHT?

A WHAT THESE WERE -- WAS CAPTURED TO REPRESENT WAS, AND THERE ARE I THINK, WHAT, A TOTAL OF THREE INSTANCES OF ACCESSING BOTH THE PIGGS-HAUSE SITE AND THE HOT MAIL DOT COM. SITE ON 12/15 AT ROUGHLY 7:00 O'CLOCK IN THE EVENING.

Q LET ME DIRECT YOUR ATTENTION TO SCREEN PRINT 61 AND 62. CAN YOU TELL ME, PLEASE, WHAT'S SCREEN PRINT 61.

A 61 IS THE SCREEN PRINT OF A GIF FILE WHICH IS AN IMAGE FILE THAT WAS CAPTURED FROM AN INTERNET WEB PAGE CALLED I FRIENDS DOT COM. IT WAS ACCESSED ON 12/15/01 AT 8:00 O'CLOCK IN THE EVENING.

Q AND THEN SCREEN PRINT 62, WHAT DOES THAT SHOW?

A WHAT IT APPEARED, AND I ONLY INCLUDED THE ONE, THIS ONE SCREEN PRINT, BUT THERE WERE ACTUALLY SEVERAL. WHAT IT APPEARED WAS THAT THE PERSON WAS ATTEMPTING TO JOIN I FRIENDS DOT COM. AND THEY USED A NUMBER OF DIFFERENT PASSWORDS AND NAMES TO CREATE THEIR ACCOUNT, AND THEY KEPT GETTING REJECTED. I ONLY INCLUDED I BELIEVE ONE EXAMPLE OF THAT, BUT THAT'S WHAT SCREEN PRINT 62 IS, AN EXAMPLE OF THE ATTEMPT TO JOIN I FRIENDS.

Q DO YOU NEED SOME KIND OF PASSWORD TO DO THAT?

A YES. APPARENTLY SO.

Q AND WHAT'S THE PASSWORD THAT WAS ATTEMPTED?

A PORNO 4 ME.

Q I'M SORRY? PORNO 4 ME?

A PORNO, THE NUMBER 4, ME. MR. FELDMAN: YOUR HONOR, I CAN KEEP GOING. I JUST DON'T WANT TO MAKE SURE I'M LOSING ANYBODY. THE COURT: YOU'RE NOT LOSING ANYBODY. I'M KEEPING MY EYE ON THEM. BY MR. FELDMAN:

Q DIRECTING YOUR ATTENTION TO SCREEN PRINT 63 AND 64. WHAT DO 63 AND 64 DEPICT?

A 63 REPRESENTS AGAIN THE SCREEN PRINT OF THE EN CASE VIEW OF THIS PARTICULAR COMPUTER. I'VE HIGHLIGHTED A HOT MAIL MESSAGE. IT'S AGAIN THE GET MESSAGE DOT H.T.M.L. THEN 64 IS THE MESSAGE ITSELF. IT'S TO D. N. WEST AT HOT MAIL DOT COM. IT'S FROM EDITOR AT NEWSLETTER DOT PINK FOR FREE DOT COM.

Q 65 AND 66. DID I JUST COVER THOSE? I'M SORRY.

A THAT WAS 63 AND 64.

Q OKAY. 65 AND 66.

A 65 IS A SCREEN PRINT SHOWING -- IT'S ABBREVIATED HERE BECAUSE OF THE -- IT'S KEEPING THE TEXT WITHIN THE ROW. BUT IT'S AN H.T.M.L. FILE CALLED DAILY DASH TOON. AND AGAIN IT'S 12/15/01 AT 8:22 P.M. 66 IS GOING TO BE WHAT WAS ON THAT PAGE ON THE DAILY-TOON PAGE. AND IT SAYS HOT, AND THIS IS THE WORD I WAS STRUGGLING TO PRONOUNCE, HENTAI TOONS.

Q OKAY.

A REFERRING TO JAPANESE PORNOGRAPHIC CARTOONS. THE COURT: WOULD YOU SPELL THAT FOR MY REPORTER, PLEASE. THE WITNESS: YES, SIR. CAPITAL H-E-N-T-A-I. THE COURT: THANK YOU. BY MR. FELDMAN:

Q 65 AND 66. I'M SORRY. WE JUST COVERED THOSE.

A YES.

Q 67 INDICATES WHAT?

A 67 IS AN IMAGE THAT CAME -- AS WE SEE, AS YOU -- I DON'T KNOW IF YOU CAN SEE IT FROM THAT FAR AWAY, BUT WHEN EN CASE RECOVERS THE H.T.M.L. FILE, IT WILL PUT X'S WHERE THERE ARE NORMALLY PICTURES. IT DOESN'T RECOVER THE PICTURE AS WELL. THE PICTURE IS RECOVERED SEPARATELY BECAUSE IT'S ACTUALLY A SEPARATE FILE. SO WHAT YOU'RE LOOKING AT WITH 67 IS THE IMAGE THAT GOES WITH THAT FILE.

Q NOW, AT 67 IT APPEARS AS THOUGH THERE'S AN ACCESS DATE THAT'S REFLECTED OF 2/4/02.

A YES, SIR.

Q CAN YOU TELL WHAT TIME?

A THE LAST ACCESS DATES DON'T CARRY A TIME STAMP. JUST THE DATE STAMP.

Q OKAY. SO WHAT WE SEE ON 67 IS AN INDICATION THAT THIS PARTICULAR FILE WAS LAST ACCESSED DECEMBER THE 4TH -- I'M SORRY -- FEBRUARY THE 4TH, IS THAT RIGHT?

A THAT'S CORRECT.

Q IT INDICATES IT WAS LAST WRITTEN DECEMBER 15TH, 2001, IS THAT RIGHT?

A THAT'S CORRECT.

Q AND THEN IT SAYS FILE CREATED DECEMBER 15TH, 2001.

A THAT'S CORRECT.

Q WHAT DOES 68 DEPICT?

A 68 DEPICTS AN H.T.M.L. PAGE AS WE SAID. IT'S A -- IT'S DEPICTING A PARTICULAR WEB PAGE THAT WAS ACCESSED ON THIS COMPUTER ON 12/15/01 AT 8:22 P.M. IN THE EVENING. THEN SCREEN PRINT 69 --

Q I'M SORRY. SCREEN PRINT 69. LET'S STOP ON THAT ONE. WITH REGARD TO SCREEN PRINT 69, WHAT'S IT CALLED?

A IT'S EXTREME ASIAN BONDAGE. TOTALLY UNCENSORED.

Q SAYS THE MOST SEXUALLY PERVERTED SITE ON LINE, IS THAT RIGHT?

A YES, SIR.

Q I'M SORRY. WHERE DID THIS SCREEN PRINT COME FROM?

A THIS IS THE H. P. COMPUTER IN THE DEFENDANT'S OFFICE.

Q AND WHO DO YOU THINK OR DO YOU HAVE -- WHOSE -- ARE YOU ABLE TO TELL, BASED ON YOUR INVESTIGATION, WHO THE LIKELY SOURCE OF THIS PARTICULAR SCREEN PRINT WAS? MR. CLARKE: OBJECTION. NO FOUNDATION. THE COURT: WELL, YOU CAN SAY WHAT HE FINDS ON THE RECORD, BUT WHO IT WAS, WE DON'T KNOW. SO BE MORE SPECIFIC IN YOUR QUESTIONING. BY MR. FELDMAN:

Q WITH REGARD TO 69, SCREEN PRINT 69, SCREEN PRINT 69 COMES FROM A SERIES OF SCREEN PRINTS THAT YOU'VE PREVIOUSLY BEEN ABLE TO LINK TO A PARTICULAR INDIVIDUAL'S E-MAIL ADDRESS, IS THAT CORRECT?

A ACCORDING TO THE DATE AND TIME, YES, SIR.

Q AND WITH REGARD TO THE LINKS THAT YOU'VE MADE WITH REGARD TO THE PARTICULAR INDIVIDUAL AND HIS E-MAIL ADDRESS, WHO IS THAT INDIVIDUAL WHO MAY, BASED ON YOUR INVESTIGATION AND PROFESSIONAL EXPERIENCE, BE RESPONSIBLE IF YOU ARE ABLE TO FORM THAT OPINION? MR. CLARKE: SAME OBJECTION AS PHRASED. THE COURT: AS PHRASED, SUSTAINED. BY MR. FELDMAN:

Q ARE YOU ABLE TO FORM AN OPINION AS TO WHO THE SOURCE OF SCREEN PRINT 69 MAY BE? MR. CLARKE: SAME OBJECTION. THE COURT: IT'S NOTED. I THINK YOUR EXPERT KNOWS WHAT HE'S BEING ASKED, BUT YOU'RE HAVING A LITTLE TROUBLE GETTING THERE, MR. FELDMAN. TRY IT AGAIN. MR. FELDMAN: TIME OUT, PLEASE. THE COURT: ALL RIGHT. BY MR. FELDMAN:

Q WHAT WAS THE E-MAIL ADDRESS FROM WHICH YOU OBTAINED THE INFORMATION?

A D. N. WEST AT HOT MAIL DOT COM.

Q AND 69 CAME FROM D. N. WEST AT HOT MAIL DOT COM.?

A NO.

Q WHERE DID IT COME FROM?

A D. N. WEST AT HOT MAIL DOT COM. AND PIGGS-HAUSE DOT COM. WERE ACCESSED ON 12/15/01 AT SEVEN -- BEGINNING AFTER 7:00 O'CLOCK IN THE EVENING, 7:11, 7:09, 8:26. SCREEN PRINT 69 WAS ACCESSED ON 12/15/01 AT 8:22 P.M., WHICH IS THE SAME TIME THAT THE D. N. WEST WAS CHECKING HIS HOT MAIL. DOES THAT MAKE SENSE?

Q YES. IT MAKES SENSE. SO WITHOUT FORMING AN OPINION WHAT YOU'RE TELLING US IS IT APPEARS AS THOUGH SOMEBODY IS ENGAGING IN ACTIVITY IN PARTICULAR TIMES THAT YOU HAVE JUST TOLD US ABOUT. IS THAT A FAIR STATEMENT?

A YES, SIR.

Q AND AMONG THE ACTIVITY THAT HE OR SHE IS ENGAGING IN OUT COMES EXTREME ASIAN BONDAGE, IS THAT RIGHT?

A CORRECT.

Q WITH REGARD TO SCREEN PRINTS 69 THROUGH 74, SIR, THOSE SCREEN PRINTS DEPICT SOME OF THE WHAT, SITES THAT ONE CAN VISIT VIA SCREEN PRINT 69?

A AS WE WERE DISCUSSING WITH THE PREVIOUS H.T.M.L. PAGE THAT WE LOOKED AT, THE SOFTWARE DOES NOT PUT THE IMAGE IN THE PAGE ITSELF. THE IMAGE IS A SEPARATE FILE AND THUS IS RECOVERED SEPARATELY. SO THESE ARE -- BECAUSE THEY WERE ALL ACCESSED AT EXACTLY THE SAME TIME, 8:22, THESE ARE GOING TO BE IMAGES THAT WERE ON THIS PAGE. AND THEY WERE RECOVERED AS SEPARATE FILES. THEY ARE I THINK KIND OF HARD TO SEE FROM FAR AWAY. THEY BASICALLY DISPLAY BONDAGE-TYPE IMAGES.

THE COURT: OKAY. LET'S TAKE THE MORNING BREAK. LADIES AND GENTLEMEN, PLEASE REMEMBER THE ADMONITION OF THE COURT NOT TO DISCUSS ANY OF THE EVIDENCE OR TESTIMONY AMONG YOURSELVES OR WITH OTHERS NOR FORM OR EXPRESS ANY OPINION ON THE CASE UNTIL IT IS SUBMITTED TO YOU FOR DECISION. PLEASE BE OUTSIDE THE DOOR AT A QUARTER TO 11:00. 10:45, PLEASE. (RECESS, 10:30 O'CLOCK, A.M., TO 10:45 O'CLOCK, A.M.)

THE COURT: OKAY, LADIES AND GENTLEMEN.

2 OKAY, MR. FELDMAN.

3 MR. FELDMAN: THANK YOU, YOUR HONOR.

4 Q. SIR, I'D LIKE TO DIRECT YOUR ATTENTION NOW TO

5 SCREEN PRINT 75 AND 76.

6 CAN YOU TELL ME WHAT DID YOU INTEND THAT SCREEN

7 PRINT 75 AND 76 TO DEPICT? WHAT DO THEY DEPICT?

8 A. SCREEN PRINT 75 IS AGAIN THE SCREEN CAPTURE OF THE

9 ENCASE VIEW OF THIS COMPUTER AND IT'S HIGHLIGHTED IN HTML FOR

10 HOT MAIL.

11 Q. AND THE DATE OF THE HOT MAIL IS?

12 A. 1/7/02.

13 Q. WHOSE HOT MAIL?

14 A. THAT'S ON SCREEN PRINT 76 IS THE ACCESSING, THAT

15 PAGE ITSELF IT'S A HOT MAIL -- IT'S THE HOT MAIL IN BOX ACTUALLY
16 FOR D. N. WEST AT HOT MAIL DOT COM.

17 Q. ALL RIGHT.

18 SCREEN PRINT 77 AND 78, SIR, WHAT DO THEY SHOW?

19 A. SCREEN PRINTS BOTH 77 AND 78 ARE INDIVIDUAL IMAGE
20 FILES SHOWING THE LAST WRITTEN IN FILE CREATED DATES OF 1/7/02
21 AT 10:14:54 P.M. THEY ARE IMAGES OF -- I WOULDN'T CONSIDER THEM
22 PORNOGRAPHY -- NAKED WOMEN.

23 Q. SIR, THEY'RE CALLED J PEGS AS OPPOSED TO HTML
24 FILES. IS THAT OF ANY PARTICULAR CONSEQUENCE TO YOU?

25 A. WELL, AS WE DISCUSSED BEFORE, THE IMAGE FILES ON A
26 GIVEN WEB PAGE ARE SEPARATE FILES FROM THE HTML FILE, WHICH IS
27 THE PAGE ITSELF, AND ARE OFTEN RECOVERED SEPARATELY. SO WHEN
28 ONE SEES THE HTML PAGE OR AN N. H. M. L. PAGE, THOSE ARE .

7073

1 ACCESSED AT THE SAME TIME, THEN THOSE ARE GOING TO BE THE IMAGES
2 THAT LIKELY CAME FROM THAT PAGE.

3 Q. IN OTHER WORDS STILLS, IS THAT A FAIR WAY TO
4 DESCRIBE THEM?

5 A. YES.

6 Q. ALL RIGHT.

7 DIRECTING YOUR ATTENTION TO SCREEN PRINT 79 AND 80,

8 WHAT DO SCREEN PRINTS 79 AND 80 SHOW, SIR?

9 A. SCREEN PRINT 79 IS A -- IT'S A HTML PAGE, A WEB
10 PAGE, THAT WAS ACCESSED ON THIS COMPUTER ON 1/7/02 AT 10:15
11 P.M., SCREEN PRINT 80 IS THE PAGE ITSELF DISCUSSING FREE HARD

12 CORE ACTION.

13 Q. WAIT A MINUTE.

14 SCREEN PRINT 80 HAS MORE THAN JUST HARD CORE ACTION

15 ON IT, DOESN'T IT?

16 MR. CLARKE: I THINK COUNSEL'S ARGUING WITH THE WITNESS,

17 YOUR HONOR.

18 THE COURT: JUST ASK HIM A QUESTION.

19

20 BY MR. FELDMAN:

21 Q. WHAT ELSE DOES SCREEN PRINT 80 DEPICT?

22 A. A NUMBER OF WHAT APPEAR TO BE LINKS TO SPECIFIC

23 PORNOGRAPHIC INTERESTS, SUCH AS "GIRLS WITH ANIMALS," "SQUIRTING

24 EJACULATIONS," "DRINK MY PISS." THERE'S NINE OF THEM.

25 Q. WHAT YOU'RE TELLING US IS THE INTERNET HAS A

26 VARIETY OF THINGS THAT NOT ALL OF US MIGHT BE INTERESTED IN?

27 A. THAT'S VERY TRUE, YES.

28 Q. BUT THAT ARE EASILY ACCESSIBLE? .

7074

1 A. THAT'S CORRECT.

1 Q. AND THE WAY -- AND I'M SORRY, WHEN YOU'RE TELLING

1 ME THAT 79 WAS THE PAGE THAT YOU COULD UTILIZE TO GET TO 80 --

4 A. NO. WHAT I MEANT TO SAY, IF I MISSPOKE --

5 Q. PLEASE. NO.

6 A. -- IS THAT 79 IS -- WHAT SCREEN PRINT 79 IS IS

7 WHERE -- I'M SHOWING THAT THIS PARTICULAR PAGE WAS FOUND AND IS

8 PLACED IN THE COMPUTER ON 1/7/02 AT 10:15 P.M., WHICH IS AT THE

9 SAME TIME THAT BACK HERE ON SCREEN PRINT 76, THAT D. N. WEST HOT BR>
10 MAIL WAS ACCESSED. AND THEN SCREEN PRINT 80 IS ACTUALLY THE

11 PAGE ITSELF, WHICH IS OFTEN THE CASE IN THIS BOOK. I'M SHOWING
12 WITH THE FIRST SCREEN PRINT WHERE IT WAS IN THE COMPUTER, AND
13 THEN THE SECOND SCREEN PRINT IS THE PAGE ITSELF.

14 Q. SIR, DIRECTING YOUR ATTENTION TO SCREEN PRINT 81,
15 WHAT DOES SCREEN PRINT 81 SHOW?

16 A. SCREEN PRINT 81 IS ANOTHER GIF MESSAGE HTML FILE
17 FOR HOT MAIL ON 1/7/02 AT 10:16P.M.

18 Q. WHOSE HOT MAIL?

19 A. THAT IS -- ON SCREEN PRINT 82 IT IS THE HOT MAIL
20 FOR D. N. WEST AT HOT MAIL DOT COM.

21 Q. AND WHAT IS 82 SHOWING?

22 A. IT'S A -- IT'S A MAIL THAT WAS RECEIVED FROM D. N.
23 WEST. IT'S FROM DANIEL, D-A-N-I-E-L --

24 Q. BE CAREFUL. I'M SORRY, I DON'T KNOW THE AGE OF THE
25 SOURCE AND I THINK YOU SHOULD USE JUST PLEASE THE LAST
26 INITIAL -- THE FIRST INITIAL OF THE LAST NAME ON THAT ONE SO IT
27 DOESN'T GO OUT ON NATIONAL.

28 A. OH, IT'S OKAY. I UNDERSTAND. IT'S -- I DON'T MEAN .

7075

1 TO INSINUATE THAT THIS IS LIKE A PERSON'S NAME.

1 Q. OKAY.

1 A. IT'S A NUMBER. AND IT'S VERY LIKELY IS WHAT'S
4 REFERRED TO AS SPAM E-MAIL. IT'S PORNOGRAPHIC SPAM E-MAIL THAT
5 WAS RECEIVED IN THE HOT MAIL ACCOUNT THAT DANIEL DOESN'T MEAN
6 ANYTHING IN PARTICULAR.

7 Q. OKAY. WE'RE A LITTLE SENSITIVE AROUND HERE ON
8 THAT.

9 A. I UNDERSTAND.

10 Q. I'M SORRY, YOU USED ANOTHER WORD, THOUGH, "SPAM."

11 WHAT'S THAT, OTHER THAN FOOD?

12 A. SPAM IS THE -- ALL THE UNWANTED MAIL THAT PEOPLE
13 GET IN THEIR INBOXES. AND THAT CAN HAPPEN WITH HOT MAIL, THAT
14 CAN HAPPEN WITH YOUR OWN PRIVATE E-MAIL PROVIDER, WITH THE
15 INTERNET PROVIDER. IT'S BASICALLY UNSOLICITED MAIL THAT PEOPLE
16 GET.

17 Q. SO EVEN IF YOU HAVE AOL, FOR INSTANCE, YOU GET
18 SPAM?

19 A. YES.

20 Q. I'M SORRY, I DIDN'T MEAN TO INTERRUPT YOU.

21 DIRECTING YOUR ATTENTION TO SCREEN PRINTS 83
22 THROUGH 86, WHAT DO THOSE SCREEN PRINTS DEPICT?

23 A. OKAY. WHAT I WAS ATTEMPTING TO SHOW WITH THE
24 SCREEN PRINTS IS THAT WE SEE THE GET MESSAGE WHICH APPEARS TO BE
25 THIS PIECE OF SPAM PORNOGRAPHIC E-MAIL.

26 AT THE BOTTOM OF SCREEN PRINT 82 IT TALKS ABOUT --
27 I HATE TO DO THIS IN COURT, BUT IT TALKS ABOUT YOUNG GIRLS
28 FUCKING AT SCHOOL. THEN SCREEN PRINT 83 -- .

7076

1 Q. JUST A MINUTE, I'M SORRY. IN COURT OR NOT, I WANT
1 TO STOP YOU THERE. JUST BECAUSE THERE'S AN ADVERTISEMENT THAT
1 YOUNG GIRLS ARE DOING SOMETHING SOMEPLACE, DOES THAT MAKE IT

4 TRUE?

5 MR. CLARKE: OBJECTION, LACK OF FOUNDATION.

6 THE COURT: OVERRULED.

7 YOU CAN ANSWER.

8 THE WITNESS: NO.

9

10 BY MR. FELDMAN:

11 Q. IS THERE SOME -- JUST BASED ON YOUR EXPERIENCE IN

12 THE INTERNET, AND BASED ON YOUR PROFESSIONAL EXPERIENCE, IF A

13 SITE CLAIMS TO HAVE TEENAGERS, SAY, DOES THAT MEAN THAT THERE'S

14 REALLY TEENAGERS THERE?

15 A. MORE TIMES THAN NOT -- THEY MAY BE TEENAGERS BUT

16 THEY'RE 18, 19, THEY'RE OF LEGAL AGE. AND MOST AMERICAN, AND BY

17 "AMERICAN" I MEAN DOT COM PORNOGRAPHIC WEB SITES THAT OFFER TEEN

18 PICTURES WILL HAVE THAT DISCLAIMER ON THE FRONT OF THEIR PAGE

19 SAYING THAT ALL ACTORS ON THE PAGE ARE 18 OR OVER AND THEIR

20 IDENTIFICATION IS ON FILE IN ACCORDANCE WITH FEDERAL LAW.

21 Q. SO SOMETHING -- FOR INSTANCE, IF THERE'S A SITE

22 CALLED "LOLITA DOT COM," DOES THAT NECESSARILY MEAN THAT THAT

23 PARTICULAR WEB SITE WOULD CONTAIN UNDERAGE CHILDREN?

24 A. ACTUALLY, I KNOW SPECIFICALLY THAT LOLITA DOT COM

25 IS AN -- IT'S A SITE FOR ADULT PORNOGRAPHY LINKS. IF YOU GO TO

26 LOLITA DOT COM, IN FACT, I BELIEVE IT HAS A BANNER SAYING IF

27 YOU'RE HERE TO FIND CHILD PORNOGRAPHY YOU'RE LOOKING IN THE

28 WRONG PLACE, AND IT HAS LINKS TO OTHER ADULT SITES. .

7077

1 Q. SO DOES THAT MEAN THAT IF WE SAW A PICTURE THAT
2 SAID LOLITA DOT COM AT THE BOTTOM, THAT WOULD NOT NECESSARILY
3 INFER AGE?

4 A. NO.

5 Q. WHEN YOU SAY NO, YOU AGREE?

6 A. I AGREE WITH YOU. IT WOULD NOT NECESSARILY.

7 Q. I'M SORRY, I KNOW THAT I INTERRUPTED YOU. YOU WERE
8 TELLING US ABOUT 82 I THINK AND MOVING TO 83 -- OR ACTUALLY 83
9 TO 86?

10 A. RIGHT. WE HAD SAID THAT 82 WAS WHAT APPEARED TO BE
11 APPARENTLY A PIECE OF PORNOGRAPHIC SPAM, E-MAIL, THAT WAS
12 RECEIVED BY D. N. WEST. AND THEN 83, 84, 85 86, AND IT'S
13 STOPPING AT 86, ARE -- WHAT IT WOULD APPEAR IS THAT THE
14 PERSON -- THAT D. N. WEST CLICKED ON THE SCHOOL GIRLS LINK AND
15 THEN WAS ACCESSED AND THEN ACCESSED THIS PARTICULAR PAGE, WHICH
16 IS THE SCHOOL GIRLS/UNDERSCORE INDEX HTML WEB PAGE, WHICH TALKS
17 ABOUT TEENAGERS FUCKING AT SCHOOL.

18 Q. THAT WOULD BE 84, IS THAT RIGHT?

19 A. CORRECT.

20 Q. WITH REGARD TO 84, IT APPEARS AS THOUGH THERE'S
21 SOME -- FIRST OF ALL, IT DOESN'T LOOK LIKE THE WRITER, THE
22 AUTHOR OF THE PAGE IS A VERY GOOD SPELLER. ISN'T THE WORD
23 "SCHOOL" MISSPELLED?

24 A. I HADN'T NOTICED THAT, YES.

25 Q. AND THERE IS A DISCLAIMER ON THIS PARTICULAR SCREEN

26 PRINT 84 THAT SAYS ABSOLUTELY NO MINORS BEYOND THIS POINT, IS 27 THAT
RIGHT?

28 A. THAT'S CORRECT. .

7078

1 Q. SO THIS -- IS THE SITE TRYING TO PROTECT ITSELF?

2 WHY IS THIS HERE?

3 A. I'M NOT SEEING THE -- SOME OF THE LANGUAGE THAT I

4 SEE ON SOME OF THESE PAGES SAYS THAT THE IDENTIFICATIONS ARE ON

5 FILE IN ACCORDANCE WITH FEDERAL LAW. AND I ASSUME THAT THE WEB

6 PROGRAMERS PUT THAT ON THERE TO PROTECT THEMSELVES FROM GETTING

7 IN TROUBLE WITH FEDERAL LAW ENFORCEMENT.

8 Q. ALL RIGHT.

9 85 AND 86, SIR, DID I GIVE YOU A CHANCE TO

10 COMPLETE?

11 A. 85 AND 86 WERE PARTICULAR IMAGES THAT WERE ON THAT

12 PAGE. AGAIN, THEY WERE ACCESSED AT 10:16DOT 48 -- OR EXCUSE ME

13 10:16:48 P.M., AT THE SAME TIME THAT THE PAGE ITSELF WAS

14 ACCESSED, AND THERE ARE INDIVIDUAL PICTURES THAT WOULD HAVE

15 LIKELY HAVE BEEN ON THAT PAGE.

16 Q. SCREEN PRINTS -- AT APPROXIMATELY 10:17 P.M. DID

17 YOU NOTE SOME ACTIVITY, SCREEN PRINT 87?

18 A. YES, SIR. IT'S SHOWING A -- WHAT I'VE HIGHLIGHTED

19 AGAIN IS THE SCREEN PRINT OF THE ENCASE VIEW SHOWING THE -- AND

20 IT'S HIGHLIGHTING AN HTML FILE CALLED "ANIMAL SEX UNDERSCORED

21 DOT INDEX" AND THAT IS AT >1/7/02 AT 10:17:22, AND THEN SCREEN

22 PRINT 88 IS THE PAGE ITSELF TALKING ABOUT BIZARRE ANIMAL SEX.

23 Q. 88 THROUGH 95, WHAT DO THEY DEPICT?

24 A. 88 WAS THE ONE WE JUST DISCUSSED, THE ANIMAL SEX

25 WEB PAGE.

26 89 IS, AGAIN, AN INDEX DOT HTML FILE RELATED TO -- 27 I BELIEVE TO THE D.
N. WEST HOT MAIL WHICH -- NO, IT'S NOT, I'M

28 SORRY. IT'S INDEX DOT HTML. THE TIME IS AGAIN 10:17:34, AND ON .

7079

1 THE FOLLOWING PAGE IS THE FILE ITSELF.

2 Q. SORRY, NUMBER?

3 A. I'M SORRY, PAGE 90 --

4 Q. ALL RIGHT.

5 A. -- IS THE ACTUAL HTML FILE ITSELF.

6 Q. IT SAYS "GIRLS WITH ANIMALS LIKE NEVER SEEN

7 BEFORE"?

8 A. YES.

9 Q. OKAY. 91?

10 A. IS AN IMAGE. THE TIME AGAIN IS 10:17:36, SO IT'S

11 GOING TO BE ACCESSED AT THE SAME TIME THE PAGE IS ACCESSED.

12 AND, AS WE DISCUSSED, THE PAGE IS A SEPARATE FILE FROM THE

13 IMAGES, SO THESE ARE GOING TO BE IMAGES THAT WERE ON THE PAGE.

14 Q. AND THE IMAGES, THEY'RE JUST IN NUMBERS OR, FOR

15 INSTANCE, THEY SAY DEMO OR JUNGLE OR ET CETERA, IS THAT RIGHT?

16 A. NUMBER SCREEN PRINT 92 SAYS DEMO DOT J PEG. I

17 TRIED TO INCLUDE FAIRLY INNOCUOUS IMAGES.

18 Q. VOCABULARY?

19 ALL RIGHT. 93, SIR?

20 A. 93 IS AGAIN ON 1/7/02. IT'S AN HTML FILE FROM THE

21 COMPUTER SHOWING ACCESS AT 10:17:46 AND IT'S HARD CORE BEAST

22 ACTION; DONKEYS, SNAKES, HORSES, DOGS.

23 Q. I'M SORRY, WHICH PRINT ARE YOU ON?

24 A. I'M SORRY, 94.

25 Q. ALL RIGHT.

26 95? 27 A. IS A J PEG, AN IMAGE FILE FROM THE PAGE. IT'S

28 ACCESSED AT THE SAME TIME, 10:17:46, AND IT'S A WOMAN AND A .

7080

1 HORSE BUT IT'S AN INNOCUOUS PICTURE.

2 Q. WHY IS IT INNOCUOUS?

3 A. IT'S JUST -- IT'S THE POLICY OF MY OFFICE WHEN WE

4 MAKE THESE SCREEN PRINTS TO NOT REPRODUCE HARD CORE PORNOGRAPHY

5 UNLESS IT'S NECESSARY, UNLESS IT'S VERY, VERY IMPORTANT TO MAKE

6 A POINT. WE JUST WOULD PREFER TO -- IF WE HAVE TO MAKE A

7 DEMONSTRATION WITH THE TYPE OF PICTURE, I WOULD PREFER TO USE

8 SOMETHING THAT'S MORE INNOCUOUS OR SCREEN PRINT THE REPORT

9 ITSELF.

10 Q. WHY ARE YOU DESCRIBING IT AS IT BEING INNOCUOUS?

11 A. THERE'S NO SEXUAL ACTS. IT'S JUST A NAKED WOMAN

12 AND A HORSE.

13 Q. ALL RIGHT. BEFORE WE MOVE ON, I JUST WANT TO ASK

14 YOU A QUESTION.

15 SOME OF THE ACCESS TIMES YOU'RE INDICATING ARE VERY

16 CLOSE IN TIME TO EACH OTHER.

17 DO YOU UNDERSTAND WHAT I'M SAYING?

18 A. I THINK SO.

19 Q. IS THERE A DIFFERENCE BETWEEN, SAY, A CABLE MODEM

20 AND A STANDARD MODEM?

21 A. YES.

22 Q. WHAT'S THAT DIFFERENCE?

23 A. WHEN MOST PEOPLE REFER TO STANDARD MODEMS THEY'RE

24 TALKING ABOUT THEIR DIAL-UP MODEM, WHICH IS MOST COMMON. IT'S

25 WHAT MOST PEOPLE IN THE UNITED STATES HAVE, AND IT'S WHERE A

26 PERSON USES THEIR TELEPHONE LINE TO DIAL INTO THE INTERNET 27
THROUGH AN INTERNET PROVIDER.

28 Q. SO IF I HAD A PICTURE THAT WAS JUST ONE OF THESE J .

7081

1 PEGS THAT WE'VE SEEN THAT WAS EIGHT BY ELEVEN, SAY, AND I USED

2 THE DIAL-UP, DO YOU HAVE ANY OPINION HOW LONG IT MIGHT TAKE ME

3 TO DOWNLOAD IT?

4 A. IT REALLY DEPENDS ON THE SPEED OF YOUR DIAL-UP. I

5 WAS ON THE INTERNET LAST NIGHT TALKING TO MY WIFE, AND THE SPEED

6 IN THE HOTEL ROOM WAS 14.6 KILOBYTES PER SECOND, WHICH IS VERY,

7 VERY SLOW. IN MY OFFICE WE HAVE A DIAL-UP MODEM STILL AND IT

8 RUNS AT 56, 56 KILOBYTES PER SECOND.

9 Q. HOW ABOUT CABLE MODEMS?

10 A. THEY'RE CONSIDERABLY FASTER. OFF THE TOP OF MY

11 HEAD I CAN'T GIVE YOU THE EXACT NUMBER OF KILOBYTES PER SECOND

12 BUT IT'S GOING TO BE THREE OR FOUR TIMES THE SPEED OF A DIAL-UP

13 MODEM.

14 Q. OR IF SOMEBODY HAS -- ARE YOU FAMILIAR WITH THE

15 SPEED OF, SAY, ROAD RUNNER?

16 A. I KNOW ROAD RUNNER TO BE A CABLE SERVICE BUT I --

17 IN THOSE SERVICE BOTH DSL AND CABLE ARE CONSIDERABLY FASTER THAN

18 DIAL-UP MODEMS.

19 Q. SO IF IT TOOK FIVE MINUTES TO DIAL UP ON A 14.4, IT

20 MIGHT TAKE FIVE SECONDS BY CABLE?

21 A. EXACTLY, WHICH IS WHY PEOPLE SPEND MORE MONEY TO

22 BUY CABLE MODEMS.

23 Q. ALL RIGHT.

24 NOW, SIR, DIRECTING YOUR ATTENTION TO SCREEN PRINTS

25 96 THROUGH 99, THESE ARE IMAGES THAT YOU OBSERVED AS ACCESSED

26 1/7/02 AT APPROXIMATELY THE SAME TIMEFRAME AS THE OTHERS.

27 COULD YOU TELL ME WHAT DID YOU INTEND TO

28 COMMUNICATE BY THESE PHOTOS, PLEASE? .

7082

1 A. PHOTOS THAT WERE ON THE PAGE THAT WE SCREEN PRINTED

2 EARLIER. JUST SAMPLES OF IMAGES THAT WERE FOUND.

3 Q. IN REGARD TO THE JANUARY 7TH ACTIVITY THAT YOU

4 DOCUMENTED, WHAT IS THE SIGNIFICANCE OF THIS?

5 A. WHAT I WANTED TO SHOW WITH THE SCREEN PRINTS WAS

6 THAT D. N. WEST HAD CHECKED HIS E-MAIL AT THE SPECIFIC TIME, AND

7 THEN RELATED TO THAT SPECIFIC TIME WHERE IT WAS -- THE ACCESS TO

8 THESE OTHER PORNOGRAPHIC WEB SITES AND THE IMAGES THAT ARE

9 INCLUDED ARE TO DEMONSTRATE THE TYPES OF IMAGES THAT WERE ON THE

10SITES THAT WERE ACCESSED.

11 Q. ALL RIGHT, SIR.

12 DIRECTING YOUR ATTENTION TO SCREEN PRINTS 100 AND

13 101, WHAT ARE THESE SCREEN PRINTS OF? AND IF YOU CAN SEQUENCE

14 IT, WE CAN GO FROM 100 THROUGH 103 OR -4, DEPENDING ON YOUR -- I

15 MEAN, AS LONG AS YOU CAN ARTICULATE IT WHERE I'M ASKING YOU A
16 QUESTION AND ALLOW YOU TO FLOW WITH IT.

17 A. IT'S ACTUALLY 100 THROUGH 103, 104 -- THROUGH 104.

18 Q. YES, SIR?

19 A. AGAIN, IT'S A SCREEN PRINT OF THE ENCASE VIEW OF
20 THE COMPUTER, AND IT'S SHOWING THAT ON >9/20 THE YEAR 2000, AT
21 6:57:30, SCREEN PRINT 101 SHOWS THAT D. N. WEST CHECKED HIS HOT
22 MAIL AT HOT MAIL DOT COM, RECEIVED A MESSAGE, WHICH IS THIS HTML
23 FILE HERE. THE MESSAGE STATES -- AND THIS IS THE MESSAGE
24 SCREEN. PRINT 103 IS THE MESSAGE. IT STATES "CONGRATULATIONS
25 FOR JOINING FREE DRIVE, A FUN PLACE TO BE." IT SHOWS A USER
26 NAME OF D. N. WEST 1 AND A PASSWORD OF 5203. IT SAYS THE USER
27 NAME AND PASSWORD ARE CASE SENSITIVE.
28 AND FREE DRIVE IS A WEB BASED STORAGE MEDIUM FOR .

7083

1 FILES. IF A PERSON WISHES TO STORE FILES OTHER THAN IN THEIR
2 COMPUTER THEY CAN BE STORED -- PEOPLE WILL RENT SPACE ON THE
3 INTERNET THAT WILL ALLOW YOU TO STORE FILES ON THEIR HARD DRIVE
4 INSTEAD OF YOUR OWN. THAT'S WHAT FREE DRIVE IS.
5 AND THEN SCREEN PRINT 104 WOULD APPEAR TO BE THE
6 BEGINNING OF THE UPLOAD OF FILES TO THIS FREE DRIVE DOT COM WEB
7 SITE.

8 Q. NOW, SIR -- I'M SORRY, DID I GIVE YOU A CHANCE TO
9 FINISH?

10 A. YEAH.

11 Q. I'D NOW LIKE TO DIRECT YOUR ATTENTION TO SCREEN

12 PRINTS 105 TO 108. MY FIRST QUESTION WITH REGARD TO THE
13 ACTIVITY IS WHAT WAS THE DATE OF THE DOWNLOAD THAT YOU'RE
14 TRACKING?

15 MR. CLARKE: OBJECTION, ASSUMES FACTS NOT IN EVIDENCE.

16 THE COURT: YOU CAN GIVE US THE DATE AND TIME DISCLOSED,
17 SIR.

18 THE WITNESS: OKAY. AGAIN, IT'S, AS WE'VE BEEN SEEING
19 WITH THE HOT MAIL HTML FILES, THIS IS ON FEBRUARY 4TH, 2002, AT
20 4:50:34 SECONDS IN THE AFTERNOON. IT'S AN ACCESS TO HOT MAIL.
21 SCREEN PRINT 106 IS THAT PARTICULAR FILE ITSELF,
22 AND IT IS D. N. WEST AT HOT MAIL DOT COM'S HOT MAIL ACCOUNT, HIS
23 INBOX. IT SHOWS JOIN FOR FREE DOT COM. A MESSAGE HAD COME INTO
24 THE INBOX FROM JOIN FOR FREE DOT COM, PASSWORDS AT MP3 DOT COM
25 AND DAVID WESTERFIELD.
26 SCREEN PRINT 107 IS AGAIN FEBRUARY 4TH, 1/4/02,
27 4:45:48 P.M. IN THE AFTERNOON. AND IT IS A -- AGAIN, IT'S INDEX
28 DOT HTML. AND WHAT THIS INDEX DOT HTML FILE IS IS THE E-MAIL .

1 PROGRAM -- E-MAIL SERVICE FOR SAN DIEGO STATE UNIVERSITY. IT
2 SHOWS THE E-MAIL ACCOUNT AS BEING WESTERFI, W-E-S-T-E-R-F-I AT
3 ROHAN DOT SDSU DOT EDU, AND WHICH I WOULD ADMIT IS AN ASSUMPTION
4 ON MY PART, BUT I WOULD ASSUME THAT THAT'S SAN DIEGO STATE
5 UNIVERSITY AND THEIR E-MAIL SERVICE.

6 SO WHAT THESE SCREEN PRINTS ARE SHOWING IS THAT D.

7 N. WEST ACCESSED THIS HOT MAIL AND WESTERFI AT ROHAN DOT SDSU
8 ACCESSED THEIR SDSU E-MAIL AT THE SAME TIME, ROUGHLY.

9 Q. WHAT TIME WAS THAT?

10 A. THIS IS AT 1/4/02, FEBRUARY 4TH, '02 AT 4:45 P.M.

11 Q. ALL RIGHT.

12 DIRECTING YOUR ATTENTION TO SCREEN PRINTS 109

13 THROUGH 111, WHAT ARE YOU -- WHAT DO THEY SHOW?

14 A. SCREEN PRINT 109 IS THE -- IT'S A RECOVERED E-MAIL

15 FROM THE D. N. WEST HOT MAIL ACCOUNT, AND IT SHOWS A -- IT'S

16 FROM JOIN FOR FREE DOT COM AS OPPOSED TO PINK FOR FREE DOT COM,

17 WHICH WAS IN THE EARLIER SCREEN PRINTS. IT'S TO D. N. WEST AT

18 HOT MAIL DOT COM. AND DOWN AT THE BOTTOM IT SAYS THANK YOU FOR

19 JOINING -- OR "THANK YOU FOR SIGNING UP TO JOIN FOR FREE DOT

20 COM. CLICK HERE TO ACTIVATE YOUR PASSWORD."

21 THEN SCREEN PRINT 111 IS A BANNER FROM THAT PAGE.

22 AS WE TALKED ABOUT, BANNERS ARE SEPARATE FROM THE PAGE ITSELF.

23 Q. I'M SORRY. WHAT IS JOIN FOR FREE DOT COM?

24 A. JOIN FOR FREE IS GOING TO BE ANOTHER ADULT

25 PORNOGRAPHIC SITE THAT BASICALLY OFFERS LINKS TO OTHER ADULT

26 PORN SITES.

27 Q. DIRECTING YOUR ATTENTION TO 112 AND 113, WHAT DO

28 112 AND 113 SHOW? . 7085

1 A. 112 IS AN HTML FILE. AGAIN, A SCREEN PRINT OF THE

2 ENCASE VIEW OF THIS COMPUTER. ANOTHER SHOWING DAILY UNDER SCORE

3 TUNE, HTML, THE DATE IS -- THE DATE OF LAST ACCESS IS 1/4/02,

4 THE FILE DATE CREATED IS 1/4/02 AT 4:48 P.M.

5 THEN THE FOLLOWING SCREEN PRINT 113 IS GOING TO BE

6 THE PAGE ITSELF. AND IT'S THE -- IT'S THE SAME PAGE THAT WE SAW

7 EARLIER HOT HENTAI CARTOONS.

8 Q. AND SCREEN PRINTS 114 THROUGH 126, AGAIN, WHAT DO

9 THEY SHOW?

10 I'M SORRY, DID YOU MENTION ANIME' WITH REGARD TO

11 THE LAST SERIES?

12 A. HENTAI, WHICH IS A VERSION OF -- IT'S A TYPE OF

13 ANIME'. IN MY EXPERIENCE, HENTAI SPECIFICALLY REFERS TO

14 PORNOGRAPHIC ANIME'.

15 SCREEN PRINT 114 IS ACCESSING THE HOT MAIL PAGE

16 AGAIN. THE DATE IS 1/4/02, >4:47 P.M. IN THE AFTERNOON.

17 THE FOLLOWING SCREEN PRINT 115 IS TO SHOW WHAT THE

18 PAGE WAS THAT WAS ACCESSED. IT'S THE HOT MAIL ACCOUNT FOR D. N.

19 WEST AT HOT MAIL DOT COM.

20 SCREEN PRINT 116 IS A PARTICULAR MESSAGE THAT D. N.

21 WEST CLICKED ON TO RECEIVE.

22 SCREEN PRINT 117 IS THE MESSAGE ITSELF. IT'S FROM

23 EDITOR AT NEWSLETTER DOT PINK FOR FREEDOM DOT COM, AND IT'S TO

24 D. N. WEST AT HOT MAIL DOT COM.

25 SCREEN PRINT 118 IS THE ACTUAL NEWSLETTER ITSELF.

26 AS YOU CAN SEE, THE SCREEN PRINT STOPS HERE. AND WHAT I DID WAS

27 CONTINUE -- WAS CONTINUE DOWN MAKING SCREEN PRINTS OF THE

28 NEWSLETTER. .

7086

1 Q. SIR, I'M SORRY, YOU SAID "HERE,' BUT FOR OUR RECORD

2 YOU WERE REFERRING TO THE LOWER PORTION --

3 A. THE LOWER PORTION OF SCREEN PRINT 117.

4 Q. THANK YOU VERY MUCH.

5 A. SO 118 IS GOING TO BE A PORTION -- IT'S NOT ALL.

6 AS YOU CAN SEE, THERE WAS -- I COULD HAVE CONTINUED TO SCROLL
7 DOWN BUT I JUST MADE ONE SCREEN PRINT.

8 SCREEN PRINT 119 IS ALSO 1/4/02, 4:47:58 P.M. IT'S

9 A GIF FILE FROM ONE OF THE WEB PAGES, PROBABLY FROM THE PINK FOR
10 FREE PAGE.

11 THE SAME WITH SCREEN PRINT 120.

12 SCREEN PRINT 121.

13 SCREEN PRINT 122 SHOWS FILE CREATED DATE OF 1/4/02

14 AT 4:49 P.M. IN THE AFTERNOON. IT'S A BANNER FOR THE WEB SITE

15 TEENS DOT COM WHICH, AS I RECALL, I DID NOT SEE IN THE PINK FOR

16 FREE NEWSLETTER, BUT I COULD NOT -- I ALSO COULD NOT FIND A

17 PARTICULAR HTML FILE TO MAKE A SCREEN PRINT OF SHOWING WHAT PAGE

18 THAT THAT HAD COME FROM, SO I AM SOMEWHAT UNCERTAIN. I DON'T

19 KNOW IF THIS WAS A NEW PAGE THAT WAS ACCESSED AT PINK DOT COM OR

20 IF IT WAS ON THE PINK FOR FREE PAGE.

21 Q. THE TIME'S PRETTY EXCLUSIVE. THE TIME'S ACCURATE?

22 MR. CLARKE: OBJECTION, LACK OF FOUNDATION.

23 THE COURT: SUSTAINED.

24

25 BY MR. FELDMAN:

26 Q. DO YOU KNOW WHAT TIME THE SCREEN WAS ACCESSED?

27 MR. CLARKE: SAME OBJECTION.

28 THE COURT: OVERRULED. .

7087

1 THE WITNESS: YES. THE TIME REFLECTED HERE ON THE SCREEN

2 PRINT IS THE TIME AND DATE THAT'S GIVEN TO THE FILE WHEN IT'S

3 DOWNLOADED FROM THE INTERNET INTO THE TEMPORARY INTERNET FILE
4 FOLDER OF THE COMPUTER. SO, IF THE CLOCK IS ACCURATE ON THE
5 COMPUTER, THEN THE TIME DATE STAMPS ON ALL THE FILES THAT ARE IN
6 THE COMPUTER ARE GOING TO BE ACCURATE.

7

8 BY MR. FELDMAN:

9 Q. AND THE DATE IS BEING REFLECTED AS 1/4/02 --

10 A. YES.

11 Q. -- ON VIRTUALLY THE LAST SERIES OF SCREEN PRINTS;

12 IS THAT CORRECT?

13 A. YES.

14 Q. THE TIME IS ABOUT 4:58 IN THE AFTERNOON ABOUT?

15 A. CORRECT.

16 Q. OKAY. GOT YOU THERE IN 126?

17 A. SCREEN PRINT 126 IS AGAIN ON 1/4/02. IT'S 4:47

18 P.M. IN THE AFTERNOON IS THE FILE CREATION DATE. IT'S A BANNER

19 FOR A WEB SITE CALLED RAW SEX VIDEOS, AND THAT'S THE END FOR

20 1/4/02.

21 Q. ALL RIGHT.

22 NOW SIR, WE GOT THROUGH 126, RIGHT?

23 A. YES.

24 Q. YOU WERE REQUESTED BY MY OFFICE TO SEE WHETHER OR

25 NOT YOU COULD DETERMINE THE DATE OF FILE CREATION OF A SERIES OF

26 MPEGs CALLED "ATTACK" THAT DEPICTED A YOUNG ASIAN -- AN ASIAN 27
WOMAN ALLEGEDLY BEING RAPED BY INDIVIDUALS.

28 DO YOU RECALL THAT WE ASKED YOU TO DO THAT? .

7088

1 A. YES. MY RECOLLECTION IS THAT I WAS INFORMED THAT
2 THAT WAS -- THAT THOSE PARTICULAR FILES WERE OF INTEREST, THAT
3 THEY HAD BEEN FOUND ON THE PIECES OF LOOSE MEDIA. AND I
4 ATTEMPTED TO DETERMINE IF I COULD FIND WHAT COMPUTER THEY HAD
5 ORIGINALLY BEEN DOWNLOADED TO AND WAS I THINK FAIRLY CERTAINLY
6 ABLE TO DO THAT.

7 Q. NOW, SIR, I'D LIKE TO DIRECT YOUR ATTENTION TO
8 SCREEN PRINTS 127 AND 128. PLEASE TELL THE JURY WHAT IS 127 AND
9 128?

10 A. 127 IS THE SCREEN CAPTURE OF THE REPORT ITSELF.
11 THIS -- THE "ATTACK" VIDEO OR -- WE ARE CALLING THEM VIDEOS, THE
12 PROPER FILE EXTENSION IS MPG AND THAT STANDS FOR COMPUTER VIDEO.
13 THERE WERE -- I'VE FORGOTTEN THE EXACT NUMBER. THERE WERE MORE
14 THAN FOUR, FIVE OR SIX. NOT ALL OF THEM WERE VIEWABLE?

15 Q. YES.

16 A. THEY WERE DOWNLOADED OR THEIR FILE CREATION DATES
17 SHOW 8/5/01 AT 3:42 P.M. IN THE AFTERNOON WITH THE LAST ACCESS
18 DATE OF 11/18/01.

19 Q. ALL RIGHT.

20 A. AND THEN SCREEN PRINT 127, WHAT I ATTEMPTED TO DO
21 THEN, ONCE I KNEW THAT THESE MPEGs HAD BEEN DOWNLOADED ON 8/5/01
22 WAS ATTEMPT TO DETERMINE IF I COULD FIND WHO THE COMPUTER USER
23 WAS ON 8/5/01 AT 3:42 IN THE AFTERNOON.

24 Q. WERE YOU ABLE TO DO SO?

25 A. SCREEN PRINT 128 SHOWS -- THE ONLY THING THAT I WAS
26 ABLE TO FIND THAT WAS STILL AVAILABLE THAT OFFERED ANY KIND OF

27 CLUE TO THAT AT ALL, AND THIS IS A -- IT'S AN ANIME'. ACTUALLY,
28 WHAT YOU'RE LOOKING AT IN SCREEN PRINT 128 IS A GIF, IMAGE FILE. . 7089

1 IT IS AN ANIME' IMAGE. THE FILE CREATED DATE IS 8/5/01. THE

2 TIME IS 1:34:36 P.M.

3 Q. WERE YOU ABLE TO LINK D. N. WEST TO JOINING ANY

4 ANIME' SITE?

5 A. YES.

6 Q. CONSISTENT WITH THE ANIME' SITE DEPICTED IN 128?

7 MR. CLARKE: OBJECTION, VAGUE.

8 THE COURT: SUSTAINED.

9

10 BY MR. FELDMAN:

11 Q. WERE YOU ABLE TO LINK D. N. WEST TO ANY ANIME' SITE

12 WHICH WAS DEPICTED OR MAY BE DEPICTED IN 128, SCREEN NAME 128?

13 MR. CLARKE: SAME OBJECTION.

14 THE COURT: SUSTAINED.

15

16 BY MR. FELDMAN:

17 Q. WHAT, IF ANY, EFFORTS DID YOU MAKE IN AN EFFORT TO

18 LINK WHETHER OR NOT D. N. WEST WAS THE DOWNLOADER OF THE

19 "ATTACK" VIDEO?

20 MR. DUSEK: OBJECTION, ASSUMES FACTS NOT IN EVIDENCE.

21 THE COURT: OVERRULED.

22 WHAT STEPS DID YOU TAKE?

23 THE WITNESS: I'M SORRY. COULD YOU ASK AGAIN?

24

25 BY MR. FELDMAN:

26 Q. WHAT STEPS, IF ANY, DID YOU TAKE TO ATTEMPT TO
27 IDENTIFY WHETHER OR NOT D. N. WEST WAS THE SOURCE OF THE ATTACK
28 MPEG TO WHICH WE'VE MADE REFERENCE IN SCREEN PRINT 127? . 7090

1 A. AS I STATED, WHAT I ATTEMPTED TO DO WAS FIND OUT IF
1 THERE WERE ANY OTHER ACCESSES ON 8/5/01 IN THE AFTERNOON, IN THE
1 EARLY AFTERNOON HOURS OF 8/5/01 THAT WOULD HELP DETERMINE WHO
4 WAS ON THE COMPUTER AT THE TIME.

5 I HAD FOUND NUMEROUS INSTANCES, AND WE'VE DISCUSSED
6 A FEW OF THEM, THAT INDICATED THAT IT WAS D. N. WEST WHO HAD AN
7 INTEREST IN ANIME' PORNOGRAPHY. AND AT 8/5/01 AT 1:34 IN THE
8 AFTERNOON I FOUND THIS FILE, WHICH IS AN ANIME' PORNOGRAPHIC
9 FILE.

10 Q. THANK YOU, SIR.

11 I THINK THE NEXT COMPUTER -- WE GOT YOU THROUGH
12 128, RIGHT?

13 A. CORRECT.

14 Q. YOU ALSO LOOKED AT AN H. P. COMPUTER NO. 1, ANOTHER
15 H. P. COMPUTER THAT WAS REPRESENTED TO YOU TO BE IN THE OFFICE;
16 IS THAT CORRECT?

17 A. THAT'S CORRECT.

18 Q. YOU RECALL -- OR AT LEAST YOU CALLED IT IN YOUR
19 REPORT AN H. P. COMPUTER NO. 1, IS THAT RIGHT, SIR?

20 A. CORRECT.

21 Q. THIS WAS EQUIPPED WITH A 38 GIGABYTE MAXTOR,
22 M-A-X-T-O-R HARD DRIVE, IS THAT RIGHT?

23 A. CORRECT.

24 Q. DIRECTING YOUR ATTENTION TO SCREEN PRINT 129, WHAT

25 DOES 129 SHOW?

26 A. SCREEN PRINT 129 IS SLIGHTLY DIFFERENT THAN THE
27 OTHER HOT MAIL SCREEN PRINTS THAT WE'VE LOOKED AT ON THE H. P.
28 ONE COMPUTER, WHERE WE'RE ACTUALLY ABLE TO SEE THE WEB PAGE . 709

1

1 ITSELF, THE HTML WEB PAGE ITSELF.

1 WHAT I DID, AND I THINK I TESTIFIED TO THIS

1 EARLIER, I OFTEN RUN THE SCRIPT OR A WORD SCRIPT FOR AT HOT MAIL
4 DOT COM WHEN I RECEIVE A PIECE OF MEDIA TO DETERMINE IF I CAN
5 FIND AN INTERNET USER ASSOCIATED WITH A PARTICULAR E-MAIL
6 ACCOUNT WHICH WAS DONE ON THIS COMPUTER. AND IN THE UPPER
7 PORTION OF SCREEN PRINT 129, WHAT I'M SHOWING ARE MY SEARCH HITS
8 FOR THE TEXT AT HOT MAIL DOT COM. AND WHAT I AM SHOWING IN THE
9 BOTTOM HALF OF SCREEN PRINT 129 IS THE PARTICULAR TEXT THAT THE
10 SOFTWARE FOUND THAT'S ASSOCIATED WITH THAT HIT AND ITS E-MAIL
11 FOR D. N. WEST AT HOT MAIL DOT COM. AND IT IS APPARENTLY AN
12 E-MAIL THAT WAS SENT TO A FAMILY IN AUSTRALIA BY NEIL
13 WESTERFIELD THANKING THEM FOR HIS VISIT. AND THEN AT THE BOTTOM
14 OF THE LETTER IT SAYS DAVID NEIL WESTERFIELD. P. S. MY E-MAIL
15 ADDRESS IS D. N. WEST AT HOT MAIL DOT COM. MY DAD'S FAX, AND IT
16 GIVES A FAX NUMBER.

17 Q. ALL RIGHT.

18 A. MY MAILING ADDRESS IS DAVID N. WESTERFIELD, AND IT
19 GIVES THE MAILING ADDRESS.

20 Q. DIRECTING YOUR ATTENTION TO SCREEN PRINTS 134

21 THROUGH 140, SIR, I WANT TO MAKE SURE I HAVEN'T SKIPPED ANY,
22 HAVE I?

23 A. WE WERE JUST TALKING ABOUT 129, RIGHT?

24 Q. YUP.

25 A. 130 WE HAD DISCUSSED PREVIOUSLY AS A SCREEN PRINT

26 OF A -- RECEIVED E-MAIL BY D. N. WEST AT HOT MAIL DOT COM SAYING

27 THANKS FOR JOINING ANIME' DOT COM.

28 Q. ALL RIGHT. .

7092

1 SCREEN PRINTS 130 THROUGH 133, WHAT DO THEY SHOW?

2 A. AS WE JUST SAID, 130 IS THE -- IS SHOWING D. N.

3 WEST AT HOT MAIL DOT COM WITH THE TEXT THANKS FOR JOINING ANIME'

4 DOT COM. IT SHOWS THE E-MAIL ADDRESS OF D. N. WEST AT HOT MAIL

5 DOT COM AND THE NAME DAVID WEST.

6 Q. 134 THROUGH 140, WHAT DO THEY SHOW?

7 A. I'M SORRY, 133, 134.

8 Q. 134. DID I SKIP 133? I DIDN'T MEAN TO DO THAT TO

9 YOU. I KNOW YOU'RE JUGGLING YOUR PAPERS, I'M SORRY.

10 A. OKAY.

11 THESE ARE ALL -- SCREEN PRINT 134 IS A HOT MAIL

12 ACCESS AND AGAIN, IT'S NOT THE TEXT SEARCH. THIS IS THE PAGE

13 ITSELF, HOT MAIL HTML PAGE?

14 Q. YES.

15 A. SCREEN PRINT 135 IS THE INBOX FOR D. N. WEST AT HOT

16 MAIL DOT COM ON 10/28/01.

17 AT 10/28/01, WHAT I'VE HIGHLIGHTED HERE IS ANOTHER

18 HTML FILE THAT I FOUND, AND I HAVE BOLDED OR HIGHLIGHTED, AS IT

19 WERE, THE TEXT IN THIS PARTICULAR HTML FILE THAT SAYS COME SEE

20 THE HOTTEST PRETEEN SITE OUT THERE.

21 137 IS THE PAGE ITSELF. IT SAYS PRESENTED TO YOU

22 BY, AND AS WE SAID, THE BLANKS INDICATE WHERE THE IMAGE FILES

23 WILL GO. THE FRESHEST TEENS AT TEEN X.

24 SCREEN PRINT¹³⁸ IS ANOTHER HTML FILE WITH THE DATE

25 OF 10/28. IT SAYS MEET THE YOUNG -- MEET YOUNG GIRLS HERE FOR

26 FREE.

27 10/28, AGAIN, THIS IS SCREEN PRINT ¹³⁹ ON 10/28/01

28 IS AN ACCESS TO AN HTML PAGE AGAIN. THE WEB PAGE, IT'S CALLED .

7093

1 THE HUNDRED DOT COM. IT'S REFERRED TO HERE AS HUN DOT HTML BUT

2 IT'S THE HUN DOT COM.

3 THEN SCREEN PRINT ¹⁴⁰ IS THE PAGE ITSELF, THE HUN

4 PORNOGRAPHIC WEB SITE COVERING A VARIETY OF DIFFERENT

5 PORNOGRAPHIC INTERESTS.

6 Q. OKAY. LIVE TEEN COME AND THE HUN DOT COM, THESE

7 ARE GENERIC PORNOGRAPHIC SITES, IS THAT RIGHT?

8 A. YES, SIR.

9 Q. THEY OFFER BOTH STILL AND VIDEOS OF A WIDE VARIETY

10 OF IMAGES; IS THAT RIGHT --

11 A. CORRECT.

12 Q. -- INCLUDING BONDAGE AND ANIME' PORN, PORNOGRAPHY;

13 IS THAT CORRECT?

14 A. CORRECT.

15 Q. SIR, I'D LIKE TO NOW DIRECT YOUR ATTENTION TO AN

16 EVALUATION OF THE LOOSE MEDIA, THE C. D.S AND THE ZIPS.

17 DID YOU FINISH THAT? I DON'T WANT TO CUT YOU OFF.

18 A. YES, SIR.

19 Q. DID YOU NOTE ANYTHING IN PARTICULAR OR WHAT YOU

20 CONSIDER TO BE IMPORTANT DETAIL IN YOUR REVIEW OF THE LOOSE

21 MEDIA?

22 A. YES, I DID. AND IF I CAN REFER TO MY REPORT, I'LL

23 BE ABLE TO DISCUSS THAT.

24 MR. CLARKE: ACTUALLY, I'M SORRY, I'LL OBJECT. IT

25 APPEARED THE WITNESS WAS READING HIS REPORT. I BELIEVE THERE

26 SHOULD BE A FURTHER FOUNDATION LAID.

27 THE COURT: SUSTAINED. LAY THE FOUNDATION, MR. FELDMAN.

28 /// .

7094

1 BY MR. FELDMAN:

2 Q. DO YOU HAVE AN INDEPENDENT RECOLLECTION OF THE

3 DETAILS OF YOUR REPORT, SIR? AN INDEPENDENT RECOLLECTION?

4 A. I WAS READING THE REPORT TO MAKE SURE.

5 Q. WOULD REVIEWING -- DID REVIEWING THE REPORT REFRESH

6 YOUR MEMORY?

7 A. YES, IT DID.

8 Q. THANK YOU.

9 MR. CLARKE: YOUR HONOR, IF I MAY ASK, IF THE WITNESS IS

10 GOING TO BE READING FROM THE REPORT OR REFERRING TO IT, IF THE

11 RECORD COULD SIMPLY REFLECT THAT.

12 THE COURT: ALL RIGHT. AND JUST REFER US TO A PAGE IF

13 YOU ELECT TO REFRESH YOUR RECOLLECTION.

14 ALL RIGHT, MR. FELDMAN YOU CAN ASK THAT QUESTION

15 AGAIN.

16

17 BY MR. FELDMAN:

18 Q. SIR, CAN YOU GENERICALLY DESCRIBE FOR ME IS THERE

19 SOMETHING -- DIRECTING YOUR ATTENTION TO SCREEN PRINTS 141

20 THROUGH 164, YOU DID A SERIES OF SCREEN PRINTS THAT ARE IN THAT

21 RANGE?

22 A. CORRECT.

23 Q. 141 THROUGH 164. WERE THEY TYPICAL OF A NUMBER OF

24 IMAGES THAT YOU'VE SEEN IN THE LOOSE MEDIA?

25 A. YES.

26 Q. AND DID THEY ALL REFLECT OR GENERALLY REFLECT A

27 COMMON ACCESS DATE?

28 A. YES. . 7095

1 Q. WHAT KIND OF IMAGES DID YOU OBSERVE IN THE LOOSE

1 MEDIA -- AND, YOU KNOW, LET ME WITHDRAW THAT.

1 WHAT KIND OF DIGITAL EXTENSIONS DID YOU NOTE IN THE

4 PARTICULAR SCREEN PRINTS THAT ARE REFLECTED 141 THROUGH 164?

5 A. JPG OR IMAGE FILES.

6 Q. DID YOU ALSO NOTE AVI FILES?

7 A. YES.

8 Q. MPEG FILES?

9 A. YES.

10 Q. SO A VARIETY?

11 A. A VARIETY.

12 Q. DID YOU NOTE ANY PARTICULAR ACCESS DATES OF SCREEN

13 PRINTS 141 THROUGH 164 THAT WERE OF NOTE TO YOU?

14 A. THE LAST ACCESS DATE WAS 12/17/01.

15 Q. WHY IS THAT IMPORTANT TO YOU?

16 A. BECAUSE ON 12/17/01 WAS THE DATE THAT IT APPEARED,

17 THE MAJORITY OF THE IMAGES ON THE GATEWAY COMPUTER IN NEIL

18 WESTERFIELD'S ROOM HAD ALSO BEEN CREATED.

19 Q. SO DOES THAT RAISE AN INFERENCE AS TO WHERE THE --

20 LET ME WITHDRAW THAT.

21 IF I HAVE A COMPUTER AND I DOWNLOAD A DOCUMENT TO A

22 CD, IS THE CD CHARACTERIZED AS LOOSE MEDIA?

23 A. YES.

24 Q. BASED ON YOUR REVIEW OF SCREEN PRINTS 141 THROUGH

25 164, BASED ON YOUR REVIEW OF ALL OF THE COMPUTER HARD DRIVES,

26 BASED ON YOUR REVIEW OF ALL OF THE SCREEN PRINTS, BASED ON YOUR

27 YEARS OF EXPERTISE, ARE YOU ABLE TO FORM AN OPINION AS TO

28 WHETHER OR NOT THE MOVIES AND IMAGES ON THE LOOSE MEDIA WERE .

7096

1 DOWNLOADED FROM A PARTICULAR COMPUTER?

2 MR. CLARKE: OBJECTION, NO FOUNDATION, CALLS FOR

3 SPECULATION.

4 THE COURT: OVERRULED.

5 YOU CAN SIMPLY ANSWER THAT YES OR NO.

6 THE WITNESS: YES.

7

8 BY MR. FELDMAN:

9 Q. WHAT'S YOUR ANSWER?

10 MR. CLARKE: SAME OBJECTION.

11 THE COURT: IT'S DULY NOTED. OVERRULED.

12 YOU MAY ANSWER.

13 THE WITNESS: THAT THOSE IMAGES WERE DOWNLOADED FROM THE
14 LOOSE MEDIA.

15

16 BY MR. FELDMAN:

17 Q. NOW, WITHOUT ACTUALLY BEING THERE YOU DON'T REALLY
18 KNOW, CORRECT?

19 A. THAT IS CORRECT.

20 Q. THAT'S YOUR BEST PROFESSIONAL OPINION; IS THAT
21 CORRECT?

22 A. YES. YES.

23 Q. SIR, WE DIDN'T ASK YOU FOR THIS INFORMATION, DID
24 WE?

25 MR. CLARKE: OBJECTION, ARGUMENTATIVE.

26 THE COURT: SUSTAINED.

27

28 /// .

7097

1 BY MR. FELDMAN:

2 Q. THE PURPOSE OF OUR REQUEST TO YOU WAS TO JUST
3 PROVIDE US INFORMATION, ISN'T THAT CORRECT?

4 A. CORRECT.

5 MR. CLARKE: SAME OBJECTION.

6 THE COURT: OVERRULED. THE ANSWER WILL STAND.

7 THE WITNESS: SORRY.

8 THE COURT: THE ANSWER WILL STAND.

9

10 BY MR. FELDMAN:

11 Q. YOU WERE THE INVESTIGATOR THAT IDENTIFIED THESE

12 SCREEN PRINTS THAT WE'VE JUST SHOWN THE JURY, IS THAT RIGHT?

13 A. YES.

14 MR. FELDMAN: YOUR HONOR, JUST FOR PURPOSES OF THE

15 RECORD, I'M GOING TO WANT TO MARK AND MOVE INTO EVIDENCE SHORT

16 THE REPORT THE WITNESS' SCREEN PRINTS ABOUT WHICH HE'S

17 TESTIFIED. I'M JUST NOT SURE WHETHER YOU THINK NOW IS

18 APPROPRIATE OR LATER.

19 THE COURT: LATER.

20 MR. FELDMAN: VERY WELL.

21 NO FURTHER QUESTIONS AT THIS TIME. THANK.

22 YOU.

23 THE COURT: ALL RIGHT. MR. CLARKE.

24 MR. CLARKE: THANK YOU, YOUR HONOR.

25

26 ///

27 ///

28 /// .

7098

1 CROSS-EXAMINATION +

2 BY MR. CLARKE:

3 Q. MR. LAWSON, GOOD MORNING.

4 A. GOOD MORNING.

5 Q. IS IT DR. LAWSON OR NOT, I'M SORRY?

6 A. NO. I WISH, NO.

7 Q. ARE YOU AN ATTORNEY?

8 A. NO, I DON'T PRACTICE LAW.

9 Q. I NOTICED IN REVIEWING YOUR C. V. -- IS THAT A

10 FANCY TERM FOR A RESUME?

11 A. YES, SIR.

12 Q. -- THAT YOU'RE A MEMBER OF A PARTICULAR

13 ORGANIZATION, THE NATIONAL ASSOCIATION OF CRIMINAL DEFENSE

14 LAWYERS, IS THAT RIGHT?

15 A. THAT'S CORRECT.

16 Q. BUT YOU'RE NOT A DEFENSE LAWYER?

17 A. NO, SIR.

18 Q. YOU ALSO LIST IN THE C. V. I THINK EIGHT, NINE OR

19 TEN REFERENCES; IS THAT CORRECT?

20 A. CORRECT.

21 Q. WHAT'S A REFERENCE FOR?

22 A. FOR PEOPLE WHO VIEW THE C. V. TO CALL AND ASK ABOUT

23 ME.

24 Q. ARE ALL OF THOSE PEOPLE YOU LIST AS REFERENCES

25 CRIMINAL DEFENSE LAWYERS?

26 A. CAN I CHECK?

27 Q. SURE. DO YOU HAVE IT WITH YOU?

28 A. I THINK I DO. . 7099

1 A. YES.

1 Q. EVERY ONE OF THEM?

1 A. WELL, THE TWO MILITARY LAWYERS IN THE MILITARY,
4 THEY GO BACK AND FORTH. THEY CURRENTLY, AS OF TODAY, I BELIEVE
5 THEY ARE BOTH STILL DOING DEFENSE WORK, BUT THAT ISN'T THEIR --
6 NECESSARILY THEIR PERMANENT POSITION.

7 Q. WHEN OBVIOUSLY YOU HAD CONTACT WITH THOSE TWO
8 LAWYERS, IS THAT --

9 A. THEY WERE CRIMINAL DEFENSE LAWYERS, THAT'S CORRECT.

10 Q. SO AT THE TIME THAT YOU HAD YOUR CONTACT WITH THEM
11 THEY WERE REPRESENTING CRIMINAL DEFENDANTS?

12 A. YES, SIR.

13 Q. YOUR COMPANY, DOES IT ASSIST LAWYERS REPRESENTING
14 DEFENDANTS CHARGED WITH CRIMES?

15 A. YES.

16 Q. AND IS IT A FOR PROFIT COMPANY?

17 A. YES.

18 Q. NOW I BELIEVE YOU TALKED ABOUT YOU HAD EXPERIENCE
19 WITH THE CUSTOMS SERVICE, IS THAT THE RIGHT TERM?

20 A. YES.

21 Q. THAT INVOLVED INVESTIGATING CHILD PORNOGRAPHY?

22 A. YES.

23 Q. WHY DID THE CUSTOMS SERVICE CARE ABOUT THAT?

24 MR. FELDMAN: RELEVANCE, SCOPE.

25 THE COURT: OVERRULED.

26 THE WITNESS: I'M NOT SURE HOW TO ANSWER THAT.

27

28 /// .

7100

1 BY MR. CLARKE:

2 Q. WELL, DID YOU PARTICIPATE WHILE YOU WERE WITH

3 CUSTOMS WITH INVESTIGATING CHILD PORNOGRAPHY?

4 A. YES.

5 Q. WAS THAT A MISSION OF THE CUSTOMS SERVICE OR WHY

6 DID THEY DO THAT?

7 A. IT'S ONE OF THE LAWS THAT THEY ENFORCE. I WOULD

8 ASSUME THAT IT WOULD BE -- THAT THEY WOULD CHARACTERIZE THAT AS

9 ONE OF THEIR MISSIONS, YES.

10 Q. IS CHILD PORNOGRAPHY A CRIME?

11 A. YES.

12 Q. NOW AS FAR AS THE AREA OF CHILD PORNOGRAPHY, ARE

13 YOU FAMILIAR WITH THE CALIFORNIA LAW IN THAT REGARD?

14 MR. FELDMAN: RELEVANCE.

15 THE COURT: OVERRULED.

16 THE WITNESS: SOMEWHAT.

17

18 BY MR. CLARKE:

19 Q. WHAT'S IT ILLEGAL TO DO IN CALIFORNIA IN TERMS OF

20 CHILDREN AND THE IMAGES?

21 MR. FELDMAN: YOUR HONOR, RELEVANCE, ONGOING OBJECTION

22 AND I DIDN'T OFFER HIM AS AN EXPERT ON THAT.

23 THE COURT: IT'S NOTED FOR THE RECORD.

24 MR. FELDMAN: THANK YOU.

25 THE COURT: OVERRULED.

26 THE WITNESS: POSSESSION, DISTRIBUTION, RECEIPT,

27 CREATION. I'M NOT SURE IF YOUR LAW IN CALIFORNIA HAS A
28 PROMOTING. .

7101

1 BY MR. CLARKE:

2 Q. OKAY. OF WHAT?

3 A. OF CHILD PORNOGRAPHY.

4 Q. WHAT DOES CALIFORNIA SAY ABOUT WHAT CONSTITUTES
5 CHILD PORNOGRAPHY?

6 A. I BELIEVE THAT CALIFORNIA LAW DISCUSSES VIA CASE
7 LAW WHAT IS DEFINED AS A LASCIVIOUS EXHIBITION OF THE CHILD
8 GENITALS OR SEXUAL ACTS OF CHILDREN.

9 Q. SO IT HAS TO BE A PERSON UNDER <18, RIGHT?

10 A. CORRECT.

11 Q. DOESN'T HAVE TO BE INVOLVED IN A SEX ACT, DOES IT?

12 A. NO.

13 Q. HOW ABOUT A PHOTOGRAPH OF A YOUNG GIRL, SOMEONE
14 UNDER 18, WHERE YOU CAN SEE THEIR GENITALS?

15 MR. FELDMAN: OBJECTION, RELEVANCE.

16 THE COURT: APPROACH THE BENCH.

19 (BENCH CONFERENCE NOT PUBLIC RECORD.)

13 (THE FOLLOWING PROCEEDINGS WERE HELD IN OPEN COURT IN THE PRESENCE
OF THE JURY:)

14

15 BY MR. DUSEK:

16 Q. DID YOU -- OBVIOUSLY, YOU WROTE A REPORT IN THIS
17 MATTER; IS THAT CORRECT?

18 A. YES, SIR.

19 Q. DID YOU EVER TAKE ANY NOTES IN YOUR REVIEW OF ALL
20 THE VARIOUS MATERIALS?

21 A. YES.

22 Q. WHERE ARE THOSE?

23 A. I HAVE -- SOME OF THEM I BROUGHT. ACTUALLY, I
24 THINK I BROUGHT ALL OF MY HANDWRITTEN NOTES.

25 Q. WERE THEY PROVIDED -- I'M SORRY.

26 A. THEY'VE BEEN PROVIDED TO DEFENSE COUNSEL.

27 Q. THEY WERE PROVIDED TO MR. FELDMAN'S OFFICE?

28 A. I BELIEVE SO, YES. .

7103

1 MR. CLARKE: MAY WE ADDRESS THAT ISSUE AT SOME POINT,
2 YOUR HONOR?

3 THE COURT: YES.

4 MR. CLARKE: THANK YOU.

5 Q. BUT TO YOUR KNOWLEDGE, THEY WERE GIVEN TO THE
6 DEFENSE IN THIS CASE?

7 A. TO MY KNOWLEDGE, YES.

8 Q. DO YOU HAVE ANY REASON TO BELIEVE THEY WERE EVER
9 GIVEN TO THE PROSECUTION?

10 A. I'M SORRY, I DON'T KNOW IF THEY WERE OR NOT.

11 Q. WHEN WERE THEY GIVEN TO THE DEFENSE?

12 A. MOST OF THE NOTES -- WHEN I'M REFERRING TO NOTES

13 IT'S IN A GENERIC SENSE. MOST OF MY COMMUNICATION WITH MR.

14 FELDMAN'S OFFICE HAS BEEN VIA SCREEN PRINTS THAT I WOULD FAX TO

15 HIM AND FEDEX TO HIM, AND THEN WE WOULD COMMUNICATE BY TELEPHONE

16 ABOUT THE SCREEN PRINTS AND THEIR MEANING.

17 Q. LET'S TALK ABOUT THE NOTES. DID YOU FEDEX THEM TO

18 MR. FELDMAN'S OFFICE?

19 A. THERE ARE, I DON'T KNOW HOW MANY, FOUR OR FIVE

20 PAGES PROBABLY OF HANDWRITTEN NOTES FROM SAN DIEGO THAT DISCUSS

21 THE -- THAT DOCUMENT THE HARD DRIVE, THE NUMBERS, THE

22 IDENTIFICATION NUMBERS OF THE HARD DRIVE COMPARED TO THE

23 IDENTIFICATION NUMBERS THAT WERE PROVIDED BY THE SAN DIEGO

24 FORENSICS LABORATORY SO THAT I DIDN'T GET THE COMPUTERS CONFUSED

25 OR MIXED UP.

26 THERE ARE SOME HANDWRITTEN NOTES ABOUT IDENTIFYING

27 INDIVIDUAL PICTURE NAMES WITH LAST ACCESS DATES. FOR INSTANCE,

28 THE 1/4/02 DATE WAS -- I REMEMBER SPECIFICALLY WRITING THAT DOWN .

7104

1 THAT I HAD NOTICED THAT.

1 Q. DID YOU HAVE ANY OTHER TYPES OF NOTES, FOR

1 INSTANCE, DATA THAT YOU MIGHT KEEP IN A COMPUTER FILE OR

4 ANYTHING OF THAT MATTER? AND WHAT I'M TALKING ABOUT IS ANYTHING

5 THAT YOU DID IN YOUR WORK IN THIS CASE.

6 A. I THINK THAT WOULD BE IT.

7 Q. WHEN DID YOU -- WHEN DID YOU PROVIDE THOSE NOTES TO

8 THE DEFENSE?

9 A. IT'S BEEN ONGOING SINCE MY TRIP TO SAN DIEGO, WHICH

10 I BELIEVE WAS AROUND THE FIRST PART OF JUNE. I DON'T REMEMBER

11 THE EXACT DATES BUT AROUND THE 1ST OF JUNE. WHEN I RETURNED

12 HOME I PREPARED A -- A KIND OF A SUMMARY OF WHAT I HAD DONE
13 WHILE I WAS DOWN THERE AND WHAT I NEEDED TO CONTINUE TO DO TO BE
14 ABLE TO ASSIST HIM. AND I'M NOT SURE WHAT DATE I WOULD HAVE
15 SENT THOSE, PROBABLY THE SECOND WEEK IN JUNE.

16 Q. SO YOU'VE SENT NOTES ON AN ONGOING BASIS TO THE
17 DEFENSE?

18 A. NO, SCREEN PRINTS.

19 Q. I'M TALKING ABOUT NOTES, THE NOTES YOU SAY YOU
20 TOOK.

21 A. I HAVEN'T BEEN TAKING HANDWRITTEN NOTES ALONG THE
22 WAY.

23 Q. WELL, EXCUSE ME, MR. LAWSON. DIDN'T YOU JUST
24 DESCRIBE THE FACT THAT YOU TOOK SOME HANDWRITTEN NOTES,
25 INCLUDING I THINK IT WAS DATES AND SO FORTH?

26 A. IN SAN DIEGO, YES.

27 Q. OKAY. WHEN WERE THEY GIVEN TO THE DEFENSE?

28 A. IN THAT SECOND WEEK IN JUNE. .

7105

1 Q. SO ALMOST A MONTH AGO?

2 A. YEAH. I'M NOT SURE WHAT THE DATE IS TODAY BUT --

3 THE SECOND WEEK IN JUNE ROUGHLY WHEN I RETURNED BACK TO SPOKANE
4 I WROTE A SUMMARY OF WHAT I HAD SEEN AND THEN WHAT I FELT I
5 NEEDED TO DO TO CONTINUE, AND TO MY RECOLLECTION I SENT
6 EVERYTHING THAT I HAD MADE, SCREEN PRINT OR HANDWRITTEN AT THAT
7 TIME.

8 Q. IS THAT THE ONLY TIME THAT YOU WROTE NOTES?

9 MR. FELDMAN: YOUR HONOR, I WANT A SIDE BAR. THIS IS
10 MISLEADING.

11 THE COURT: OVERRULED AT THIS POINT IN TIME.

12 YOU MAY ANSWER.

13 THE WITNESS: I'M TRYING TO -- I'M MAKING SURE --

14

15 BY MR. CLARKE:

16 Q. I UNDERSTAND.

17 A. I DON'T RECALL MAKING ANY OTHER HANDWRITTEN NOTES.

18 I DON'T RECALL MAKING ANY OTHERS.

19 Q. YOU HAVE A SEVERAL PAGE REPORT IN FRONT OF YOU,

20 CORRECT?

21 A. CORRECT.

22 Q. THAT YOU AUTHORED IN THIS CASE?

23 A. YES.

24 Q. WHEN YOU PREPARE A REPORT DO YOU PREPARE THAT JUST

25 FROM YOUR MEMORY?

26 A. NO. THE SCREEN PRINTS ARE WHAT I USE MOSTLY TO

27 PREPARE THESE REPORTS. I MAKE THE SCREEN PRINTS AS I GO, AND I

28 KEEP THE SCREEN PRINTS ORGANIZED BY SPECIFIC COMPUTER OR PIECE .

7106

1 OF MEDIA, AND THEN WHEN I ASSEMBLE THE REPORT I USE THE SCREEN

2 PRINTS.

3 Q. BUT YOU ALSO USE NOTES, DON'T YOU?

4 A. NOT USUALLY. SOMETIMES BUT NOT -- NOT AS A GENERAL

5 PRACTICE.

6 Q. YOU USED NOTES IN THIS CASE, DIDN'T YOU?

7 A. YES.

8 Q. INCIDENTALLY, IN TERMS OF WRITING A REPORT, DO YOU

9 WRITE THAT REPORT WHEN THE EVENTS ARE FRESHER IN YOUR MIND THAN

10 THEY ARE TODAY?

11 A. WELL, THEY WOULD BE IN CLOSER TIME PROXIMITY, YES.

12 Q. DO YOU INCLUDE IN THAT REPORT ALL RELEVANT AND

13 IMPORTANT FACTS IN TERMS OF YOUR WORK IN A CASE, INCLUDING THIS

14 CASE?

15 A. I TRY TO, YES.

16 Q. WHEN YOU'RE DONE PREPARING THE REPORT DO YOU REVIEW

17 IT FOR ACCURACY?

18 A. YES, I TRY TO.

19 Q. AND DO YOU CORRECT ANY MISTAKES THAT ARE IN THERE?

20 A. I TRY TO.

21 Q. WERE THERE ANY IMPORTANT FACTS THAT YOU LEFT OUT OF

22 THIS REPORT?

23 MR. FELDMAN: YOUR HONOR, I'M SORRY, THAT'S ARGUMENTATIVE

24 AND VAGUE.

25 THE COURT: THAT'S VAGUE. SUSTAINED.

26

27 BY MR. CLARKE:

28 Q. IN THE WRITING OF THE REPORT THAT YOU HAVE IN FRONT .

7107

1 OF YOU, YOU'VE REVIEWED IT?

1 A. YES.

1 Q. DID YOU LEAVE OUT ANY FACTS THAT YOU FELT WERE
4 IMPORTANT?

5 A. NOT THAT --

6 MR. FELDMAN: SAME OBJECTION. EXCUSE ME, SAME OBJECTION.

7 THE COURT: OVERRULED.

8 YOU MAY ANSWER, SIR.

9 THE WITNESS: NOT THAT I KNOW OF.

10

11 BY MR. CLARKE:

12 Q. DID YOU SEE ANY MISTAKE?

13 A. NOT THAT I KNOW OF.

14 Q. ISN'T IT THE CASE THAT YOU ALSO WROTE WHAT YOU
15 CHARACTERIZE AS A PRELIMINARY REPORT IN THIS CASE?

16 A. YES. I WOULD PUT THAT AS A SUMMARY OF MY INITIAL
17 FINDINGS IN SAN DIEGO.

18 Q. THAT -- CAN WE CALL IT A PRELIMINARY REPORT, IS
19 THAT FAIR?

20 A. I WOULDN'T CALL IT THAT BUT YOU CAN.

21 Q. OKAY.

22 WHAT WOULD YOU CALL IT?

23 A. A SUMMARY OF WHAT I HAD FOUND AND WHAT I NEEDED TO
24 CONTINUE TO DO.

25 Q. OKAY. THEN LET'S CALL IT A SUMMARY. IS THAT ALL
26 RIGHT?

27 ARE ALL OF THE FACTS YOU WROTE IN THE SUMMARY
28 REPORT CONTAINED IN THE REPORT THAT'S BEEN MARKED AS AN EXHIBIT? .

1 A. I DON'T THINK SO.

2 Q. YOU LEFT OUT SOME THINGS IN THE FINAL REPORT THAT

3 WERE IN THE SUMMARY, DIDN'T YOU?

4 MR. FELDMAN: YOUR HONOR, AGAIN, REQUEST A SIDE BAR.

5 THIS IMPLICATES THE ATTORNEY-CLIENT PRIVILEGE.

6 THE COURT: OVERRULED. OVERRULED.

7 THE WITNESS: DID I LEAVE OUT SOME THINGS THAT WERE IN

8 THE SUMMARY REPORT IN THE FINAL REPORT?

9

10 BY MR. CLARKE:

11 Q. CORRECT.

12 A. I VERY LIKELY DID.

13 Q. WHEN COMPLETING YOUR FINAL REPORT, DID YOU REFER TO

14 THE SUMMARY FOR PURPOSES OF WRITING THAT FINAL REPORT?

15 A. YES.

16 Q. ISN'T IT CORRECT THAT IN THE PRELIMINARY REPORT YOU

17 NOTED THAT THERE WERE OBVIOUSLY INDIVIDUALS IN THE LOOSE MEDIA

18 THAT WERE UNDER THE AGE OF 18 YEARS-OLD?

19 A. YES.

20 Q. YOU DIDN'T INCLUDE THAT IN THE FINAL REPORT, DID

21 YOU?

22 A. NO.

23 Q. I'D LIKE TO FOCUS YOUR ATTENTION IF I COULD ON THE

24 MOVIES. IS THAT A FAIR TERM TO DESCRIBE THE NOT STILL IMAGES

25 BUT THE MOVIES THAT WERE FOUND ON THE LOOSE MEDIA, OKAY?

26 A. YES, SIR.

27 Q. DID YOU VIEW THOSE MOVIES?

28 A. YES. .

7109

1 Q. DID YOU LISTEN TO THEM?

1 A. NO.

1 Q. YOU NEVER HEARD THE SOUND?

4 A. NO.

5 Q. TO YOUR KNOWLEDGE, IS THERE SOUND ON AT LEAST SOME
6 OF THOSE MOVIES?

7 A. YES.

8 Q. HAVE YOU EVER HEARD IN ANY FORM THE SOUND ON THOSE
9 MOVIES?

10 MR. FELDMAN: I'M SORRY, I MISSED THE QUESTION.

11 THE COURT: REPEAT IT, OPHELIA.

12 MR. CLARKE: I CAN REPHRASE IT.

13 THE COURT: JUST REPHRASE IT, THAT'S FINE.

14

15 BY MR. CLARKE:

16 Q. HAVE YOU EVER HEARD THE SOUND ON THOSE MOVIES THAT
17 HAVE SOUND.

18 A. NO.

19 MR. FELDMAN: OBJECTION, IRRELEVANT.

20 THE COURT: OVERRULED. THE ANSWER IS NO.

21

22 BY MR. CLARKE:

23 Q. THE LAP TOP COMPUTER, I THINK YOU DESCRIBED THAT IT

24 HAD, IN YOUR OPINION, NO SIGNIFICANCE; IS THAT CORRECT?

25 A. THE ONLY SIGNIFICANCE THAT I NOTED WAS THAT IT WAS

26 USED ON THE DATES THAT I ALLUDED TO IN MY REPORT. I DIDN'T SAY

27 THAT IT HAD ACCESS TO THE INTERNET AT THAT TIME, SO --

28 Q. ALL RIGHT. AND I BELIEVE YOU GAVE THREE DATES, .

7110

1 CORRECT, THAT THE LAP TOP WAS ACCESSED, I THINK, AS YOU USED THE

2 TERM?

3 A. RIGHT.

4 Q. LAP TOP WAS ACCESSED ON MORE THAN JUST THREE DATES,

5 WASN'T IT?

6 A. YES.

7 Q. IT WAS ACCESSED EXTENSIVELY, WASN'T IT?

8 A. AS I RECALL, YES.

9 Q. IT INCLUDED GAMES ON IT, DIDN'T IT?

10 A. YES.

11 Q. NOW, I'D LIKE TO SHIFT YOUR ATTENTION TO THE

12 GATEWAY COMPUTER. SO THAT WE'RE CLEAR ABOUT WHICH COMPUTER THAT

13 IS, WAS THAT IDENTIFIED TO YOU AS HAVING COME FROM THE BEDROOM,

14 NOT THE MASTER BEDROOM BUT ANOTHER BEDROOM THAT HAS BEEN

15 ASSOCIATED WITH NEIL WESTERFIELD?

16 A. CORRECT.

17 Q. THAT IS DAVID N. WESTERFIELD, ALL RIGHT?

18 A. CORRECT.

19 Q. AS A COMPUTER SPECIALIST ARE YOU AWARE OF WHETHER

20 OR NOT COMPUTERS ARE HANDED DOWN, LET'S SAY, FROM A PARENT TO A

21 CHILD?

22 A. I'M SURE THEY ARE ALL THE TIME.

23 Q. HAVE YOU EVER ENCOUNTERED THAT IN YOUR WORK AND

24 EXPERIENCE?

25 A. YES.

26 Q. WHERE, SAY, A PARENT GETS A NEWER COMPUTER THAT'S

27 FASTER OR HAS MORE ACCESSORIES OR WHATEVER, TAKES AN OLDER

28 COMPUTER AND GIVES THAT TO A CHILD, IS THAT PRETTY COMMON? .

7111

1 A. YES --

1 Q. THIS TERM ANIME' --

1 A. -- OR THE OTHER WAY AROUND.

4 Q. WELL, I GUESS YOU'RE RIGHT IN SOME SITUATIONS, THAT

5 WOULD BE TRUE. I'M HOPING FOR THAT TO HAPPEN SOME DAY.

6 A. ME, TOO.

7 Q. AS FAR AS THE TERM "ANIME'," DOES "ANIME" MEAN

8 SEXUAL IN NATURE?

9 A. NOT NECESSARILY.

10 Q. IN FACT, ARE YOU FAMILIAR WITH ANIME' DOT COM?

11 A. YES.

12 Q. ANIME' DOT COM, CAN YOU -- JUST ANY OF US GO TO

13 THAT WEB SITE IF WE HAVE A COMPUTER AND INTERNET ACCESS?

14 A. YES.

15 Q. WHEN YOU GO TO ANIME' DOT COM DO YOU IMMEDIATELY

16 SEE DIRTY PICTURES OR PORNOGRAPHY?

17 A. NO.

18 Q. DOES IT INCLUDE CARTOONS?

19 A. YES.

20 Q. CARTOONS THAT ONE'S CHILD COULD WATCH. AND I DON'T

21 MEAN HAVE ACCESS TO, BUT WATCH THEM WITHOUT ANY DIRTY

22 CONNOTATIONS AT ALL?

23 A. I BELIEVE SO, YES.

24 Q. NOW, IF I CAN REFER YOUR ATTENTION, AND WE'RE ONLY

25 GOING TO TALK ABOUT A FEW SCREEN PRINTS, BUT WHILE YOU'RE THERE,

26 I THINK YOU REFERRED TO SCREEN PRINTS THERE IN 36 AT ONE POINT.

27 DO YOU HAVE THOSE?

28 A. YES. .

7112

1 Q. AND THOSE ARE THE SCREEN PRINTS THAT HAVE A NUMBER

2 OF IMAGES, CORRECT, INCLUDING BARE BREASTED WOMEN?

3 A. CORRECT.

4 Q. WERE THOSE DOWNLOADED FROM THE INTERNET?

5 A. WELL, MY FEELING WAS THAT THESE -- THAT THIS

6 PARTICULAR GROUP HAD BEEN COPIED ONTO THE COMPUTER FROM ANOTHER

7 PIECE OF MEDIA, FROM THE CD OR FROM THE ZIP FILE.

8 IF YOU'RE TALKING ABOUT ORIGINALLY WHERE THEY CAME

9 FROM, YEAH, I WOULD ASSUME THAT THEY CAME FROM THE INTERNET.

10 Q. OKAY. WHEN WERE THEY DOWNLOADED FROM THE INTERNET?

11 A. I THINK I'D HAVE TO GO BACK TO -- THEY'RE SHOWING

12 FILE CREATION DATES ON THE GATEWAY OF 12/17, WHICH WAS THE LAST

13 ACCESS DATE ON THE LOOSE MEDIA.

14 Q. I'M SORRY, I JUST MISSED THE DATE. I APOLOGIZE.

15 A. THEY'RE SHOWING FILE CREATION DATES ON THE GATEWAY

16 OF 12/17/01 --

17 Q. IS THAT WHEN THEY WERE DOWNLOADED -- I'M SORRY.

18 A. -- WHICH IS THE LAST ACCESS DATE ON THE MEDIA. AND

19 THEN WHEN YOU GO TO THE MEDIA AND LOOK, THE LAST ACCESS DATE

20 BEING 12/17/01, THIS PARTICULAR FILE, I JUST PICKED ONE AT

21 RANDOM, AND I DON'T KNOW IF IT'S ANIME' BUT IT'S REFERRED TO AS

22 A CARTOON FILE CALLED BIG RED WAS CREATED ON 1/14/99.

23 Q. THREE AND A HALF YEARS AGO OR SO, CORRECT?

24 A. CORRECT.

25 Q. DO YOU KNOW HOW OLD THE DEFENDANT IN THIS CASE'S

26 SON IS?

27 A. NO, I DON'T. I WOULD ASSUME HE'S -- HE MUST BE IN

28 COLLEGE, SO HE MUST BE 19 OR 20. .

7113

1 Q. BUT YOU DON'T KNOW HIS AGE?

2 A. NO, I DON'T.

3 Q. THOSE PARTICULAR FILE NAMES ON YOUR SCREEN PRINTS,

4 I THINK IT'S 10 THROUGH 36, ARE THEY ALL PRECEDED BY THE LETTERS

5 IEA?

6 A. YES.

7 Q. ARE YOU AWARE OF WHETHER OR NOT IN THE OFFICE

8 COMPUTERS THERE WERE BUSINESS FILES OF MR. WESTERFIELD? AND I'M

9 REFERRING TO DAVID A. WESTERFIELD.

10 A. YES, THERE WERE.

11 Q. DID YOU NOTICE THAT THEY HAD THE SAME PREFIX OF

12 IEA?

13 A. I DON'T KNOW THAT. I DON'T REMEMBER THAT.

14 Q. WOULDN'T THAT BE IMPORTANT TO KNOW?

15 MR. FELDMAN: OBJECTION, ARGUMENTATIVE.

16 THE COURT: OVERRULED.

17 THE WITNESS: YES.

18

19 BY MR. CLARKE:

20 Q. BUT YOU DIDN'T LOOK AT THAT?

21 A. I DIDN'T NOTICE THAT.

22 Q. AND I'D LIKE TO TURN YOUR ATTENTION NOW TO I THINK

23 IT'S SCREEN PRINT 37 AND 38. PERHAPS YOU CAN REFER TO THAT?

24 A. OKAY.

25 Q. IN PARTICULAR, WAS THAT AN IMAGE THAT WAS

26 DOWNLOADED FROM THE INTERNET?

27 A. WELL, ONE WOULD ASSUME SO.

28 Q. WELL, WHEN YOU SAY ONE WOULD ASSUME SO, DOES THAT .

7114

1 MEAN YOU DON'T KNOW?

2 A. NO, YOU DON'T. I DON'T KNOW THE -- WHAT IT'S

3 SHOWING HERE IN THE -- ON THESE SCREEN PRINTS IS A FILE PATH

4 THAT THE -- THAT THIS PARTICULAR IMAGE WAS IN A FOLDER CALLED MY

5 DOCUMENTS, MOVIES, SWING CARTOONS/ANIME' PIC/ANNEX IEA 18756 DOT

6 GIF. SO WITH THE FOLDER THAT IT'S IN, I CAN'T TELL WHERE IT

7 CAME FROM. IF IT WAS IN A TEMPORARY INTERNET FILE FOLDER, FOR

8 INSTANCE, THEN I WOULD MORE STRONGLY SAY IT VERY LIKELY CAME

9 FROM THE INTERNET.

10 Q. SO THIS MAY NOT EVEN HAVE BEEN DOWNLOADED FROM THE

11 INTERNET, CORRECT?

12 A. THAT'S POSSIBLE. IT COULD HAVE COME FROM E-MAIL OR

13 FROM A CD, FOR INSTANCE, THAT SOMEBODY GAVE SOMEBODY ELSE, COULD

14 HAVE AN IMAGE ON IT THAT YOU COULD DOWNLOAD IT ON YOUR COMPUTER.

15 Q. ALL RIGHT.

16 I BELIEVE YOU DESCRIBED DURING DIRECT EXAMINATION

17 THAT THIS IMAGE WAS -- I THINK YOU SAID WOULD IT BE LAST

18 ACCESSED ON DECEMBER 17TH OF 2001?

19 A. YES.

20 Q. WHEN WAS IT CREATED?

21 A. 12/17/01.

22 Q. WHEN WAS IT LAST WRITTEN?

23 A. 4/22/99.

24 Q. OVER THREE YEARS AGO?

25 A. CORRECT.

26 Q. WHAT ABOUT NUMBER 38, THE NEXT ONE?

27 A. SAME DATES BUT WITH THE LAST WRITTEN DATE OF

28 4/20/99. .

7115

1 Q. OVER THREE YEARS AGO?

2 A. YES.

3 Q. "LAST WRITTEN" MEANS WHAT?

4 A. USUALLY MEANS THE LAST DAY THAT THE FILE WAS --

5 SOMEHOW CHANGED, MANIPULATED IN SOME WAY WITH AN IMAGE FILE THAT

6 CAN BE RESIZED WITH A TEXT FILE. IT CAN BE ADDING NEW TEXT TO A
7 FILE AND CLOSING IT.

8 Q. ALL RIGHT.

9 EACH OF THE FILES THAT YOU DESCRIBED IN YOUR SCREEN
10 PRINTS, 37 AND 38, DO EITHER OF THEM HAVE THE IEA PREFIX?

11 A. YES.

12 Q. ONE OF THEM?

13 A. NO, THEY BOTH DO.

14 Q. NOW YOU TALKED ABOUT VARIOUS E-MAILS, CORRECT?

15 A. CORRECT.

16 Q. NOW, I BELIEVE AT LEAST IN ONE INSTANCE EITHER YOU >
17 OR MR. FELDMAN USED THE TERM "PORN SURFING"?

18 A. YES.

19 Q. WAS THAT YOUR TERM?

20 A. I DON'T RECALL. IT MAY HAVE BEEN.

21 Q. IS THAT THE SAME AS -- WELL, IT'S SURFING ON THE
22 INTERNET, IS THAT RIGHT?

23 A. CORRECT.

24 Q. OKAY.

25 WELL, AS FAR AS THE -- I THINK YOU DESCRIBED IN
26 SOME OF THE SCREEN PRINTS AN E-MAIL FROM PINK FOR FREE DOT COM?

27 A. YES, SIR.

28 Q. DO YOU RECALL THAT? .

7116

1 A. YES, SIR.

2 Q. ARE THOSE SCREEN PRINTS DUPLICATED? IN OTHER

3 WORDS, REVEALED MORE THAN ONCE OF THE SAME SCREEN PRINT IN THE
4 HUNDRED AND WHATEVER NUMBER SCREEN PRINTS YOU HAD?

5 A. I'M NOT SURE I UNDERSTAND YOUR QUESTION.

6 Q. OKAY. I THINK YOU DESCRIBED A SPECIFIC E-MAIL FROM
7 PINK FOR FREE DOT COM. DO YOU RECALL THAT?

8 A. YES.

9 Q. AND I THINK YOU DESCRIBED THAT AS A DATE OF
10 DECEMBER 13TH, 2001.

11 DO YOU RECALL THAT?

12 A. YES.

13 Q. IS THAT E-MAIL DUPLICATED? IN OTHER WORDS, THE
14 SAME EXACT SCREEN PRINT IN MORE THAN ONE LOCATION IN YOUR
15 EXHIBITS -- SCREEN PRINTS, I'M SORRY?

16 A. I THINK THE SCREEN PRINTS WERE PINK FOR FREE. AS I
17 RECALL, THEY WERE IN THESE -- THEY'RE INCLUDED IN THE NOTEBOOK A
18 COUPLE TIMES.

19 Q. THE SAME E-MAIL?

20 A. OH, I DON'T KNOW THAT.

21 Q. OKAY. LET'S TAKE A LOOK IF WE CAN, YOUR SCREEN
22 PRINTS, AND I BELIEVE IT'S 42 THROUGH 47, DO YOU HAVE THOSE
23 HANDY?

24 A. I'LL FIND THEM.

25 OKAY.

26 Q. NOW, THIS WAS THE E-MAIL THAT WAS FROM THE EDITOR
27 AT NEWSLETTER DOT PINK FOR FREELY DOT COM, IS THAT RIGHT?

28 A. CORRECT. .

1 Q. ON DECEMBER 13TH, 2001?

2 A. UM-HMM.

3 Q. IS THAT RIGHT?

4 A. MY BOOK'S UPSIDE DOWN, SORRY.

5 ON 12/13/01, IS THAT WHAT YOU ASKED?

6 Q. YES.

7 A. YES.

8 Q. WHAT'S A NEWSLETTER?

9 A. WELL, IN THIS CASE IT'S A --

10 MR. FELDMAN: OBJECTION, IRRELEVANT AND OUT OF CONTEXT.

11 THE COURT: OVERRULED.

12 YOU CAN ANSWER.

13 THE WITNESS: IN THIS CASE, IT'S -- I DON'T KNOW WHAT

14 OTHER PHRASE TO USE OTHER THAN NEWSLETTER TO DESCRIBE IT. IT'S

15 A DESCRIPTION OF DIFFERENT SITES THAT CAN BE VISITED THROUGH THE

16 PINK FOR FREE DOT COM WEB SITE. IT'S LIKE AN ANNOUNCEMENT OF

17 THESE THINGS ARE AVAILABLE BY COMING HERE TODAY.

18 Q. ALL RIGHT.

19 AND IT GIVES ONE THE OPPORTUNITY AT DIFFERENT

20 PLACES THAT ARE CONTAINED ON THE NEWSLETTER?

21 A. CORRECT.

22 Q. USING A MOUSE OF ONE'S COMPUTER?

23 A. CORRECT.

24 Q. HOW MANY OF THOSE SITES DID THAT PERSON FLICK ON

25 WHEN THAT PERSON GOT THAT PIECE OF MAIL AND OPENED IT THAT WERE

26 CONTAINED IN THE NEWSLETTER?

27 A. I KNOW ON THIS DATE I DIDN'T HAVE ANY SCREEN PRINTS

28 SHOWING ANY. THAT DOESN'T MEAN THAT THEY DIDN'T. I JUST DON'T .

7118

1 FIND ANY EXAMPLES OF IT.

2 Q. WERE YOU LOOKING FOR 'EM?

3 A. OH, I PROBABLY DID, YEAH.

4 Q. DIDN'T FIND ANY?

5 A. NO.

6 Q. SO IS IT CORRECT THAT IT APPEARS FROM YOUR

7 EXAMINATION THAT NO ONE EVEN CLICKED ON ANY OF THOSE WEB SITES?

8 A. ON THIS PARTICULAR DAY?

9 Q. THIS DECEMBER 13TH, 2001 NEWSLETTER FROM PINK FOR

10 FREE DOT COM?

11 A. I'M NOT FINDING -- I DIDN'T FIND ANY EXAMPLES OF

12 CLICKING ON ANY OF THESE LINKS ON 12/13.

13 Q. BUT YOU HAD NO EVIDENCE TO SUPPORT THAT ANYONE EVER

14 DID?

15 A. NO.

16 Q. NO MEANING WHAT?

17 A. THAT --

18 Q. DO YOU HAVE ANY EVIDENCE TO SUPPORT ANYONE CLICKING

19 ON ANY OF THOSE LINKS ON THAT PARTICULAR NEWSLETTER?

20 A. ON THIS PARTICULAR DAY, NO, I DON'T.

21 THE COURT: OKAY, LADIES AND GENTLEMEN, WE'RE GOING TO GO

22 AHEAD AND TAKE THE LUNCH BREAK.

1 THE COURT: OKAY, LADIES AND GENTLEMEN.

2 OKAY, MR. FELDMAN.

3 MR. FELDMAN: THANK YOU, YOUR HONOR.

4 Q. SIR, I'D LIKE TO DIRECT YOUR ATTENTION NOW TO

5 SCREEN PRINT 75 AND 76.

6 CAN YOU TELL ME WHAT DID YOU INTEND THAT SCREEN

7 PRINT 75 AND 76 TO DEPICT? WHAT DO THEY DEPICT?

8 A. SCREEN PRINT 75 IS AGAIN THE SCREEN CAPTURE OF THE

9 ENCASE VIEW OF THIS COMPUTER AND IT'S HIGHLIGHTED IN HTML FOR

10 HOT MAIL.

11 Q. AND THE DATE OF THE HOT MAIL IS?

12 A. 1/7/02.

13 Q. WHOSE HOT MAIL?

14 A. THAT'S ON SCREEN PRINT 76 IS THE ACCESSING, THAT

15 PAGE ITSELF IT'S A HOT MAIL -- IT'S THE HOT MAIL IN BOX ACTUALLY

16 FOR D. N. WEST AT HOT MAIL DOT COM.

17 Q. ALL RIGHT.

18 SCREEN PRINT 77 AND 78, SIR, WHAT DO THEY SHOW?

19 A. SCREEN PRINTS BOTH 77 AND 78 ARE INDIVIDUAL IMAGE

20 FILES SHOWING THE LAST WRITTEN IN FILE CREATED DATES OF 1/7/02

21 AT 10:14:54 P.M. THEY ARE IMAGES OF -- I WOULDN'T CONSIDER THEM

22 PORNOGRAPHY -- NAKED WOMEN.

23 Q. SIR, THEY'RE CALLED J PEGS AS OPPOSED TO HTML

24 FILES. IS THAT OF ANY PARTICULAR CONSEQUENCE TO YOU?

25 A. WELL, AS WE DISCUSSED BEFORE, THE IMAGE FILES ON A

26 GIVEN WEB PAGE ARE SEPARATE FILES FROM THE HTML FILE, WHICH IS

27 THE PAGE ITSELF, AND ARE OFTEN RECOVERED SEPARATELY. SO WHEN

28 ONE SEES THE HTML PAGE OR AN N. H. M. L. PAGE, THOSE ARE .

1 ACCESSED AT THE SAME TIME, THEN THOSE ARE GOING TO BE THE IMAGES
2 THAT LIKELY CAME FROM THAT PAGE.

3 Q. IN OTHER WORDS STILLS, IS THAT A FAIR WAY TO
4 DESCRIBE THEM?

5 A. YES.

6 Q. ALL RIGHT.

7 DIRECTING YOUR ATTENTION TO SCREEN PRINT 79 AND 80,
8 WHAT DO SCREEN PRINTS 79 AND 80 SHOW, SIR?

9 A. SCREEN PRINT 79 IS A -- IT'S A HTML PAGE, A WEB
10 PAGE, THAT WAS ACCESSED ON THIS COMPUTER ON 1/7/02 AT 10:15
11 P.M., SCREEN PRINT 80 IS THE PAGE ITSELF DISCUSSING FREE HARD
12 CORE ACTION.

13 Q. WAIT A MINUTE.

14 SCREEN PRINT 80 HAS MORE THAN JUST HARD CORE ACTION
15 ON IT, DOESN'T IT?

16 MR. CLARKE: I THINK COUNSEL'S ARGUING WITH THE WITNESS,
17 YOUR HONOR.

18 THE COURT: JUST ASK HIM A QUESTION.

19

20 BY MR. FELDMAN:

21 Q. WHAT ELSE DOES SCREEN PRINT 80 DEPICT?

22 A. A NUMBER OF WHAT APPEAR TO BE LINKS TO SPECIFIC
23 PORNOGRAPHIC INTERESTS, SUCH AS "GIRLS WITH ANIMALS," "SQUIRTING
24 EJACULATIONS," "DRINK MY PISS." THERE'S NINE OF THEM.

25 Q. WHAT YOU'RE TELLING US IS THE INTERNET HAS A
26 VARIETY OF THINGS THAT NOT ALL OF US MIGHT BE INTERESTED IN?

27 A. THAT'S VERY TRUE, YES.

28 Q. BUT THAT ARE EASILY ACCESSIBLE? .

7074

1 A. THAT'S CORRECT.

1 Q. AND THE WAY -- AND I'M SORRY, WHEN YOU'RE TELLING

1 ME THAT 79 WAS THE PAGE THAT YOU COULD UTILIZE TO GET TO 80 --

4 A. NO. WHAT I MEANT TO SAY, IF I MISSPOKE --

5 Q. PLEASE. NO.

6 A. -- IS THAT 79 IS -- WHAT SCREEN PRINT 79 IS IS

7 WHERE -- I'M SHOWING THAT THIS PARTICULAR PAGE WAS FOUND AND IS

8 PLACED IN THE COMPUTER ON 1/7/02 AT 10:15 P.M., WHICH IS AT THE

9 SAME TIME THAT BACK HERE ON SCREEN PRINT 76, THAT D. N. WEST HOT BR>
10 MAIL WAS ACCESSED. AND THEN SCREEN PRINT 80 IS ACTUALLY THE

11 PAGE ITSELF, WHICH IS OFTEN THE CASE IN THIS BOOK. I'M SHOWING

12 WITH THE FIRST SCREEN PRINT WHERE IT WAS IN THE COMPUTER, AND

13 THEN THE SECOND SCREEN PRINT IS THE PAGE ITSELF.

14 Q. SIR, DIRECTING YOUR ATTENTION TO SCREEN PRINT 81,

15 WHAT DOES SCREEN PRINT 81 SHOW?

16 A. SCREEN PRINT 81 IS ANOTHER GIF MESSAGE HTML FILE

17 FOR HOT MAIL ON 1/7/02 AT 10:16P.M.

18 Q. WHOSE HOT MAIL?

19 A. THAT IS -- ON SCREEN PRINT 82 IT IS THE HOT MAIL

20 FOR D. N. WEST AT HOT MAIL DOT COM.

21 Q. AND WHAT IS 82 SHOWING?

22 A. IT'S A -- IT'S A MAIL THAT WAS RECEIVED FROM D. N.

23 WEST. IT'S FROM DANIEL, D-A-N-I-E-L --

24 Q. BE CAREFUL. I'M SORRY, I DON'T KNOW THE AGE OF THE

25 SOURCE AND I THINK YOU SHOULD USE JUST PLEASE THE LAST
26 INITIAL -- THE FIRST INITIAL OF THE LAST NAME ON THAT ONE SO IT
27 DOESN'T GO OUT ON NATIONAL.

28 A. OH, IT'S OKAY. I UNDERSTAND. IT'S -- I DON'T MEAN .

7075

1 TO INSINUATE THAT THIS IS LIKE A PERSON'S NAME.

1 Q. OKAY.

1 A. IT'S A NUMBER. AND IT'S VERY LIKELY IS WHAT'S
4 REFERRED TO AS SPAM E-MAIL. IT'S PORNOGRAPHIC SPAM E-MAIL THAT
5 WAS RECEIVED IN THE HOT MAIL ACCOUNT THAT DANIEL DOESN'T MEAN
6 ANYTHING IN PARTICULAR.

7 Q. OKAY. WE'RE A LITTLE SENSITIVE AROUND HERE ON
8 THAT.

9 A. I UNDERSTAND.

10 Q. I'M SORRY, YOU USED ANOTHER WORD, THOUGH, "SPAM."

11 WHAT'S THAT, OTHER THAN FOOD?

12 A. SPAM IS THE -- ALL THE UNWANTED MAIL THAT PEOPLE
13 GET IN THEIR INBOXES. AND THAT CAN HAPPEN WITH HOT MAIL, THAT
14 CAN HAPPEN WITH YOUR OWN PRIVATE E-MAIL PROVIDER, WITH THE
15 INTERNET PROVIDER. IT'S BASICALLY UNSOLICITED MAIL THAT PEOPLE
16 GET.

17 Q. SO EVEN IF YOU HAVE AOL, FOR INSTANCE, YOU GET
18 SPAM?

19 A. YES.

20 Q. I'M SORRY, I DIDN'T MEAN TO INTERRUPT YOU.

21 DIRECTING YOUR ATTENTION TO SCREEN PRINTS 83

22 THROUGH 86, WHAT DO THOSE SCREEN PRINTS DEPICT?

23 A. OKAY. WHAT I WAS ATTEMPTING TO SHOW WITH THE

24 SCREEN PRINTS IS THAT WE SEE THE GET MESSAGE WHICH APPEARS TO BE

25 THIS PIECE OF SPAM PORNOGRAPHIC E-MAIL.

26 AT THE BOTTOM OF SCREEN PRINT 82 IT TALKS ABOUT --

27 I HATE TO DO THIS IN COURT, BUT IT TALKS ABOUT YOUNG GIRLS

28 FUCKING AT SCHOOL. THEN SCREEN PRINT 83 -- .

7076

1 Q. JUST A MINUTE, I'M SORRY. IN COURT OR NOT, I WANT

1 TO STOP YOU THERE. JUST BECAUSE THERE'S AN ADVERTISEMENT THAT

1 YOUNG GIRLS ARE DOING SOMETHING SOMEPLACE, DOES THAT MAKE IT

4 TRUE?

5 MR. CLARKE: OBJECTION, LACK OF FOUNDATION.

6 THE COURT: OVERRULED.

7 YOU CAN ANSWER.

8 THE WITNESS: NO.

9

10 BY MR. FELDMAN:

11 Q. IS THERE SOME -- JUST BASED ON YOUR EXPERIENCE IN

12 THE INTERNET, AND BASED ON YOUR PROFESSIONAL EXPERIENCE, IF A

13 SITE CLAIMS TO HAVE TEENAGERS, SAY, DOES THAT MEAN THAT THERE'S

14 REALLY TEENAGERS THERE?

15 A. MORE TIMES THAN NOT -- THEY MAY BE TEENAGERS BUT

16 THEY'RE 18, 19, THEY'RE OF LEGAL AGE. AND MOST AMERICAN, AND BY

17 "AMERICAN" I MEAN DOT COM PORNOGRAPHIC WEB SITES THAT OFFER TEEN

18 PICTURES WILL HAVE THAT DISCLAIMER ON THE FRONT OF THEIR PAGE

19 SAYING THAT ALL ACTORS ON THE PAGE ARE 18 OR OVER AND THEIR
20 IDENTIFICATION IS ON FILE IN ACCORDANCE WITH FEDERAL LAW.

21 Q. SO SOMETHING -- FOR INSTANCE, IF THERE'S A SITE
22 CALLED "LOLITA DOT COM," DOES THAT NECESSARILY MEAN THAT THAT
23 PARTICULAR WEB SITE WOULD CONTAIN UNDERAGE CHILDREN?

24 A. ACTUALLY, I KNOW SPECIFICALLY THAT LOLITA DOT COM
25 IS AN -- IT'S A SITE FOR ADULT PORNOGRAPHY LINKS. IF YOU GO TO
26 LOLITA DOT COM, IN FACT, I BELIEVE IT HAS A BANNER SAYING IF
27 YOU'RE HERE TO FIND CHILD PORNOGRAPHY YOU'RE LOOKING IN THE
28 WRONG PLACE, AND IT HAS LINKS TO OTHER ADULT SITES. .

7077

1 Q. SO DOES THAT MEAN THAT IF WE SAW A PICTURE THAT
2 SAID LOLITA DOT COM AT THE BOTTOM, THAT WOULD NOT NECESSARILY
3 INFER AGE?

4 A. NO.

5 Q. WHEN YOU SAY NO, YOU AGREE?

6 A. I AGREE WITH YOU. IT WOULD NOT NECESSARILY.

7 Q. I'M SORRY, I KNOW THAT I INTERRUPTED YOU. YOU WERE
8 TELLING US ABOUT 82 I THINK AND MOVING TO 83 -- OR ACTUALLY 83
9 TO 86?

10 A. RIGHT. WE HAD SAID THAT 82 WAS WHAT APPEARED TO BE
11 APPARENTLY A PIECE OF PORNOGRAPHIC SPAM, E-MAIL, THAT WAS
12 RECEIVED BY D. N. WEST. AND THEN 83, 84, 85 86, AND IT'S
13 STOPPING AT 86, ARE -- WHAT IT WOULD APPEAR IS THAT THE
14 PERSON -- THAT D. N. WEST CLICKED ON THE SCHOOL GIRLS LINK AND
15 THEN WAS ACCESSED AND THEN ACCESSED THIS PARTICULAR PAGE, WHICH

16 IS THE SCHOOL GIRLS/UNDERScore INDEX HTML WEB PAGE, WHICH TALKS
17 ABOUT TEENAGERS FUCKING AT SCHOOL.

18 Q. THAT WOULD BE 84, IS THAT RIGHT?

19 A. CORRECT.

20 Q. WITH REGARD TO 84, IT APPEARS AS THOUGH THERE'S
21 SOME -- FIRST OF ALL, IT DOESN'T LOOK LIKE THE WRITER, THE
22 AUTHOR OF THE PAGE IS A VERY GOOD SPELLER. ISN'T THE WORD
23 "SCHOOL" MISSPELLED?

24 A. I HADN'T NOTICED THAT, YES.

25 Q. AND THERE IS A DISCLAIMER ON THIS PARTICULAR SCREEN

26 PRINT 84 THAT SAYS ABSOLUTELY NO MINORS BEYOND THIS POINT, IS 27 THAT
RIGHT?

28 A. THAT'S CORRECT. .

7078

1 Q. SO THIS -- IS THE SITE TRYING TO PROTECT ITSELF?

2 WHY IS THIS HERE?

3 A. I'M NOT SEEING THE -- SOME OF THE LANGUAGE THAT I
4 SEE ON SOME OF THESE PAGES SAYS THAT THE IDENTIFICATIONS ARE ON
5 FILE IN ACCORDANCE WITH FEDERAL LAW. AND I ASSUME THAT THE WEB
6 PROGRAMERS PUT THAT ON THERE TO PROTECT THEMSELVES FROM GETTING
7 IN TROUBLE WITH FEDERAL LAW ENFORCEMENT.

8 Q. ALL RIGHT.

9 85 AND 86, SIR, DID I GIVE YOU A CHANCE TO
10 COMPLETE?

11 A. 85 AND 86 WERE PARTICULAR IMAGES THAT WERE ON THAT
12 PAGE. AGAIN, THEY WERE ACCESSED AT 10:16DOT 48 -- OR EXCUSE ME

13 10:16:48 P.M., AT THE SAME TIME THAT THE PAGE ITSELF WAS
14 ACCESSED, AND THERE ARE INDIVIDUAL PICTURES THAT WOULD HAVE
15 LIKELY HAVE BEEN ON THAT PAGE.

16 Q. SCREEN PRINTS -- AT APPROXIMATELY 10:17 P.M. DID
17 YOU NOTE SOME ACTIVITY, SCREEN PRINT 87?

18 A. YES, SIR. IT'S SHOWING A -- WHAT I'VE HIGHLIGHTED
19 AGAIN IS THE SCREEN PRINT OF THE ENCASE VIEW SHOWING THE -- AND
20 IT'S HIGHLIGHTING AN HTML FILE CALLED "ANIMAL SEX UNDERSCORED
21 DOT INDEX" AND THAT IS AT >1/7/02 AT 10:17:22, AND THEN SCREEN
22 PRINT 88 IS THE PAGE ITSELF TALKING ABOUT BIZARRE ANIMAL SEX.

23 Q. 88 THROUGH 95, WHAT DO THEY DEPICT?

24 A. 88 WAS THE ONE WE JUST DISCUSSED, THE ANIMAL SEX
25 WEB PAGE.

26 89 IS, AGAIN, AN INDEX DOT HTML FILE RELATED TO -- 27 I BELIEVE TO THE D.
N. WEST HOT MAIL WHICH -- NO, IT'S NOT, I'M

28 SORRY. IT'S INDEX DOT HTML. THE TIME IS AGAIN 10:17:34, AND ON .

7079

1 THE FOLLOWING PAGE IS THE FILE ITSELF.

2 Q. SORRY, NUMBER?

3 A. I'M SORRY, PAGE 90 --

4 Q. ALL RIGHT.

5 A. -- IS THE ACTUAL HTML FILE ITSELF.

6 Q. IT SAYS "GIRLS WITH ANIMALS LIKE NEVER SEEN
7 BEFORE"?

8 A. YES.

9 Q. OKAY. 91?

10 A. IS AN IMAGE. THE TIME AGAIN IS 10:17:36, SO IT'S

11 GOING TO BE ACCESSED AT THE SAME TIME THE PAGE IS ACCESSED.

12 AND, AS WE DISCUSSED, THE PAGE IS A SEPARATE FILE FROM THE
13 IMAGES, SO THESE ARE GOING TO BE IMAGES THAT WERE ON THE PAGE.

14 Q. AND THE IMAGES, THEY'RE JUST IN NUMBERS OR, FOR
15 INSTANCE, THEY SAY DEMO OR JUNGLE OR ET CETERA, IS THAT RIGHT?

16 A. NUMBER SCREEN PRINT 92 SAYS DEMO DOT J PEG. I

17 TRIED TO INCLUDE FAIRLY INNOCUOUS IMAGES.

18 Q. VOCABULARY?

19 ALL RIGHT. 93, SIR?

20 A. 93 IS AGAIN ON 1/7/02. IT'S AN HTML FILE FROM THE
21 COMPUTER SHOWING ACCESS AT 10:17:46 AND IT'S HARD CORE BEAST
22 ACTION; DONKEYS, SNAKES, HORSES, DOGS.

23 Q. I'M SORRY, WHICH PRINT ARE YOU ON?

24 A. I'M SORRY, 94.

25 Q. ALL RIGHT.

26 95? 27 A. IS A J PEG, AN IMAGE FILE FROM THE PAGE. IT'S
28 ACCESSED AT THE SAME TIME, 10:17:46, AND IT'S A WOMAN AND A .

7080

1 HORSE BUT IT'S AN INNOCUOUS PICTURE.

2 Q. WHY IS IT INNOCUOUS?

3 A. IT'S JUST -- IT'S THE POLICY OF MY OFFICE WHEN WE
4 MAKE THESE SCREEN PRINTS TO NOT REPRODUCE HARD CORE PORNOGRAPHY
5 UNLESS IT'S NECESSARY, UNLESS IT'S VERY, VERY IMPORTANT TO MAKE
6 A POINT. WE JUST WOULD PREFER TO -- IF WE HAVE TO MAKE A
7 DEMONSTRATION WITH THE TYPE OF PICTURE, I WOULD PREFER TO USE
8 SOMETHING THAT'S MORE INNOCUOUS OR SCREEN PRINT THE REPORT

9 ITSELF.

10 Q. WHY ARE YOU DESCRIBING IT AS IT BEING INNOCUOUS?

11 A. THERE'S NO SEXUAL ACTS. IT'S JUST A NAKED WOMAN

12 AND A HORSE.

13 Q. ALL RIGHT. BEFORE WE MOVE ON, I JUST WANT TO ASK

14 YOU A QUESTION.

15 SOME OF THE ACCESS TIMES YOU'RE INDICATING ARE VERY

16 CLOSE IN TIME TO EACH OTHER.

17 DO YOU UNDERSTAND WHAT I'M SAYING?

18 A. I THINK SO.

19 Q. IS THERE A DIFFERENCE BETWEEN, SAY, A CABLE MODEM

20 AND A STANDARD MODEM?

21 A. YES.

22 Q. WHAT'S THAT DIFFERENCE?

23 A. WHEN MOST PEOPLE REFER TO STANDARD MODEMS THEY'RE

24 TALKING ABOUT THEIR DIAL-UP MODEM, WHICH IS MOST COMMON. IT'S

25 WHAT MOST PEOPLE IN THE UNITED STATES HAVE, AND IT'S WHERE A

26 PERSON USES THEIR TELEPHONE LINE TO DIAL INTO THE INTERNET 27
THROUGH AN INTERNET PROVIDER.

28 Q. SO IF I HAD A PICTURE THAT WAS JUST ONE OF THESE J .

7081

1 PEGS THAT WE'VE SEEN THAT WAS EIGHT BY ELEVEN, SAY, AND I USED

2 THE DIAL-UP, DO YOU HAVE ANY OPINION HOW LONG IT MIGHT TAKE ME

3 TO DOWNLOAD IT?

4 A. IT REALLY DEPENDS ON THE SPEED OF YOUR DIAL-UP. I

5 WAS ON THE INTERNET LAST NIGHT TALKING TO MY WIFE, AND THE SPEED

6 IN THE HOTEL ROOM WAS 14.6 KILOBYTES PER SECOND, WHICH IS VERY,
7 VERY SLOW. IN MY OFFICE WE HAVE A DIAL-UP MODEM STILL AND IT
8 RUNS AT 56, 56 KILOBYTES PER SECOND.

9 Q. HOW ABOUT CABLE MODEMS?

10 A. THEY'RE CONSIDERABLY FASTER. OFF THE TOP OF MY
11 HEAD I CAN'T GIVE YOU THE EXACT NUMBER OF KILOBYTES PER SECOND
12 BUT IT'S GOING TO BE THREE OR FOUR TIMES THE SPEED OF A DIAL-UP
13 MODEM.

14 Q. OR IF SOMEBODY HAS -- ARE YOU FAMILIAR WITH THE
15 SPEED OF, SAY, ROAD RUNNER?

16 A. I KNOW ROAD RUNNER TO BE A CABLE SERVICE BUT I --
17 IN THOSE SERVICE BOTH DSL AND CABLE ARE CONSIDERABLY FASTER THAN
18 DIAL-UP MODEMS.

19 Q. SO IF IT TOOK FIVE MINUTES TO DIAL UP ON A 14.4, IT
20 MIGHT TAKE FIVE SECONDS BY CABLE?

21 A. EXACTLY, WHICH IS WHY PEOPLE SPEND MORE MONEY TO
22 BUY CABLE MODEMS.

23 Q. ALL RIGHT.

24 NOW, SIR, DIRECTING YOUR ATTENTION TO SCREEN PRINTS
25 96 THROUGH 99, THESE ARE IMAGES THAT YOU OBSERVED AS ACCESSED
26 1/7/02 AT APPROXIMATELY THE SAME TIMEFRAME AS THE OTHERS.
27 COULD YOU TELL ME WHAT DID YOU INTEND TO
28 COMMUNICATE BY THESE PHOTOS, PLEASE? .

7082

1 A. PHOTOS THAT WERE ON THE PAGE THAT WE SCREEN PRINTED
2 EARLIER. JUST SAMPLES OF IMAGES THAT WERE FOUND.

3 Q. IN REGARD TO THE JANUARY 7TH ACTIVITY THAT YOU

4 DOCUMENTED, WHAT IS THE SIGNIFICANCE OF THIS?

5 A. WHAT I WANTED TO SHOW WITH THE SCREEN PRINTS WAS

6 THAT D. N. WEST HAD CHECKED HIS E-MAIL AT THE SPECIFIC TIME, AND

7 THEN RELATED TO THAT SPECIFIC TIME WHERE IT WAS -- THE ACCESS TO

8 THESE OTHER PORNOGRAPHIC WEB SITES AND THE IMAGES THAT ARE

9 INCLUDED ARE TO DEMONSTRATE THE TYPES OF IMAGES THAT WERE ON THE

10 SITES THAT WERE ACCESSED.

11 Q. ALL RIGHT, SIR.

12 DIRECTING YOUR ATTENTION TO SCREEN PRINTS 100 AND

13 101, WHAT ARE THESE SCREEN PRINTS OF? AND IF YOU CAN SEQUENCE

14 IT, WE CAN GO FROM 100 THROUGH 103 OR -4, DEPENDING ON YOUR -- I

15 MEAN, AS LONG AS YOU CAN ARTICULATE IT WHERE I'M ASKING YOU A

16 QUESTION AND ALLOW YOU TO FLOW WITH IT.

17 A. IT'S ACTUALLY 100 THROUGH 103, 104 -- THROUGH 104.

18 Q. YES, SIR?

19 A. AGAIN, IT'S A SCREEN PRINT OF THE ENCASE VIEW OF

20 THE COMPUTER, AND IT'S SHOWING THAT ON 9/20 THE YEAR 2000, AT

21 6:57:30, SCREEN PRINT 101 SHOWS THAT D. N. WEST CHECKED HIS HOT

22 MAIL AT HOT MAIL DOT COM, RECEIVED A MESSAGE, WHICH IS THIS HTML

23 FILE HERE. THE MESSAGE STATES -- AND THIS IS THE MESSAGE

24 SCREEN. PRINT 103 IS THE MESSAGE. IT STATES "CONGRATULATIONS

25 FOR JOINING FREE DRIVE, A FUN PLACE TO BE." IT SHOWS A USER

26 NAME OF D. N. WEST 1 AND A PASSWORD OF 5203. IT SAYS THE USER

27 NAME AND PASSWORD ARE CASE SENSITIVE.

28 AND FREE DRIVE IS A WEB BASED STORAGE MEDIUM FOR .

1 FILES. IF A PERSON WISHES TO STORE FILES OTHER THAN IN THEIR
2 COMPUTER THEY CAN BE STORED -- PEOPLE WILL RENT SPACE ON THE
3 INTERNET THAT WILL ALLOW YOU TO STORE FILES ON THEIR HARD DRIVE
4 INSTEAD OF YOUR OWN. THAT'S WHAT FREE DRIVE IS.

5 AND THEN SCREEN PRINT 104 WOULD APPEAR TO BE THE
6 BEGINNING OF THE UPLOAD OF FILES TO THIS FREE DRIVE DOT COM WEB
7 SITE.

8 Q. NOW, SIR -- I'M SORRY, DID I GIVE YOU A CHANCE TO
9 FINISH?

10 A. YEAH.

11 Q. I'D NOW LIKE TO DIRECT YOUR ATTENTION TO SCREEN
12 PRINTS 105 TO 108. MY FIRST QUESTION WITH REGARD TO THE
13 ACTIVITY IS WHAT WAS THE DATE OF THE DOWNLOAD THAT YOU'RE
14 TRACKING?

15 MR. CLARKE: OBJECTION, ASSUMES FACTS NOT IN EVIDENCE.

16 THE COURT: YOU CAN GIVE US THE DATE AND TIME DISCLOSED,
17 SIR.

18 THE WITNESS: OKAY. AGAIN, IT'S, AS WE'VE BEEN SEEING
19 WITH THE HOT MAIL HTML FILES, THIS IS ON FEBRUARY 4TH, 2002, AT
20 4:50:34 SECONDS IN THE AFTERNOON. IT'S AN ACCESS TO HOT MAIL.
21 SCREEN PRINT 106 IS THAT PARTICULAR FILE ITSELF,
22 AND IT IS D. N. WEST AT HOT MAIL DOT COM'S HOT MAIL ACCOUNT, HIS
23 INBOX. IT SHOWS JOIN FOR FREE DOT COM. A MESSAGE HAD COME INTO
24 THE INBOX FROM JOIN FOR FREE DOT COM, PASSWORDS AT MP3 DOT COM
25 AND DAVID WESTERFIELD.

26 SCREEN PRINT 107 IS AGAIN FEBRUARY 4TH, 1/4/02,

4:45:48 P.M. IN THE AFTERNOON. AND IT IS A -- AGAIN, IT'S INDEX
28 DOT HTML. AND WHAT THIS INDEX DOT HTML FILE IS IS THE E-MAIL .

1 PROGRAM -- E-MAIL SERVICE FOR SAN DIEGO STATE UNIVERSITY. IT
2 SHOWS THE E-MAIL ACCOUNT AS BEING WESTERFI, W-E-S-T-E-R-F-I AT
3 ROHAN DOT SDSU DOT EDU, AND WHICH I WOULD ADMIT IS AN ASSUMPTION
4 ON MY PART, BUT I WOULD ASSUME THAT THAT'S SAN DIEGO STATE
5 UNIVERSITY AND THEIR E-MAIL SERVICE.

6 SO WHAT THESE SCREEN PRINTS ARE SHOWING IS THAT D.

7 N. WEST ACCESSED THIS HOT MAIL AND WESTERFI AT ROHAN DOT SDSU
8 ACCESSED THEIR SDSU E-MAIL AT THE SAME TIME, ROUGHLY.

9 Q. WHAT TIME WAS THAT?

10 A. THIS IS AT 1/4/02, FEBRUARY 4TH, '02 AT 4:45 P.M.

11 Q. ALL RIGHT.

12 DIRECTING YOUR ATTENTION TO SCREEN PRINTS 109

13 THROUGH 111, WHAT ARE YOU -- WHAT DO THEY SHOW?

14 A. SCREEN PRINT 109 IS THE -- IT'S A RECOVERED E-MAIL

15 FROM THE D. N. WEST HOT MAIL ACCOUNT, AND IT SHOWS A -- IT'S

16 FROM JOIN FOR FREE DOT COM AS OPPOSED TO PINK FOR FREE DOT COM,

17 WHICH WAS IN THE EARLIER SCREEN PRINTS. IT'S TO D. N. WEST AT

18 HOT MAIL DOT COM. AND DOWN AT THE BOTTOM IT SAYS THANK YOU FOR

19 JOINING -- OR "THANK YOU FOR SIGNING UP TO JOIN FOR FREE DOT

20 COM. CLICK HERE TO ACTIVATE YOUR PASSWORD."

21 THEN SCREEN PRINT 111 IS A BANNER FROM THAT PAGE.

22 AS WE TALKED ABOUT, BANNERS ARE SEPARATE FROM THE PAGE ITSELF.

23 Q. I'M SORRY. WHAT IS JOIN FOR FREE DOT COM?

24 A. JOIN FOR FREE IS GOING TO BE ANOTHER ADULT

25 PORNOGRAPHIC SITE THAT BASICALLY OFFERS LINKS TO OTHER ADULT
26 PORN SITES.

27 Q. DIRECTING YOUR ATTENTION TO 112 AND 113, WHAT DO
28 112 AND 113 SHOW? . 7085

1 A. 112 IS AN HTML FILE. AGAIN, A SCREEN PRINT OF THE
2 ENCASE VIEW OF THIS COMPUTER. ANOTHER SHOWING DAILY UNDER SCORE
3 TUNE, HTML, THE DATE IS -- THE DATE OF LAST ACCESS IS 1/4/02,
4 THE FILE DATE CREATED IS 1/4/02 AT 4:48 P.M.
5 THEN THE FOLLOWING SCREEN PRINT 113 IS GOING TO BE
6 THE PAGE ITSELF. AND IT'S THE -- IT'S THE SAME PAGE THAT WE SAW
7 EARLIER HOT HENTAI CARTOONS.

8 Q. AND SCREEN PRINTS 114 THROUGH 126, AGAIN, WHAT DO
9 THEY SHOW?

10 I'M SORRY, DID YOU MENTION ANIME' WITH REGARD TO
11 THE LAST SERIES?

12 A. HENTAI, WHICH IS A VERSION OF -- IT'S A TYPE OF
13 ANIME'. IN MY EXPERIENCE, HENTAI SPECIFICALLY REFERS TO
14 PORNOGRAPHIC ANIME'.

15 SCREEN PRINT 114 IS ACCESSING THE HOT MAIL PAGE
16 AGAIN. THE DATE IS 1/4/02, >4:47 P.M. IN THE AFTERNOON.
17 THE FOLLOWING SCREEN PRINT 115 IS TO SHOW WHAT THE
18 PAGE WAS THAT WAS ACCESSED. IT'S THE HOT MAIL ACCOUNT FOR D. N.
19 WEST AT HOT MAIL DOT COM.

20 SCREEN PRINT 116 IS A PARTICULAR MESSAGE THAT D. N.
21 WEST CLICKED ON TO RECEIVE.

22 SCREEN PRINT 117 IS THE MESSAGE ITSELF. IT'S FROM
23 EDITOR AT NEWSLETTER DOT PINK FOR FREEDOM DOT COM, AND IT'S TO

24 D. N. WEST AT HOT MAIL DOT COM.

25 SCREEN PRINT 118 IS THE ACTUAL NEWSLETTER ITSELF.

26 AS YOU CAN SEE, THE SCREEN PRINT STOPS HERE. AND WHAT I DID WAS

27 CONTINUE -- WAS CONTINUE DOWN MAKING SCREEN PRINTS OF THE

28 NEWSLETTER. .

7086

1 Q. SIR, I'M SORRY, YOU SAID "HERE," BUT FOR OUR RECORD

2 YOU WERE REFERRING TO THE LOWER PORTION --

3 A. THE LOWER PORTION OF SCREEN PRINT 117.

4 Q. THANK YOU VERY MUCH.

5 A. SO 118 IS GOING TO BE A PORTION -- IT'S NOT ALL.

6 AS YOU CAN SEE, THERE WAS -- I COULD HAVE CONTINUED TO SCROLL

7 DOWN BUT I JUST MADE ONE SCREEN PRINT.

8 SCREEN PRINT 119 IS ALSO 1/4/02, 4:47:58 P.M. IT'S

9 A GIF FILE FROM ONE OF THE WEB PAGES, PROBABLY FROM THE PINK FOR

10FREE PAGE.

11 THE SAME WITH SCREEN PRINT 120.

12 SCREEN PRINT 121.

13 SCREEN PRINT 122 SHOWS FILE CREATED DATE OF 1/4/02

14 AT 4:49 P.M. IN THE AFTERNOON. IT'S A BANNER FOR THE WEB SITE

15 TEENS DOT COM WHICH, AS I RECALL, I DID NOT SEE IN THE PINK FOR

16 FREE NEWSLETTER, BUT I COULD NOT -- I ALSO COULD NOT FIND A

17 PARTICULAR HTML FILE TO MAKE A SCREEN PRINT OF SHOWING WHAT PAGE

18 THAT THAT HAD COME FROM, SO I AM SOMEWHAT UNCERTAIN. I DON'T

19 KNOW IF THIS WAS A NEW PAGE THAT WAS ACCESSED AT PINK DOT COM OR

20 IF IT WAS ON THE PINK FOR FREE PAGE.

21 Q. THE TIME'S PRETTY EXCLUSIVE. THE TIME'S ACCURATE?

22 MR. CLARKE: OBJECTION, LACK OF FOUNDATION.

23 THE COURT: SUSTAINED.

24

25 BY MR. FELDMAN:

26 Q. DO YOU KNOW WHAT TIME THE SCREEN WAS ACCESSED?

27 MR. CLARKE: SAME OBJECTION.

28 THE COURT: OVERRULED. .

7087

1 THE WITNESS: YES. THE TIME REFLECTED HERE ON THE SCREEN

2 PRINT IS THE TIME AND DATE THAT'S GIVEN TO THE FILE WHEN IT'S

3 DOWNLOADED FROM THE INTERNET INTO THE TEMPORARY INTERNET FILE

4 FOLDER OF THE COMPUTER. SO, IF THE CLOCK IS ACCURATE ON THE

5 COMPUTER, THEN THE TIME DATE STAMPS ON ALL THE FILES THAT ARE IN

6 THE COMPUTER ARE GOING TO BE ACCURATE.

7

8 BY MR. FELDMAN:

9 Q. AND THE DATE IS BEING REFLECTED AS 1/4/02 --

10 A. YES.

11 Q. -- ON VIRTUALLY THE LAST SERIES OF SCREEN PRINTS;

12 IS THAT CORRECT?

13 A. YES.

14 Q. THE TIME IS ABOUT 4:58 IN THE AFTERNOON ABOUT?

15 A. CORRECT.

16 Q. OKAY. GOT YOU THERE IN 126?

17 A. SCREEN PRINT 126 IS AGAIN ON 1/4/02. IT'S 4:47

18 P.M. IN THE AFTERNOON IS THE FILE CREATION DATE. IT'S A BANNER
19 FOR A WEB SITE CALLED RAW SEX VIDEOS, AND THAT'S THE END FOR
20 1/4/02.

21 Q. ALL RIGHT.

22 NOW SIR, WE GOT THROUGH 126, RIGHT?

23 A. YES.

24 Q. YOU WERE REQUESTED BY MY OFFICE TO SEE WHETHER OR
25 NOT YOU COULD DETERMINE THE DATE OF FILE CREATION OF A SERIES OF
26 MPEGs CALLED "ATTACK" THAT DEPICTED A YOUNG ASIAN -- AN ASIAN 27
WOMAN ALLEGEDLY BEING RAPED BY INDIVIDUALS.

28 DO YOU RECALL THAT WE ASKED YOU TO DO THAT? .

7088

1 A. YES. MY RECOLLECTION IS THAT I WAS INFORMED THAT
2 THAT WAS -- THAT THOSE PARTICULAR FILES WERE OF INTEREST, THAT
3 THEY HAD BEEN FOUND ON THE PIECES OF LOOSE MEDIA. AND I
4 ATTEMPTED TO DETERMINE IF I COULD FIND WHAT COMPUTER THEY HAD
5 ORIGINALLY BEEN DOWNLOADED TO AND WAS I THINK FAIRLY CERTAINLY
6 ABLE TO DO THAT.

7 Q. NOW, SIR, I'D LIKE TO DIRECT YOUR ATTENTION TO
8 SCREEN PRINTS 127 AND 128. PLEASE TELL THE JURY WHAT IS 127 AND
9 128?

10 A. 127 IS THE SCREEN CAPTURE OF THE REPORT ITSELF.
11 THIS -- THE "ATTACK" VIDEO OR -- WE ARE CALLING THEM VIDEOS, THE
12 PROPER FILE EXTENSION IS MPG AND THAT STANDS FOR COMPUTER VIDEO.
13 THERE WERE -- I'VE FORGOTTEN THE EXACT NUMBER. THERE WERE MORE
14 THAN FOUR, FIVE OR SIX. NOT ALL OF THEM WERE VIEWABLE?

15 Q. YES.

16 A. THEY WERE DOWNLOADED OR THEIR FILE CREATION DATES

17 SHOW 8/5/01 AT 3:42 P.M. IN THE AFTERNOON WITH THE LAST ACCESS

18 DATE OF 11/18/01.

19 Q. ALL RIGHT.

20 A. AND THEN SCREEN PRINT 127, WHAT I ATTEMPTED TO DO

21 THEN, ONCE I KNEW THAT THESE MPEGs HAD BEEN DOWNLOADED ON 8/5/01

22 WAS ATTEMPT TO DETERMINE IF I COULD FIND WHO THE COMPUTER USER

23 WAS ON 8/5/01 AT 3:42 IN THE AFTERNOON.

24 Q. WERE YOU ABLE TO DO SO?

25 A. SCREEN PRINT 128 SHOWS -- THE ONLY THING THAT I WAS

26 ABLE TO FIND THAT WAS STILL AVAILABLE THAT OFFERED ANY KIND OF

27 CLUE TO THAT AT ALL, AND THIS IS A -- IT'S AN ANIME'. ACTUALLY,

28 WHAT YOU'RE LOOKING AT IN SCREEN PRINT 128 IS A GIF, IMAGE FILE. . 7089

1 IT IS AN ANIME' IMAGE. THE FILE CREATED DATE IS 8/5/01. THE

2 TIME IS 1:34:36 P.M.

3 Q. WERE YOU ABLE TO LINK D. N. WEST TO JOINING ANY

4 ANIME' SITE?

5 A. YES.

6 Q. CONSISTENT WITH THE ANIME' SITE DEPICTED IN 128?

7 MR. CLARKE: OBJECTION, VAGUE.

8 THE COURT: SUSTAINED.

9

10 BY MR. FELDMAN:

11 Q. WERE YOU ABLE TO LINK D. N. WEST TO ANY ANIME' SITE

12 WHICH WAS DEPICTED OR MAY BE DEPICTED IN 128, SCREEN NAME 128?

13 MR. CLARKE: SAME OBJECTION.

14 THE COURT: SUSTAINED.

15

16 BY MR. FELDMAN:

17 Q. WHAT, IF ANY, EFFORTS DID YOU MAKE IN AN EFFORT TO

18 LINK WHETHER OR NOT D. N. WEST WAS THE DOWNLOADER OF THE

19 "ATTACK" VIDEO?

20 MR. DUSEK: OBJECTION, ASSUMES FACTS NOT IN EVIDENCE.

21 THE COURT: OVERRULED.

22 WHAT STEPS DID YOU TAKE?

23 THE WITNESS: I'M SORRY. COULD YOU ASK AGAIN?

24

25 BY MR. FELDMAN:

26 Q. WHAT STEPS, IF ANY, DID YOU TAKE TO ATTEMPT TO

27 IDENTIFY WHETHER OR NOT D. N. WEST WAS THE SOURCE OF THE ATTACK

28 MPEG TO WHICH WE'VE MADE REFERENCE IN SCREEN PRINT 127? . 7090

1 A. AS I STATED, WHAT I ATTEMPTED TO DO WAS FIND OUT IF

1 THERE WERE ANY OTHER ACCESSES ON 8/5/01 IN THE AFTERNOON, IN THE

1 EARLY AFTERNOON HOURS OF 8/5/01 THAT WOULD HELP DETERMINE WHO

4 WAS ON THE COMPUTER AT THE TIME.

5 I HAD FOUND NUMEROUS INSTANCES, AND WE'VE DISCUSSED

6 A FEW OF THEM, THAT INDICATED THAT IT WAS D. N. WEST WHO HAD AN

7 INTEREST IN ANIME' PORNOGRAPHY. AND AT 8/5/01 AT 1:34 IN THE

8 AFTERNOON I FOUND THIS FILE, WHICH IS AN ANIME' PORNOGRAPHIC

9 FILE.

10 Q. THANK YOU, SIR.

11 I THINK THE NEXT COMPUTER -- WE GOT YOU THROUGH

12 128, RIGHT?

13 A. CORRECT.

14 Q. YOU ALSO LOOKED AT AN H. P. COMPUTER NO. 1, ANOTHER

15 H. P. COMPUTER THAT WAS REPRESENTED TO YOU TO BE IN THE OFFICE;

16 IS THAT CORRECT?

17 A. THAT'S CORRECT.

18 Q. YOU RECALL -- OR AT LEAST YOU CALLED IT IN YOUR

19 REPORT AN H. P. COMPUTER NO. 1, IS THAT RIGHT, SIR?

20 A. CORRECT.

21 Q. THIS WAS EQUIPPED WITH A 38 GIGABYTE MAXTOR,

22 M-A-X-T-O-R HARD DRIVE, IS THAT RIGHT?

23 A. CORRECT.

24 Q. DIRECTING YOUR ATTENTION TO SCREEN PRINT 129, WHAT

25 DOES 129 SHOW?

26 A. SCREEN PRINT 129 IS SLIGHTLY DIFFERENT THAN THE

27 OTHER HOT MAIL SCREEN PRINTS THAT WE'VE LOOKED AT ON THE H. P.

28 ONE COMPUTER, WHERE WE'RE ACTUALLY ABLE TO SEE THE WEB PAGE . 709

1

1 ITSELF, THE HTML WEB PAGE ITSELF.

1 WHAT I DID, AND I THINK I TESTIFIED TO THIS

1 EARLIER, I OFTEN RUN THE SCRIPT OR A WORD SCRIPT FOR AT HOT MAIL

4 DOT COM WHEN I RECEIVE A PIECE OF MEDIA TO DETERMINE IF I CAN

5 FIND AN INTERNET USER ASSOCIATED WITH A PARTICULAR E-MAIL

6 ACCOUNT WHICH WAS DONE ON THIS COMPUTER. AND IN THE UPPER

7 PORTION OF SCREEN PRINT 129, WHAT I'M SHOWING ARE MY SEARCH HITS

8 FOR THE TEXT AT HOT MAIL DOT COM. AND WHAT I AM SHOWING IN THE

9 BOTTOM HALF OF SCREEN PRINT 129 IS THE PARTICULAR TEXT THAT THE

10 SOFTWARE FOUND THAT'S ASSOCIATED WITH THAT HIT AND ITS E-MAIL

11 FOR D. N. WEST AT HOT MAIL DOT COM. AND IT IS APPARENTLY AN
12 E-MAIL THAT WAS SENT TO A FAMILY IN AUSTRALIA BY NEIL
13 WESTERFIELD THANKING THEM FOR HIS VISIT. AND THEN AT THE BOTTOM
14 OF THE LETTER IT SAYS DAVID NEIL WESTERFIELD. P. S. MY E-MAIL
15 ADDRESS IS D. N. WEST AT HOT MAIL DOT COM. MY DAD'S FAX, AND IT
16 GIVES A FAX NUMBER.

17 Q. ALL RIGHT.

18 A. MY MAILING ADDRESS IS DAVID N. WESTERFIELD, AND IT
19 GIVES THE MAILING ADDRESS.

20 Q. DIRECTING YOUR ATTENTION TO SCREEN PRINTS 134
21 THROUGH 140, SIR, I WANT TO MAKE SURE I HAVEN'T SKIPPED ANY,
22 HAVE I?

23 A. WE WERE JUST TALKING ABOUT 129, RIGHT?

24 Q. YUP.

25 A. 130 WE HAD DISCUSSED PREVIOUSLY AS A SCREEN PRINT
26 OF A -- RECEIVED E-MAIL BY D. N. WEST AT HOT MAIL DOT COM SAYING
27 THANKS FOR JOINING ANIME' DOT COM.

28 Q. ALL RIGHT. .

7092

1 SCREEN PRINTS 130 THROUGH 133, WHAT DO THEY SHOW?

2 A. AS WE JUST SAID, 130 IS THE -- IS SHOWING D. N.
3 WEST AT HOT MAIL DOT COM WITH THE TEXT THANKS FOR JOINING ANIME'
4 DOT COM. IT SHOWS THE E-MAIL ADDRESS OF D. N. WEST AT HOT MAIL
5 DOT COM AND THE NAME DAVID WEST.

6 Q. 134 THROUGH 140, WHAT DO THEY SHOW?

7 A. I'M SORRY, 133, 134.

8 Q. 134. DID I SKIP 133? I DIDN'T MEAN TO DO THAT TO

9 YOU. I KNOW YOU'RE JUGGLING YOUR PAPERS, I'M SORRY.

10 A. OKAY.

11 THESE ARE ALL -- SCREEN PRINT¹³⁴ IS A HOT MAIL

12 ACCESS AND AGAIN, IT'S NOT THE TEXT SEARCH. THIS IS THE PAGE

13 ITSELF, HOT MAIL HTML PAGE?

14 Q. YES.

15 A. SCREEN PRINT ¹³⁵ IS THE INBOX FOR D. N. WEST AT HOT

16 MAIL DOT COM ON 10/28/01.

17 AT 10/28/01, WHAT I'VE HIGHLIGHTED HERE IS ANOTHER

18 HTML FILE THAT I FOUND, AND I HAVE BOLDED OR HIGHLIGHTED, AS IT

19 WERE, THE TEXT IN THIS PARTICULAR HTML FILE THAT SAYS COME SEE

20 THE HOTTEST PRETEEN SITE OUT THERE.

21 ¹³⁷ IS THE PAGE ITSELF. IT SAYS PRESENTED TO YOU

22 BY, AND AS WE SAID, THE BLANKS INDICATE WHERE THE IMAGE FILES

23 WILL GO. THE FRESHEST TEENS AT TEEN X.

24 SCREEN PRINT¹³⁸ IS ANOTHER HTML FILE WITH THE DATE

25 OF 10/28. IT SAYS MEET THE YOUNG -- MEET YOUNG GIRLS HERE FOR

26 FREE.

27 10/28, AGAIN, THIS IS SCREEN PRINT ¹³⁹ ON 10/28/01

28 IS AN ACCESS TO AN HTML PAGE AGAIN. THE WEB PAGE, IT'S CALLED .

7093

1 THE HUNDRED DOT COM. IT'S REFERRED TO HERE AS HUN DOT HTML BUT

2 IT'S THE HUN DOT COM.

3 THEN SCREEN PRINT ¹⁴⁰ IS THE PAGE ITSELF, THE HUN

4 PORNOGRAPHIC WEB SITE COVERING A VARIETY OF DIFFERENT

5 PORNOGRAPHIC INTERESTS.

6 Q. OKAY. LIVE TEEN COME AND THE HUN DOT COM, THESE

7 ARE GENERIC PORNOGRAPHIC SITES, IS THAT RIGHT?

8 A. YES, SIR.

9 Q. THEY OFFER BOTH STILLS AND VIDEOS OF A WIDE VARIETY

10 OF IMAGES; IS THAT RIGHT --

11 A. CORRECT.

12 Q. -- INCLUDING BONDAGE AND ANIME' PORN, PORNOGRAPHY;

13 IS THAT CORRECT?

14 A. CORRECT.

15 Q. SIR, I'D LIKE TO NOW DIRECT YOUR ATTENTION TO AN

16 EVALUATION OF THE LOOSE MEDIA, THE C. D.S AND THE ZIPS.

17 DID YOU FINISH THAT? I DON'T WANT TO CUT YOU OFF.

18 A. YES, SIR.

19 Q. DID YOU NOTE ANYTHING IN PARTICULAR OR WHAT YOU

20 CONSIDER TO BE IMPORTANT DETAIL IN YOUR REVIEW OF THE LOOSE

21 MEDIA?

22 A. YES, I DID. AND IF I CAN REFER TO MY REPORT, I'LL

23 BE ABLE TO DISCUSS THAT.

24 MR. CLARKE: ACTUALLY, I'M SORRY, I'LL OBJECT. IT

25 APPEARED THE WITNESS WAS READING HIS REPORT. I BELIEVE THERE

26 SHOULD BE A FURTHER FOUNDATION LAID.

27 THE COURT: SUSTAINED. LAY THE FOUNDATION, MR. FELDMAN.

28 /// .

7094

1 BY MR. FELDMAN:

2 Q. DO YOU HAVE AN INDEPENDENT RECOLLECTION OF THE
3 DETAILS OF YOUR REPORT, SIR? AN INDEPENDENT RECOLLECTION?

4 A. I WAS READING THE REPORT TO MAKE SURE.

5 Q. WOULD REVIEWING -- DID REVIEWING THE REPORT REFRESH
6 YOUR MEMORY?

7 A. YES, IT DID.

8 Q. THANK YOU.

9 MR. CLARKE: YOUR HONOR, IF I MAY ASK, IF THE WITNESS IS
10 GOING TO BE READING FROM THE REPORT OR REFERRING TO IT, IF THE
11 RECORD COULD SIMPLY REFLECT THAT.

12 THE COURT: ALL RIGHT. AND JUST REFER US TO A PAGE IF
13 YOU ELECT TO REFRESH YOUR RECOLLECTION.

14 ALL RIGHT, MR. FELDMAN YOU CAN ASK THAT QUESTION
15 AGAIN.

16

17 BY MR. FELDMAN:

18 Q. SIR, CAN YOU GENERICALLY DESCRIBE FOR ME IS THERE
19 SOMETHING -- DIRECTING YOUR ATTENTION TO SCREEN PRINTS 141
20 THROUGH 164, YOU DID A SERIES OF SCREEN PRINTS THAT ARE IN THAT
21 RANGE?

22 A. CORRECT.

23 Q. 141 THROUGH 164. WERE THEY TYPICAL OF A NUMBER OF
24 IMAGES THAT YOU'VE SEEN IN THE LOOSE MEDIA?

25 A. YES.

26 Q. AND DID THEY ALL REFLECT OR GENERALLY REFLECT A
27 COMMON ACCESS DATE?

28 A. YES. . 7095

1 Q. WHAT KIND OF IMAGES DID YOU OBSERVE IN THE LOOSE

1 MEDIA -- AND, YOU KNOW, LET ME WITHDRAW THAT.

1 WHAT KIND OF DIGITAL EXTENSIONS DID YOU NOTE IN THE

4 PARTICULAR SCREEN PRINTS THAT ARE REFLECTED 141 THROUGH 164?

5 A. JPG OR IMAGE FILES.

6 Q. DID YOU ALSO NOTE AVI FILES?

7 A. YES.

8 Q. MPEG FILES?

9 A. YES.

10 Q. SO A VARIETY?

11 A. A VARIETY.

12 Q. DID YOU NOTE ANY PARTICULAR ACCESS DATES OF SCREEN

13 PRINTS 141 THROUGH 164 THAT WERE OF NOTE TO YOU?

14 A. THE LAST ACCESS DATE WAS 12/17/01.

15 Q. WHY IS THAT IMPORTANT TO YOU?

16 A. BECAUSE ON 12/17/01 WAS THE DATE THAT IT APPEARED,

17 THE MAJORITY OF THE IMAGES ON THE GATEWAY COMPUTER IN NEIL

18 WESTERFIELD'S ROOM HAD ALSO BEEN CREATED.

19 Q. SO DOES THAT RAISE AN INFERENCE AS TO WHERE THE --

20 LET ME WITHDRAW THAT.

21 IF I HAVE A COMPUTER AND I DOWNLOAD A DOCUMENT TO A

22 CD, IS THE CD CHARACTERIZED AS LOOSE MEDIA?

23 A. YES.

24 Q. BASED ON YOUR REVIEW OF SCREEN PRINTS 141 THROUGH

25 164, BASED ON YOUR REVIEW OF ALL OF THE COMPUTER HARD DRIVES,

26 BASED ON YOUR REVIEW OF ALL OF THE SCREEN PRINTS, BASED ON YOUR

27 YEARS OF EXPERTISE, ARE YOU ABLE TO FORM AN OPINION AS TO

28 WHETHER OR NOT THE MOVIES AND IMAGES ON THE LOOSE MEDIA WERE .

7096

1 DOWNLOADED FROM A PARTICULAR COMPUTER?

2 MR. CLARKE: OBJECTION, NO FOUNDATION, CALLS FOR

3 SPECULATION.

4 THE COURT: OVERRULED.

5 YOU CAN SIMPLY ANSWER THAT YES OR NO.

6 THE WITNESS: YES.

7

8 BY MR. FELDMAN:

9 Q. WHAT'S YOUR ANSWER?

10 MR. CLARKE: SAME OBJECTION.

11 THE COURT: IT'S DULY NOTED. OVERRULED.

12 YOU MAY ANSWER.

13 THE WITNESS: THAT THOSE IMAGES WERE DOWNLOADED FROM THE

14 LOOSE MEDIA.

15

16 BY MR. FELDMAN:

17 Q. NOW, WITHOUT ACTUALLY BEING THERE YOU DON'T REALLY

18 KNOW, CORRECT?

19 A. THAT IS CORRECT.

20 Q. THAT'S YOUR BEST PROFESSIONAL OPINION; IS THAT

21 CORRECT?

22 A. YES. YES.

23 Q. SIR, WE DIDN'T ASK YOU FOR THIS INFORMATION, DID

24 WE?

25 MR. CLARKE: OBJECTION, ARGUMENTATIVE.

26 THE COURT: SUSTAINED.

27

28 /// .

7097

1 BY MR. FELDMAN:

2 Q. THE PURPOSE OF OUR REQUEST TO YOU WAS TO JUST

3 PROVIDE US INFORMATION, ISN'T THAT CORRECT?

4 A. CORRECT.

5 MR. CLARKE: SAME OBJECTION.

6 THE COURT: OVERRULED. THE ANSWER WILL STAND.

7 THE WITNESS: SORRY.

8 THE COURT: THE ANSWER WILL STAND.

9

10 BY MR. FELDMAN:

11 Q. YOU WERE THE INVESTIGATOR THAT IDENTIFIED THESE

12 SCREEN PRINTS THAT WE'VE JUST SHOWN THE JURY, IS THAT RIGHT?

13 A. YES.

14 MR. FELDMAN: YOUR HONOR, JUST FOR PURPOSES OF THE

15 RECORD, I'M GOING TO WANT TO MARK AND MOVE INTO EVIDENCE SHORT

16 THE REPORT THE WITNESS' SCREEN PRINTS ABOUT WHICH HE'S

17 TESTIFIED. I'M JUST NOT SURE WHETHER YOU THINK NOW IS

18 APPROPRIATE OR LATER.

19 THE COURT: LATER.

20 MR. FELDMAN: VERY WELL.

21 NO FURTHER QUESTIONS AT THIS TIME. THANK.

22 YOU.

23 THE COURT: ALL RIGHT. MR. CLARKE.

24 MR. CLARKE: THANK YOU, YOUR HONOR.

25

26 ///

27 ///

28 /// .

7098

1 CROSS-EXAMINATION +

2 BY MR. CLARKE:

3 Q. MR. LAWSON, GOOD MORNING.

4 A. GOOD MORNING.

5 Q. IS IT DR. LAWSON OR NOT, I'M SORRY?

6 A. NO. I WISH, NO.

7 Q. ARE YOU AN ATTORNEY?

8 A. NO, I DON'T PRACTICE LAW.

9 Q. I NOTICED IN REVIEWING YOUR C. V. -- IS THAT A

10 FANCY TERM FOR A RESUME?

11 A. YES, SIR.

12 Q. -- THAT YOU'RE A MEMBER OF A PARTICULAR

13 ORGANIZATION, THE NATIONAL ASSOCIATION OF CRIMINAL DEFENSE

14 LAWYERS, IS THAT RIGHT?

15 A. THAT'S CORRECT.

16 Q. BUT YOU'RE NOT A DEFENSE LAWYER?

17 A. NO, SIR.

18 Q. YOU ALSO LIST IN THE C. V. I THINK EIGHT, NINE OR

19 TEN REFERENCES; IS THAT CORRECT?

20 A. CORRECT.

21 Q. WHAT'S A REFERENCE FOR?

22 A. FOR PEOPLE WHO VIEW THE C. V. TO CALL AND ASK ABOUT

23 ME.

24 Q. ARE ALL OF THOSE PEOPLE YOU LIST AS REFERENCES

25 CRIMINAL DEFENSE LAWYERS?

26 A. CAN I CHECK?

27 Q. SURE. DO YOU HAVE IT WITH YOU?

28 A. I THINK I DO. . 7099

1 A. YES.

1 Q. EVERY ONE OF THEM?

1 A. WELL, THE TWO MILITARY LAWYERS IN THE MILITARY,

4 THEY GO BACK AND FORTH. THEY CURRENTLY, AS OF TODAY, I BELIEVE

5 THEY ARE BOTH STILL DOING DEFENSE WORK, BUT THAT ISN'T THEIR --

6 NECESSARILY THEIR PERMANENT POSITION.

7 Q. WHEN OBVIOUSLY YOU HAD CONTACT WITH THOSE TWO

8 LAWYERS, IS THAT --

9 A. THEY WERE CRIMINAL DEFENSE LAWYERS, THAT'S CORRECT.

10 Q. SO AT THE TIME THAT YOU HAD YOUR CONTACT WITH THEM

11 THEY WERE REPRESENTING CRIMINAL DEFENDANTS?

12 A. YES, SIR.

13 Q. YOUR COMPANY, DOES IT ASSIST LAWYERS REPRESENTING

14 DEFENDANTS CHARGED WITH CRIMES?

15 A. YES.

16 Q. AND IS IT A FOR PROFIT COMPANY?

17 A. YES.

18 Q. NOW I BELIEVE YOU TALKED ABOUT YOU HAD EXPERIENCE

19 WITH THE CUSTOMS SERVICE, IS THAT THE RIGHT TERM?

20 A. YES.

21 Q. THAT INVOLVED INVESTIGATING CHILD PORNOGRAPHY?

22 A. YES.

23 Q. WHY DID THE CUSTOMS SERVICE CARE ABOUT THAT?

24 MR. FELDMAN: RELEVANCE, SCOPE.

25 THE COURT: OVERRULED.

26 THE WITNESS: I'M NOT SURE HOW TO ANSWER THAT.

27

28 /// .

7100

1 BY MR. CLARKE:

2 Q. WELL, DID YOU PARTICIPATE WHILE YOU WERE WITH

3 CUSTOMS WITH INVESTIGATING CHILD PORNOGRAPHY?

4 A. YES.

5 Q. WAS THAT A MISSION OF THE CUSTOMS SERVICE OR WHY

6 DID THEY DO THAT?

7 A. IT'S ONE OF THE LAWS THAT THEY ENFORCE. I WOULD

8 ASSUME THAT IT WOULD BE -- THAT THEY WOULD CHARACTERIZE THAT AS

9 ONE OF THEIR MISSIONS, YES.

10 Q. IS CHILD PORNOGRAPHY A CRIME?

11 A. YES.

12 Q. NOW AS FAR AS THE AREA OF CHILD PORNOGRAPHY, ARE

13 YOU FAMILIAR WITH THE CALIFORNIA LAW IN THAT REGARD?

14 MR. FELDMAN: RELEVANCE.

15 THE COURT: OVERRULED.

16 THE WITNESS: SOMEWHAT.

17

18 BY MR. CLARKE:

19 Q. WHAT'S IT ILLEGAL TO DO IN CALIFORNIA IN TERMS OF

20 CHILDREN AND THE IMAGES?

21 MR. FELDMAN: YOUR HONOR, RELEVANCE, ONGOING OBJECTION

22 AND I DIDN'T OFFER HIM AS AN EXPERT ON THAT.

23 THE COURT: IT'S NOTED FOR THE RECORD.

24 MR. FELDMAN: THANK YOU.

25 THE COURT: OVERRULED.

26 THE WITNESS: POSSESSION, DISTRIBUTION, RECEIPT,

27 CREATION. I'M NOT SURE IF YOUR LAW IN CALIFORNIA HAS A

28 PROMOTING. .

7101

1 BY MR. CLARKE:

2 Q. OKAY. OF WHAT?

3 A. OF CHILD PORNOGRAPHY.

4 Q. WHAT DOES CALIFORNIA SAY ABOUT WHAT CONSTITUTES

5 CHILD PORNOGRAPHY?

6 A. I BELIEVE THAT CALIFORNIA LAW DISCUSSES VIA CASE

7 LAW WHAT IS DEFINED AS A LASCIVIOUS EXHIBITION OF THE CHILD

8 GENITALS OR SEXUAL ACTS OF CHILDREN.

9 Q. SO IT HAS TO BE A PERSON UNDER <18, RIGHT?

10 A. CORRECT.

11 Q. DOESN'T HAVE TO BE INVOLVED IN A SEX ACT, DOES IT?

12 A. NO.

13 Q. HOW ABOUT A PHOTOGRAPH OF A YOUNG GIRL, SOMEONE

14 UNDER 18, WHERE YOU CAN SEE THEIR GENITALS?

15 MR. FELDMAN: OBJECTION, RELEVANCE.

16 THE COURT: APPROACH THE BENCH.

17

18

19 (BENCH CONFERENCE NOT PUBLIC RECORD.)

20

21

22

23

24

25

26

27

28 .

7102

1

2

3

4

5

6

7

8

9

10

11

12

13 (THE FOLLOWING PROCEEDINGS WERE HELD IN OPEN COURT IN THE PRESENCE
OF THE JURY:)

14

15 BY MR. DUSEK:

16 Q. DID YOU -- OBVIOUSLY, YOU WROTE A REPORT IN THIS

17 MATTER; IS THAT CORRECT?

18 A. YES, SIR.

19 Q. DID YOU EVER TAKE ANY NOTES IN YOUR REVIEW OF ALL

20 THE VARIOUS MATERIALS?

21 A. YES.

22 Q. WHERE ARE THOSE?

23 A. I HAVE -- SOME OF THEM I BROUGHT. ACTUALLY, I

24 THINK I BROUGHT ALL OF MY HANDWRITTEN NOTES.

25 Q. WERE THEY PROVIDED -- I'M SORRY.

26 A. THEY'VE BEEN PROVIDED TO DEFENSE COUNSEL.

27 Q. THEY WERE PROVIDED TO MR. FELDMAN'S OFFICE?

28 A. I BELIEVE SO, YES. .

7103

1 MR. CLARKE: MAY WE ADDRESS THAT ISSUE AT SOME POINT,

2 YOUR HONOR?

3 THE COURT: YES.

4 MR. CLARKE: THANK YOU.

5 Q. BUT TO YOUR KNOWLEDGE, THEY WERE GIVEN TO THE

6 DEFENSE IN THIS CASE?

7 A. TO MY KNOWLEDGE, YES.

8 Q. DO YOU HAVE ANY REASON TO BELIEVE THEY WERE EVER

9 GIVEN TO THE PROSECUTION?

10 A. I'M SORRY, I DON'T KNOW IF THEY WERE OR NOT.

11 Q. WHEN WERE THEY GIVEN TO THE DEFENSE?

12 A. MOST OF THE NOTES -- WHEN I'M REFERRING TO NOTES

13 IT'S IN A GENERIC SENSE. MOST OF MY COMMUNICATION WITH MR.

14 FELDMAN'S OFFICE HAS BEEN VIA SCREEN PRINTS THAT I WOULD FAX TO

15 HIM AND FEDEX TO HIM, AND THEN WE WOULD COMMUNICATE BY TELEPHONE

16 ABOUT THE SCREEN PRINTS AND THEIR MEANING.

17 Q. LET'S TALK ABOUT THE NOTES. DID YOU FEDEX THEM TO

18 MR. FELDMAN'S OFFICE?

19 A. THERE ARE, I DON'T KNOW HOW MANY, FOUR OR FIVE

20 PAGES PROBABLY OF HANDWRITTEN NOTES FROM SAN DIEGO THAT DISCUSS

21 THE -- THAT DOCUMENT THE HARD DRIVE, THE NUMBERS, THE

22 IDENTIFICATION NUMBERS OF THE HARD DRIVE COMPARED TO THE

23 IDENTIFICATION NUMBERS THAT WERE PROVIDED BY THE SAN DIEGO

24 FORENSICS LABORATORY SO THAT I DIDN'T GET THE COMPUTERS CONFUSED

25 OR MIXED UP.

26 THERE ARE SOME HANDWRITTEN NOTES ABOUT IDENTIFYING

27 INDIVIDUAL PICTURE NAMES WITH LAST ACCESS DATES. FOR INSTANCE,

28 THE 1/4/02 DATE WAS -- I REMEMBER SPECIFICALLY WRITING THAT DOWN .

7104

1 THAT I HAD NOTICED THAT.

1 Q. DID YOU HAVE ANY OTHER TYPES OF NOTES, FOR

1 INSTANCE, DATA THAT YOU MIGHT KEEP IN A COMPUTER FILE OR

4 ANYTHING OF THAT MATTER? AND WHAT I'M TALKING ABOUT IS ANYTHING
5 THAT YOU DID IN YOUR WORK IN THIS CASE.

6 A. I THINK THAT WOULD BE IT.

7 Q. WHEN DID YOU -- WHEN DID YOU PROVIDE THOSE NOTES TO
8 THE DEFENSE?

9 A. IT'S BEEN ONGOING SINCE MY TRIP TO SAN DIEGO, WHICH
10 I BELIEVE WAS AROUND THE FIRST PART OF JUNE. I DON'T REMEMBER
11 THE EXACT DATES BUT AROUND THE 1ST OF JUNE. WHEN I RETURNED
12 HOME I PREPARED A -- A KIND OF A SUMMARY OF WHAT I HAD DONE
13 WHILE I WAS DOWN THERE AND WHAT I NEEDED TO CONTINUE TO DO TO BE
14 ABLE TO ASSIST HIM. AND I'M NOT SURE WHAT DATE I WOULD HAVE
15 SENT THOSE, PROBABLY THE SECOND WEEK IN JUNE.

16 Q. SO YOU'VE SENT NOTES ON AN ONGOING BASIS TO THE
17 DEFENSE?

18 A. NO, SCREEN PRINTS.

19 Q. I'M TALKING ABOUT NOTES, THE NOTES YOU SAY YOU
20 TOOK.

21 A. I HAVEN'T BEEN TAKING HANDWRITTEN NOTES ALONG THE
22 WAY.

23 Q. WELL, EXCUSE ME, MR. LAWSON. DIDN'T YOU JUST
24 DESCRIBE THE FACT THAT YOU TOOK SOME HANDWRITTEN NOTES,
25 INCLUDING I THINK IT WAS DATES AND SO FORTH?

26 A. IN SAN DIEGO, YES.

27 Q. OKAY. WHEN WERE THEY GIVEN TO THE DEFENSE?

28 A. IN THAT SECOND WEEK IN JUNE. .

1 Q. SO ALMOST A MONTH AGO?

2 A. YEAH. I'M NOT SURE WHAT THE DATE IS TODAY BUT --

3 THE SECOND WEEK IN JUNE ROUGHLY WHEN I RETURNED BACK TO SPOKANE

4 I WROTE A SUMMARY OF WHAT I HAD SEEN AND THEN WHAT I FELT I

5 NEEDED TO DO TO CONTINUE, AND TO MY RECOLLECTION I SENT

6 EVERYTHING THAT I HAD MADE, SCREEN PRINT OR HANDWRITTEN AT THAT

7 TIME.

8 Q. IS THAT THE ONLY TIME THAT YOU WROTE NOTES?

9 MR. FELDMAN: YOUR HONOR, I WANT A SIDE BAR. THIS IS

10 MISLEADING.

11 THE COURT: OVERRULED AT THIS POINT IN TIME.

12 YOU MAY ANSWER.

13 THE WITNESS: I'M TRYING TO -- I'M MAKING SURE --

14

15 BY MR. CLARKE:

16 Q. I UNDERSTAND.

17 A. I DON'T RECALL MAKING ANY OTHER HANDWRITTEN NOTES.

18 I DON'T RECALL MAKING ANY OTHERS.

19 Q. YOU HAVE A SEVERAL PAGE REPORT IN FRONT OF YOU,

20 CORRECT?

21 A. CORRECT.

22 Q. THAT YOU AUTHORED IN THIS CASE?

23 A. YES.

24 Q. WHEN YOU PREPARE A REPORT DO YOU PREPARE THAT JUST

25 FROM YOUR MEMORY?

26 A. NO. THE SCREEN PRINTS ARE WHAT I USE MOSTLY TO

27 PREPARE THESE REPORTS. I MAKE THE SCREEN PRINTS AS I GO, AND I

28 KEEP THE SCREEN PRINTS ORGANIZED BY SPECIFIC COMPUTER OR PIECE .

7106

1 OF MEDIA, AND THEN WHEN I ASSEMBLE THE REPORT I USE THE SCREEN
2 PRINTS.

3 Q. BUT YOU ALSO USE NOTES, DON'T YOU?

4 A. NOT USUALLY. SOMETIMES BUT NOT -- NOT AS A GENERAL
5 PRACTICE.

6 Q. YOU USED NOTES IN THIS CASE, DIDN'T YOU?

7 A. YES.

8 Q. INCIDENTALLY, IN TERMS OF WRITING A REPORT, DO YOU
9 WRITE THAT REPORT WHEN THE EVENTS ARE FRESHER IN YOUR MIND THAN
10 THEY ARE TODAY?

11 A. WELL, THEY WOULD BE IN CLOSER TIME PROXIMITY, YES.

12 Q. DO YOU INCLUDE IN THAT REPORT ALL RELEVANT AND
13 IMPORTANT FACTS IN TERMS OF YOUR WORK IN A CASE, INCLUDING THIS
14 CASE?

15 A. I TRY TO, YES.

16 Q. WHEN YOU'RE DONE PREPARING THE REPORT DO YOU REVIEW
17 IT FOR ACCURACY?

18 A. YES, I TRY TO.

19 Q. AND DO YOU CORRECT ANY MISTAKES THAT ARE IN THERE?

20 A. I TRY TO.

21 Q. WERE THERE ANY IMPORTANT FACTS THAT YOU LEFT OUT OF
22 THIS REPORT?

23 MR. FELDMAN: YOUR HONOR, I'M SORRY, THAT'S ARGUMENTATIVE
24 AND VAGUE.

25 THE COURT: THAT'S VAGUE. SUSTAINED.

26

27 BY MR. CLARKE:

28 Q. IN THE WRITING OF THE REPORT THAT YOU HAVE IN FRONT .

7107

1 OF YOU, YOU'VE REVIEWED IT?

1 A. YES.

1 Q. DID YOU LEAVE OUT ANY FACTS THAT YOU FELT WERE

4 IMPORTANT?

5 A. NOT THAT --

6 MR. FELDMAN: SAME OBJECTION. EXCUSE ME, SAME OBJECTION.

7 THE COURT: OVERRULED.

8 YOU MAY ANSWER, SIR.

9 THE WITNESS: NOT THAT I KNOW OF.

10

11 BY MR. CLARKE:

12 Q. DID YOU SEE ANY MISTAKE?

13 A. NOT THAT I KNOW OF.

14 Q. ISN'T IT THE CASE THAT YOU ALSO WROTE WHAT YOU

15 CHARACTERIZE AS A PRELIMINARY REPORT IN THIS CASE?

16 A. YES. I WOULD PUT THAT AS A SUMMARY OF MY INITIAL

17 FINDINGS IN SAN DIEGO.

18 Q. THAT -- CAN WE CALL IT A PRELIMINARY REPORT, IS

19 THAT FAIR?

20 A. I WOULDN'T CALL IT THAT BUT YOU CAN.

21 Q. OKAY.

22 WHAT WOULD YOU CALL IT?

23 A. A SUMMARY OF WHAT I HAD FOUND AND WHAT I NEEDED TO

24 CONTINUE TO DO.

25 Q. OKAY. THEN LET'S CALL IT A SUMMARY. IS THAT ALL

26 RIGHT?

27 ARE ALL OF THE FACTS YOU WROTE IN THE SUMMARY

28 REPORT CONTAINED IN THE REPORT THAT'S BEEN MARKED AS AN EXHIBIT? .

7108

1 A. I DON'T THINK SO.

2 Q. YOU LEFT OUT SOME THINGS IN THE FINAL REPORT THAT

3 WERE IN THE SUMMARY, DIDN'T YOU?

4 MR. FELDMAN: YOUR HONOR, AGAIN, REQUEST A SIDE BAR.

5 THIS IMPLICATES THE ATTORNEY-CLIENT PRIVILEGE.

6 THE COURT: OVERRULED. OVERRULED.

7 THE WITNESS: DID I LEAVE OUT SOME THINGS THAT WERE IN

8 THE SUMMARY REPORT IN THE FINAL REPORT?

9

10 BY MR. CLARKE:

11 Q. CORRECT.

12 A. I VERY LIKELY DID.

13 Q. WHEN COMPLETING YOUR FINAL REPORT, DID YOU REFER TO

14 THE SUMMARY FOR PURPOSES OF WRITING THAT FINAL REPORT?

15 A. YES.

16 Q. ISN'T IT CORRECT THAT IN THE PRELIMINARY REPORT YOU

17 NOTED THAT THERE WERE OBVIOUSLY INDIVIDUALS IN THE LOOSE MEDIA

18 THAT WERE UNDER THE AGE OF 18 YEARS-OLD?

19 A. YES.

20 Q. YOU DIDN'T INCLUDE THAT IN THE FINAL REPORT, DID

21 YOU?

22 A. NO.

23 Q. I'D LIKE TO FOCUS YOUR ATTENTION IF I COULD ON THE

24 MOVIES. IS THAT A FAIR TERM TO DESCRIBE THE NOT STILL IMAGES

25 BUT THE MOVIES THAT WERE FOUND ON THE LOOSE MEDIA, OKAY?

26 A. YES, SIR.

27 Q. DID YOU VIEW THOSE MOVIES?

28 A. YES. .

7109

1 Q. DID YOU LISTEN TO THEM?

1 A. NO.

1 Q. YOU NEVER HEARD THE SOUND?

4 A. NO.

5 Q. TO YOUR KNOWLEDGE, IS THERE SOUND ON AT LEAST SOME

6 OF THOSE MOVIES?

7 A. YES.

8 Q. HAVE YOU EVER HEARD IN ANY FORM THE SOUND ON THOSE

9 MOVIES?

10 MR. FELDMAN: I'M SORRY, I MISSED THE QUESTION.

11 THE COURT: REPEAT IT, OPHELIA.

12 MR. CLARKE: I CAN REPHRASE IT.

13 THE COURT: JUST REPHRASE IT, THAT'S FINE.

14

15 BY MR. CLARKE:

16 Q. HAVE YOU EVER HEARD THE SOUND ON THOSE MOVIES THAT
17 HAVE SOUND.

18 A. NO.

19 MR. FELDMAN: OBJECTION, IRRELEVANT.

20 THE COURT: OVERRULED. THE ANSWER IS NO.

21

22 BY MR. CLARKE:

23 Q. THE LAP TOP COMPUTER, I THINK YOU DESCRIBED THAT IT
24 HAD, IN YOUR OPINION, NO SIGNIFICANCE; IS THAT CORRECT?

25 A. THE ONLY SIGNIFICANCE THAT I NOTED WAS THAT IT WAS
26 USED ON THE DATES THAT I ALLUDED TO IN MY REPORT. I DIDN'T SAY
27 THAT IT HAD ACCESS TO THE INTERNET AT THAT TIME, SO --

28 Q. ALL RIGHT. AND I BELIEVE YOU GAVE THREE DATES, .

7110

1 CORRECT, THAT THE LAP TOP WAS ACCESSED, I THINK, AS YOU USED THE
2 TERM?

3 A. RIGHT.

4 Q. LAP TOP WAS ACCESSED ON MORE THAN JUST THREE DATES,
5 WASN'T IT?

6 A. YES.

7 Q. IT WAS ACCESSED EXTENSIVELY, WASN'T IT?

8 A. AS I RECALL, YES.

9 Q. IT INCLUDED GAMES ON IT, DIDN'T IT?

10 A. YES.

11 Q. NOW, I'D LIKE TO SHIFT YOUR ATTENTION TO THE

12 GATEWAY COMPUTER. SO THAT WE'RE CLEAR ABOUT WHICH COMPUTER THAT

13 IS, WAS THAT IDENTIFIED TO YOU AS HAVING COME FROM THE BEDROOM,
14 NOT THE MASTER BEDROOM BUT ANOTHER BEDROOM THAT HAS BEEN
15 ASSOCIATED WITH NEIL WESTERFIELD?

16 A. CORRECT.

17 Q. THAT IS DAVID N. WESTERFIELD, ALL RIGHT?

18 A. CORRECT.

19 Q. AS A COMPUTER SPECIALIST ARE YOU AWARE OF WHETHER
20 OR NOT COMPUTERS ARE HANDED DOWN, LET'S SAY, FROM A PARENT TO A
21 CHILD?

22 A. I'M SURE THEY ARE ALL THE TIME.

23 Q. HAVE YOU EVER ENCOUNTERED THAT IN YOUR WORK AND
24 EXPERIENCE?

25 A. YES.

26 Q. WHERE, SAY, A PARENT GETS A NEWER COMPUTER THAT'S
27 FASTER OR HAS MORE ACCESSORIES OR WHATEVER, TAKES AN OLDER
28 COMPUTER AND GIVES THAT TO A CHILD, IS THAT PRETTY COMMON? .

7111

1 A. YES --

1 Q. THIS TERM ANIME' --

1 A. -- OR THE OTHER WAY AROUND.

4 Q. WELL, I GUESS YOU'RE RIGHT IN SOME SITUATIONS, THAT
5 WOULD BE TRUE. I'M HOPING FOR THAT TO HAPPEN SOME DAY.

6 A. ME, TOO.

7 Q. AS FAR AS THE TERM "ANIME'," DOES "ANIME'" MEAN
8 SEXUAL IN NATURE?

9 A. NOT NECESSARILY.

10 Q. IN FACT, ARE YOU FAMILIAR WITH ANIME' DOT COM?

11 A. YES.

12 Q. ANIME' DOT COM, CAN YOU -- JUST ANY OF US GO TO

13 THAT WEB SITE IF WE HAVE A COMPUTER AND INTERNET ACCESS?

14 A. YES.

15 Q. WHEN YOU GO TO ANIME' DOT COM DO YOU IMMEDIATELY

16 SEE DIRTY PICTURES OR PORNOGRAPHY?

17 A. NO.

18 Q. DOES IT INCLUDE CARTOONS?

19 A. YES.

20 Q. CARTOONS THAT ONE'S CHILD COULD WATCH. AND I DON'T

21 MEAN HAVE ACCESS TO, BUT WATCH THEM WITHOUT ANY DIRTY

22 CONNOTATIONS AT ALL?

23 A. I BELIEVE SO, YES.

24 Q. NOW, IF I CAN REFER YOUR ATTENTION, AND WE'RE ONLY

25 GOING TO TALK ABOUT A FEW SCREEN PRINTS, BUT WHILE YOU'RE THERE,

26 I THINK YOU REFERRED TO SCREEN PRINTS THERE IN 36 AT ONE POINT.

27 DO YOU HAVE THOSE?

28 A. YES. .

7112

1 Q. AND THOSE ARE THE SCREEN PRINTS THAT HAVE A NUMBER

2 OF IMAGES, CORRECT, INCLUDING BARE BREASTED WOMEN?

3 A. CORRECT.

4 Q. WERE THOSE DOWNLOADED FROM THE INTERNET?

5 A. WELL, MY FEELING WAS THAT THESE -- THAT THIS

6 PARTICULAR GROUP HAD BEEN COPIED ONTO THE COMPUTER FROM ANOTHER

7 PIECE OF MEDIA, FROM THE CD OR FROM THE ZIP FILE.

8 IF YOU'RE TALKING ABOUT ORIGINALLY WHERE THEY CAME

9 FROM, YEAH, I WOULD ASSUME THAT THEY CAME FROM THE INTERNET.

10 Q. OKAY. WHEN WERE THEY DOWNLOADED FROM THE INTERNET?

11 A. I THINK I'D HAVE TO GO BACK TO -- THEY'RE SHOWING

12 FILE CREATION DATES ON THE GATEWAY OF 12/17, WHICH WAS THE LAST

13 ACCESS DATE ON THE LOOSE MEDIA.

14 Q. I'M SORRY, I JUST MISSED THE DATE. I APOLOGIZE.

15 A. THEY'RE SHOWING FILE CREATION DATES ON THE GATEWAY

16 OF 12/17/01 --

17 Q. IS THAT WHEN THEY WERE DOWNLOADED -- I'M SORRY.

18 A. -- WHICH IS THE LAST ACCESS DATE ON THE MEDIA. AND

19 THEN WHEN YOU GO TO THE MEDIA AND LOOK, THE LAST ACCESS DATE

20 BEING 12/17/01, THIS PARTICULAR FILE, I JUST PICKED ONE AT

21 RANDOM, AND I DON'T KNOW IF IT'S ANIME' BUT IT'S REFERRED TO AS

22 A CARTOON FILE CALLED BIG RED WAS CREATED ON 1/14/99.

23 Q. THREE AND A HALF YEARS AGO OR SO, CORRECT?

24 A. CORRECT.

25 Q. DO YOU KNOW HOW OLD THE DEFENDANT IN THIS CASE'S

26 SON IS?

27 A. NO, I DON'T. I WOULD ASSUME HE'S -- HE MUST BE IN

28 COLLEGE, SO HE MUST BE 19 OR 20. .

7113

1 Q. BUT YOU DON'T KNOW HIS AGE?

2 A. NO, I DON'T.

3 Q. THOSE PARTICULAR FILE NAMES ON YOUR SCREEN PRINTS,

4 I THINK IT'S 10 THROUGH 36, ARE THEY ALL PRECEDED BY THE LETTERS

5 IEA?

6 A. YES.

7 Q. ARE YOU AWARE OF WHETHER OR NOT IN THE OFFICE

8 COMPUTERS THERE WERE BUSINESS FILES OF MR. WESTERFIELD? AND I'M

9 REFERRING TO DAVID A. WESTERFIELD.

10 A. YES, THERE WERE.

11 Q. DID YOU NOTICE THAT THEY HAD THE SAME PREFIX OF

12 IEA?

13 A. I DON'T KNOW THAT. I DON'T REMEMBER THAT.

14 Q. WOULDN'T THAT BE IMPORTANT TO KNOW?

15 MR. FELDMAN: OBJECTION, ARGUMENTATIVE.

16 THE COURT: OVERRULED.

17 THE WITNESS: YES.

18

19 BY MR. CLARKE:

20 Q. BUT YOU DIDN'T LOOK AT THAT?

21 A. I DIDN'T NOTICE THAT.

22 Q. AND I'D LIKE TO TURN YOUR ATTENTION NOW TO I THINK

23 IT'S SCREEN PRINT 37 AND 38. PERHAPS YOU CAN REFER TO THAT?

24 A. OKAY.

25 Q. IN PARTICULAR, WAS THAT AN IMAGE THAT WAS

26 DOWNLOADED FROM THE INTERNET?

27 A. WELL, ONE WOULD ASSUME SO.

28 Q. WELL, WHEN YOU SAY ONE WOULD ASSUME SO, DOES THAT .

7114

1 MEAN YOU DON'T KNOW?

2 A. NO, YOU DON'T. I DON'T KNOW THE -- WHAT IT'S

3 SHOWING HERE IN THE -- ON THESE SCREEN PRINTS IS A FILE PATH

4 THAT THE -- THAT THIS PARTICULAR IMAGE WAS IN A FOLDER CALLED MY

5 DOCUMENTS, MOVIES, SWING CARTOONS/ANIME' PIC/ANNEX IEA 18756 DOT

6 GIF. SO WITH THE FOLDER THAT IT'S IN, I CAN'T TELL WHERE IT

7 CAME FROM. IF IT WAS IN A TEMPORARY INTERNET FILE FOLDER, FOR

8 INSTANCE, THEN I WOULD MORE STRONGLY SAY IT VERY LIKELY CAME

9 FROM THE INTERNET.

10 Q. SO THIS MAY NOT EVEN HAVE BEEN DOWNLOADED FROM THE

11 INTERNET, CORRECT?

12 A. THAT'S POSSIBLE. IT COULD HAVE COME FROM E-MAIL OR

13 FROM A CD, FOR INSTANCE, THAT SOMEBODY GAVE SOMEBODY ELSE, COULD

14 HAVE AN IMAGE ON IT THAT YOU COULD DOWNLOAD IT ON YOUR COMPUTER.

15 Q. ALL RIGHT.

16 I BELIEVE YOU DESCRIBED DURING DIRECT EXAMINATION

17 THAT THIS IMAGE WAS -- I THINK YOU SAID WOULD IT BE LAST

18 ACCESSED ON DECEMBER 17TH OF 2001?

19 A. YES.

20 Q. WHEN WAS IT CREATED?

21 A. 12/17/01.

22 Q. WHEN WAS IT LAST WRITTEN?

23 A. 4/22/99.

24 Q. OVER THREE YEARS AGO?

25 A. CORRECT.

26 Q. WHAT ABOUT NUMBER 38, THE NEXT ONE?

27 A. SAME DATES BUT WITH THE LAST WRITTEN DATE OF

28 4/20/99. .

7115

1 Q. OVER THREE YEARS AGO?

2 A. YES.

3 Q. "LAST WRITTEN" MEANS WHAT?

4 A. USUALLY MEANS THE LAST DAY THAT THE FILE WAS --

5 SOMEHOW CHANGED, MANIPULATED IN SOME WAY WITH AN IMAGE FILE THAT

6 CAN BE RESIZED WITH A TEXT FILE. IT CAN BE ADDING NEW TEXT TO A

7 FILE AND CLOSING IT.

8 Q. ALL RIGHT.

9 EACH OF THE FILES THAT YOU DESCRIBED IN YOUR SCREEN

10 PRINTS, 37 AND 38, DO EITHER OF THEM HAVE THE IEA PREFIX?

11 A. YES.

12 Q. ONE OF THEM?

13 A. NO, THEY BOTH DO.

14 Q. NOW YOU TALKED ABOUT VARIOUS E-MAILS, CORRECT?

15 A. CORRECT.

16 Q. NOW, I BELIEVE AT LEAST IN ONE INSTANCE EITHER YOU >

17 OR MR. FELDMAN USED THE TERM "PORN SURFING"?

18 A. YES.

19 Q. WAS THAT YOUR TERM?

20 A. I DON'T RECALL. IT MAY HAVE BEEN.

21 Q. IS THAT THE SAME AS -- WELL, IT'S SURFING ON THE

22 INTERNET, IS THAT RIGHT?

23 A. CORRECT.

24 Q. OKAY.

25 WELL, AS FAR AS THE -- I THINK YOU DESCRIBED IN

26 SOME OF THE SCREEN PRINTS AN E-MAIL FROM PINK FOR FREE DOT COM?

27 A. YES, SIR.

28 Q. DO YOU RECALL THAT? .

7116

1 A. YES, SIR.

2 Q. ARE THOSE SCREEN PRINTS DUPLICATED? IN OTHER

3 WORDS, REVEALED MORE THAN ONCE OF THE SAME SCREEN PRINT IN THE

4 HUNDRED AND WHATEVER NUMBER SCREEN PRINTS YOU HAD?

5 A. I'M NOT SURE I UNDERSTAND YOUR QUESTION.

6 Q. OKAY. I THINK YOU DESCRIBED A SPECIFIC E-MAIL FROM

7 PINK FOR FREE DOT COM. DO YOU RECALL THAT?

8 A. YES.

9 Q. AND I THINK YOU DESCRIBED THAT AS A DATE OF

10 DECEMBER 13TH, 2001.

11 DO YOU RECALL THAT?

12 A. YES.

13 Q. IS THAT E-MAIL DUPLICATED? IN OTHER WORDS, THE

14 SAME EXACT SCREEN PRINT IN MORE THAN ONE LOCATION IN YOUR

15 EXHIBITS -- SCREEN PRINTS, I'M SORRY?

16 A. I THINK THE SCREEN PRINTS WERE PINK FOR FREE. AS I

17 RECALL, THEY WERE IN THESE -- THEY'RE INCLUDED IN THE NOTEBOOK A

18 COUPLE TIMES.

19 Q. THE SAME E-MAIL?

20 A. OH, I DON'T KNOW THAT.

21 Q. OKAY. LET'S TAKE A LOOK IF WE CAN, YOUR SCREEN

22 PRINTS, AND I BELIEVE IT'S 42 THROUGH 47, DO YOU HAVE THOSE
23 HANDY?

24 A. I'LL FIND THEM.

25 OKAY.

26 Q. NOW, THIS WAS THE E-MAIL THAT WAS FROM THE EDITOR
27 AT NEWSLETTER DOT PINK FOR FREELY DOT COM, IS THAT RIGHT?

28 A. CORRECT. .

7117

1 Q. ON DECEMBER 13TH, 2001?

2 A. UM-HMM.

3 Q. IS THAT RIGHT?

4 A. MY BOOK'S UPSIDE DOWN, SORRY.

5 ON 12/13/01, IS THAT WHAT YOU ASKED?

6 Q. YES.

7 A. YES.

8 Q. WHAT'S A NEWSLETTER?

9 A. WELL, IN THIS CASE IT'S A --

10 MR. FELDMAN: OBJECTION, IRRELEVANT AND OUT OF CONTEXT.

11 THE COURT: OVERRULED.

12 YOU CAN ANSWER.

13 THE WITNESS: IN THIS CASE, IT'S -- I DON'T KNOW WHAT

14 OTHER PHRASE TO USE OTHER THAN NEWSLETTER TO DESCRIBE IT. IT'S

15 A DESCRIPTION OF DIFFERENT SITES THAT CAN BE VISITED THROUGH THE

16 PINK FOR FREE DOT COM WEB SITE. IT'S LIKE AN ANNOUNCEMENT OF

17 THESE THINGS ARE AVAILABLE BY COMING HERE TODAY.

18 Q. ALL RIGHT.

19 AND IT GIVES ONE THE OPPORTUNITY AT DIFFERENT

20 PLACES THAT ARE CONTAINED ON THE NEWSLETTER?

21 A. CORRECT.

22 Q. USING A MOUSE OF ONE'S COMPUTER?

23 A. CORRECT.

24 Q. HOW MANY OF THOSE SITES DID THAT PERSON FLICK ON

25 WHEN THAT PERSON GOT THAT PIECE OF MAIL AND OPENED IT THAT WERE

26 CONTAINED IN THE NEWSLETTER?

27 A. I KNOW ON THIS DATE I DIDN'T HAVE ANY SCREEN PRINTS

28 SHOWING ANY. THAT DOESN'T MEAN THAT THEY DIDN'T. I JUST DON'T .

7118

1 FIND ANY EXAMPLES OF IT.

2 Q. WERE YOU LOOKING FOR 'EM?

3 A. OH, I PROBABLY DID, YEAH.

4 Q. DIDN'T FIND ANY?

5 A. NO.

6 Q. SO IS IT CORRECT THAT IT APPEARS FROM YOUR

7 EXAMINATION THAT NO ONE EVEN CLICKED ON ANY OF THOSE WEB SITES?

8 A. ON THIS PARTICULAR DAY?

9 Q. THIS DECEMBER 13TH, 2001 NEWSLETTER FROM PINK FOR

10 FREE DOT COM?

11 A. I'M NOT FINDING -- I DIDN'T FIND ANY EXAMPLES OF

12 CLICKING ON ANY OF THESE LINKS ON 12/13.

13 Q. BUT YOU HAD NO EVIDENCE TO SUPPORT THAT ANYONE EVER

14 DID?

15 A. NO.

16 Q. NO MEANING WHAT?

17 A. THAT --

18 Q. DO YOU HAVE ANY EVIDENCE TO SUPPORT ANYONE CLICKING

19 ON ANY OF THOSE LINKS ON THAT PARTICULAR NEWSLETTER?

20 A. ON THIS PARTICULAR DAY, NO, I DON'T.

21 THE COURT: OKAY, LADIES AND GENTLEMEN, WE'RE GOING TO GO

22 AHEAD AND TAKE THE LUNCH BREAK.

23 PLEASE REMEMBER THE ADMONITION OF THE COURT NOT TO

24 DISCUSS ANY OF THE EVIDENCE OR TESTIMONY AMONG YOURSELVES OR

25 WITH OTHERS, NOR FORM OR EXPRESS ANY OPINIONS ON THE CASE UNTIL

26 IT IS SUBMITTED TO YOU FOR DECISION.

27 HAVE A PLEASANT LUNCH. WE'LL SEE YOU AT HALF PAST

28 1:00. 1:30. .

MR. CLARKE: THANK YOU, YOUR HONOR.

PROCEED?

THE COURT: YES. AS SOON AS THE THUNDERING MASSES ARE QUIET, I THINK IT
WILL BE APPROPRIATE.

OKAY. MR. CLARKE.

MR. CLARKE: THANK YOU.

BY MR. CLARKE:

Q MR. LAWSON, I WOULD LIKE TO FOCUS YOUR ATTENTION ON FEBRUARY 4TH OF
THIS YEAR. DO YOU RECALL PROVIDING TESTIMONY ABOUT SOME OF THE
VARIOUS SCREEN PRINTS OR AT LEAST ONE SCREEN PRINT THAT RELATED TO
THAT DAY?

A YES, SIR.

Q ISN'T IT CORRECT THAT THERE'S NO DEMONSTRATION IN ANY OF THE RECORDS
IN THAT MACHINE THAT ANY PORN. SITES WERE ACTUALLY VISITED THAT DAY?
MR. FELDMAN: SORRY. OBJECTION. WHICH MACHINE THAT REFERS TO. THE
COURT: BE SPECIFIC, COUNSEL. BY MR. CLARKE:

Q ANY MACHINE.

A THAT THERE -- I'M SORRY. COULD YOU ASK YOUR QUESTION AGAIN.

Q SURE. ISN'T IT CORRECT THAT FROM THE EXAMINATION CONDUCTED BY YOU OF THE VARIOUS COMPUTERS IN THIS CASE BY WAY OF YOUR EXAMINATION OF THE HARD DRIVES THAT THERE'S NO INDICATION ANY WEB SITE WAS ACTUALLY VISITED THAT DAY?

A CAN I THUMB THROUGH AND LOOK?

Q SURE.

A THE WEB SITES THAT WERE VISITED APPEAR TO BE THE PINK FOR FREE, THE DAILY-TOON, AND POSSIBLY THE TEENS DOT COM.

Q OKAY. LET'S TALK ABOUT PINK FOR FREE. ISN'T IT CORRECT THAT WHAT WAS RECEIVED WAS AN E-MAIL THAT DAY WHICH WAS OPENED?

A THAT'S CORRECT.

Q ISN'T IT CORRECT THAT THERE IS NO INDICATION THAT WEB SITE WAS ACTUALLY VISITED? WHAT I MEAN IS CLICKING ON A WAY TO GET TO THAT WEB SITE AS OPPOSED TO RECEIVING AN E-MAIL FROM THEM.

A IN HOT MAIL WHEN YOU RECEIVE AN E-MAIL SUCH AS THIS FROM A PORNOGRAPHIC SITE OR FROM ANY SITE THAT WANTS YOU TO VISIT, YOU HAVE TO CLICK ON THE LINK TO GO THERE.

Q THAT DIDN'T HAPPEN ON THAT DATE, CORRECT?

A YES, IT DID.

Q TO WHICH SITE?

A TO THE PINK FOR FREE SITE.

Q ALL RIGHT. MR. CLARKE: YOUR HONOR, I HAVE A DOCUMENT I WOULD LIKE MARKED NEXT IN ORDER. THE COURT: OKAY. 158. THE WITNESS: I'M SORRY. NOT PINK FOR FREE. JOIN FOR FREE. MR. CLARKE: OKAY. BY MR. CLARKE:

Q PINK FOR FREE WAS THE PORNOGRAPHIC WEB SITE, CORRECT?

A THEY BOTH ARE.

Q OKAY.

A I BELIEVE THEY'RE EVEN RELATED. I THINK THE SAME COMPANY OWNS SEVERAL THAT ARE NAMED SIMILAR NAMES. MR. CLARKE: YOUR HONOR, I HAVE HAD MARKED AS COURT'S EXHIBIT 158 WHAT APPEARS TO BE A THREE-PAGE DOCUMENT LABELED INTERNET EXPLORER HISTORY. (THREE-PAGE DOCUMENT ENTITLED "INTERNET EXPLORER HISTORY" MARKED TRIAL EXHIBIT NUMBER 158 FOR IDENTIFICATION.) BY MR. CLARKE:

Q MR. LAWSON, CAN YOU TAKE A MOMENT TO TAKE A LOOK AT THAT.

A (THE WITNESS COMPLIED.) OKAY.

Q WHAT DOES THAT APPEAR TO BE?

A IT APPEARS TO BE A HISTORY OF U.R.L.'S, ANOTHER NAME FOR, AS WE HAVE BEEN TALKING ABOUT H.T.M.L. PAGES, BASICALLY SITES ON THE INTERNET THAT WERE VISITED.

Q OKAY. CAN WE CALL THEM WEB SITES? IS THAT FAIR?

A YES.

Q AND ARE THEY READ FROM BACK TO FRONT SO TO SPEAK IN TERMS OF THE CHRONOLOGICAL ORDER OF THE WEB SITES VISITED?

A THEY APPEAR TO START AT 15:50:38 AND END AT 20:29:18.

Q JUST SO WE'RE CLEAR, WHAT'S THE DATE?

A 2/4/02.

Q AND WHEN YOU USE THE TERM 1550 AS THE STARTING POINT, WHAT TIME IS THAT?

A 5:50? IS THAT RIGHT?

Q HOW ABOUT 3:30?

A I'M TERRIBLE. I WAS NEVER IN THE MILITARY. SO 3:50.

Q IN THE AFTERNOON?

A YES.

Q PROCEEDING TO WHAT TIME AFTER THAT?

A 2029. 9:00 O'CLOCK, 9:30.

Q 8:29?

A OKAY.

Q DOES THAT SOUND RIGHT?

A OKAY. I'LL TAKE YOUR WORD FOR IT.

Q NOW, WITH RESPECT TO THE -- DOES THIS IN FACT REFLECT THE HISTORY OF WEB SITES VISITED ON FEBRUARY 4TH FROM THE PARTICULAR MACHINE THAT

YOU DESCRIBED IN YOUR EARLIER TESTIMONY TODAY? MR. FELDMAN: VAGUE AS TO WHICH MACHINE. THE COURT: WHICH MACHINE. SUSTAINED. BY MR. CLARKE:

Q YOU DESCRIBED VISITS ON FEBRUARY 4TH DURING DIRECT EXAMINATION. DO YOU RECALL THAT EARLIER TODAY?

A YES.

Q DOES THIS HISTORY REFLECT -- AND DID THAT RELATE TO A SPECIFIC MACHINE?

A YES.

Q WHICH MACHINE?

A I HAD NAMED IT H. P. ONE, HEWLETT-PACKARD ONE.

Q ONE OF THE OFFICE COMPUTERS?

A ONE OF THE OFFICE COMPUTERS, CORRECT.

Q DOES THIS EXHIBIT WHICH HAS BEEN MARKED EXHIBIT -- THE COURT: 158. BY MR. CLARKE:

Q -- 158, DOES THAT REFLECT THE HISTORY OF WEB SITES VISITED BY THE H. P. MACHINE IN THE OFFICE, I THINK YOU CALLED IT H. P. ONE?

A YES. DOES IT? I DON'T KNOW. I DIDN'T CREATE THE DOCUMENT, SO I DON'T KNOW.

Q DO YOU HAVE ACCESS TO THAT INFORMATION FROM THE VARIOUS MATERIALS THAT YOU WERE PROVIDED IN THIS CASE? MR. FELDMAN: VAGUE AS TO TIME. ACCESS. THE COURT: OVERRULED. YOU MAY ANSWER. THE WITNESS: COULD I HAVE CREATED A SIMILAR DOCUMENT AS THIS? IS THAT YOUR

QUESTION? MR. CLARKE: YES. THE WITNESS: YES. I COULD HAVE CREATED A SIMILAR DOCUMENT AS THIS. MR. CLARKE: ALL RIGHT. BY MR. CLARKE:

Q IS THERE ANYTHING ABOUT THAT DOCUMENT THAT APPEARS TO BE INACCURATE IN TERMS OF REFLECTING THE VARIOUS WEB SITES THAT WERE VISITED?

A NO. I DON'T SUPPOSE SO. I WOULDN'T KNOW. I DIDN'T CREATE IT.

Q ALL RIGHT. WOULD YOU FEEL MORE COMFORTABLE BEING ABLE TO COMPARE THAT TO THE DATA THAT YOU HAVE THAT YOU USED FOR YOUR EXAMINATION?

A WE COULD COMPARE THE SCREEN PRINTS THAT I HAVE IN MY NOTEBOOK, YES.

Q ARE THEY SUFFICIENTLY COMPLETE THAT YOU COULD THEN COMPARE THAT TO THE MATERIAL CONTAINED IN EXHIBIT 158 TO DETERMINE IF 158 IS ACCURATE?

A FOR THE SCREEN PRINTS THAT I BROUGHT, YES.

Q DOES THAT MEAN THERE ARE SOME SCREEN PRINTS YOU DIDN'T BRING?

A ABSOLUTELY.

Q HOW MANY SCREEN PRINTS DIDN'T YOU BRING TO COURT?

A NO. NO. EXCUSE ME. I'LL TAKE THAT BACK. SCREEN PRINTS I DIDN'T MAKE.

Q ALL RIGHT. ARE YOUR SCREEN PRINTS SUFFICIENTLY COMPLETE TO BE ABLE TO DETERMINE IF THIS EXHIBIT IS ACCURATE?

A ACCURATE IN THE SENSE THAT THE SCREEN PRINTS THAT I HAVE CAN BE COMPARED TO THIS, YES.

Q AND THEN BE ABLE TO TELL US IF EXHIBIT 158 IS AN ACCURATE DOCUMENT?

A I DIDN'T CREATE THE DOCUMENT, SO -- I CAN TELL YOU FROM THE SCREEN PRINTS THAT I HAVE AND I CAN COMPARE THEM WITH THIS DOCUMENT, AND I CAN TELL YOU THAT FROM WHAT I DID, FROM THE SCREEN PRINTS I MADE, THAT THAT PORTION OF IT IS ACCURATE.

Q LET'S TRY IT A DIFFERENT WAY. LET'S TAKE THE FIRST ENTRY. AND I THINK THAT WOULD BE ON PAGE 3. IS THAT CORRECT? AT THE VERY BOTTOM OF PAGE 3. EXHIBIT 158.

A YES.

Q THAT'S AN ENTRY ON 2/4/2002 AT THREE --

A 3:50.

Q AND IT SAYS DAVID WESTERFIELD AT HOST DOT -- I'M SORRY. DAVID WESTERFIELD AT HOST, THEN WRITTEN IN W.W.W. DOT U.B.O.C. DOT COM.

A CORRECT.

Q IS THAT AN ACCURATE ENTRY?

A I WOULDN'T KNOW. I WOULD ASSUME THAT IT IS, BUT I DON'T KNOW. I DIDN'T CREATE THE DOCUMENT.

Q I UNDERSTAND THAT. WHAT I'M ASKING YOU IS DOES THAT DOCUMENT ACCURATELY REFLECT THAT ENTRY AT THAT TIME AND DATE FROM THAT COMPUTER. IF YOU CAN TELL US.

A NO, I CAN'T TELL YOU.

Q IN THIS THREE-PAGE DOCUMENT CAN YOU INDICATE FOR US WHERE THERE IS AN ENTRY REGARDING JOIN FOR FREE DOT COM. AS A WEB SITE VISIT?

A NO. NOT ON THIS DOCUMENT.

Q IF THIS DOCUMENT ACCURATELY REFLECTED WEB SITE VISITS BY THAT MACHINE, THE H. P. NUMBER ONE I BELIEVE IT IS FROM THE OFFICE, --

A M-HM.

Q -- IF THAT WAS ACCURATE, WOULD IN FACT IT BE THE CASE THAT JOIN FOR FREE DOT COM. WAS NOT VISITED ON THAT COMPUTER BETWEEN THE TIMES -- ON THAT DATE BETWEEN THE TIMES DESCRIBED? MR. FELDMAN: ARGUMENTATIVE. MR. BOYCE: OBJECTION. IRRELEVANT AND ASKED AND ANSWERED, YOUR HONOR. THE COURT: OVERRULED. MR. FELDMAN: ARGUMENTATIVE AND ASSUMES FACTS NOT IN EVIDENCE, YOUR HONOR. THE COURT: IT ASSUMES FACTS NOT IN EVIDENCE. SUSTAINED. / / / BY MR. CLARKE:

Q DO YOU HAVE ANY REASON TO BELIEVE THAT DOCUMENT 158 IS INACCURATE? MR. FELDMAN: OBJECTION. ARGUMENTATIVE AND IRRELEVANT. THE COURT: ASKED AND ANSWERED. SUSTAINED. NEXT QUESTION. BY MR. CLARKE:

Q AS FAR AS THE WEB SITE VISITS THAT OCCURRED FROM THAT MACHINE ON FEBRUARY 4TH, DOES THAT INCLUDE VISITS TO BANKING SITES?

A ACCORDING TO THIS DOCUMENT?

Q WHAT HAPPENED -- WHICHEVER DOCUMENTS HELP YOU -- I'M SORRY -- HELP YOU ANSWER THAT QUESTION, YOU CAN REFER TO ANYTHING YOU HAVE. MR. FELDMAN: WELL, YOUR HONOR, OBJECTION. IT'S ARGUMENTATIVE. THERE'S NO FOUNDATION FOR 158. THE COURT: HE'S NOT LIMITED IT TO THIS DOCUMENT. DO YOU UNDERSTAND THE QUESTION? THE WITNESS: I BELIEVE SO. THE COURT: ALL RIGHT. THE WITNESS: AND I CAN'T ANSWER THAT QUESTION WHETHER THERE WAS OR WAS NOT. I DON'T HAVE ANY INFORMATION THAT WOULD TELL ME ONE WAY OR THE OTHER. BY MR. CLARKE:

Q SO YOU DIDN'T LOOK AT THE WEB SITES VISITED ON THAT PARTICULAR DATE ON THAT COMPUTER.

A YES.

Q IS IT THE CASE YOU --

A I DON'T RECALL THEM IN MY MEMORY WHETHER THERE WAS A PARTICULAR VISIT TO A BANKING SITE OR NOT.

Q OKAY. DO YOU RECALL FROM YOUR MEMORY IF THERE WAS ANY VISIT TO A NEWSPAPER WEB SITE?

A YES. THAT I RECALL.

Q DO YOU RECALL IF THERE WERE ANY VISITS TO ANY GAMING SITES, GAMES?

A YES.

Q HOW ABOUT --

A THE PIGGS-HAUSE DOT COM. SITE WAS VISITED I BELIEVE.

Q DO YOU RECALL APPROXIMATELY HOW MANY VISITS TO WEB SITES THERE WERE ON FEBRUARY 4TH BETWEEN THE TIME PERIODS THAT WE'VE DESCRIBED EARLIER?

A HAVE I HAD SPECIFIC WEB SITES OR VISITS TO THE SAME WEB SITE REPEATEDLY OR. . .

Q LET'S TALK ABOUT EACH TIME SOMEBODY CLICKS TO GO TO THAT WEB SITE.

A THERE WERE NUMEROUS VISITS TO -- I BELIEVE IT'S THE "SAN DIEGO UNION-TRIBUNE" WEB SITE. I'M NOT POSITIVE ABOUT THAT. THERE WERE NUMEROUS VISITS TO THAT IN THE LATER EVENING HOURS I WOULD SAY 6:00 TO 7:00 O'CLOCK, AREA. I CAN'T GIVE YOU A NUMBER SPECIFICALLY, BUT PROBABLY OVER A DOZEN I WOULD GUESS.

Q WERE THE VARIOUS WEB SITES VISITED IMPORTANT IN YOUR EXAMINATION IN THIS CASE?

A SOME OF THEM WERE, YES.

Q BUT YOU DON'T HAVE DOCUMENTS WITH YOU TODAY THAT CAN REFLECT THOSE SITES THAT WERE ACTUALLY VISITED ON THAT DATE BETWEEN THOSE HOURS.

A I BROUGHT THE SCREEN PRINTS THAT I MADE.

Q WHICH ARE JUST SOME OF THE SCREEN PRINTS.

A THAT'S CORRECT. NO. THEY'RE ALL THE SCREEN PRINTS THAT I MADE. I DIDN'T SCREEN PRINT EVERYTHING THAT WAS ON THE COMPUTER.

Q WHEN YOU MADE SCREEN PRINTS, WERE YOU LOOKING AT SITES THAT WERE VISITED?

A YES.

Q AND SELECTIVELY PRINTING THEM AS OPPOSED TO PRINTING THEM EACH?

A THAT'S CORRECT.

Q AND THAT'S WHY YOU DON'T HAVE ALL OF THE SCREEN PRINTS, CORRECT?

A THAT'S CORRECT.

Q NOW, I THINK THERE WAS SOME DESCRIPTION OF WHAT SPAM IS. DO YOU RECALL THAT?

A YES, SIR.

Q HOW MUCH OF THE E-MAIL THAT YOU EXAMINED, AND LET'S USE THE GATEWAY COMPUTER AND THE TWO OFFICE COMPUTERS, HOW MUCH OF THAT E-MAIL WAS SPAM?

A I WOULD BE GUESSING, BUT I WOULD SAY PROBABLY, LOOKING AT THE IN BOXES OF THOSE COMPUTERS, PROBABLY FIFTY PER CENT.

Q SPAM'S PRETTY COMMON, ISN'T IT?

A YES.

Q INCLUDING FROM PORNOGRAPHIC WEB SITES?

A YES. IF THE PERSON IS ACCESSING PORNOGRAPHIC WEB SITES, THEN THEY ARE MORE LIKELY TO GET MORE PORNOGRAPHIC SPAM. IT'S NOT IMPOSSIBLE TO RECEIVE IT WITHOUT VISITING A PORNOGRAPHIC WEB SITE, BUT THE MORE PORNOGRAPHIC WEB SITES YOU VISIT, THE MORE PORNOGRAPHIC SPAM YOU WILL RECEIVE.

Q IN YOUR EXPERIENCE HAVE PEOPLE RECEIVED SPAM-TYPE E-MAILS FROM PORNOGRAPHIC WEB SITES WITHOUT EVER HAVING MADE A VISIT?

A YES. THAT DEFINITELY CAN HAPPEN.

Q I'M SORRY. WITHOUT EVER HAVING BEFORE MADE A VISIT TO A PORNOGRAPHIC WEB SITE?

A I'M SURE THAT CAN HAPPEN.

Q IT DOES HAPPEN, DOESN'T IT?

A I WOULD ASSUME THAT IT DOES. I'VE NEVER ENCOUNTERED THAT SPECIFICALLY TO KNOW FOR CERTAIN THAT NO ONE WHO HAS EVER VISITED A PORNOGRAPHIC SITE HAS EVER RECEIVED A PIECE OF PORNOGRAPHIC SPAM.

Q I'M ASKING A DIFFERENT QUESTION. AND THAT IS: IS IT THE CASE -- WHAT ARE YOU TRYING TO TELL US IN TERMS OF CAN A PERSON WHO'S NEVER VISITED A PORNOGRAPHIC WEB SITE RECEIVE AN E-MAIL FROM SUCH A SITE THAT'S IN THE SPAM?

A YES. YES, THAT CAN HAPPEN.

Q YOU HAVE TO WAIT UNTIL I'M FINISHED, IF YOU WOULD, PLEASE.

A YES.

Q OTHERWISE THE COURT REPORTER WILL GET ANGRY AT BOTH OF US.

A I'M SORRY.

Q IS IT THE CASE THAT A PERSON NEVER VISITED A PORNOGRAPHIC WEB SITE CAN RECEIVE SPAM-TYPE E-MAIL FROM A PORNOGRAPHIC WEB SITE WITHOUT EVER BEFORE HAVING VISITED IT?

A THAT CAN HAPPEN, YES.

Q NOW I WOULD LIKE TO ASK YOU ABOUT THE ATTACK VIDEOS, AND BY ATTACK VIDEOS DO YOU KNOW WHAT I'M REFERRING TO?

A YES.

Q AND I BELIEVE YOU SAID THAT YOU HAD VIEWED THEM. IS THAT CORRECT?

A THAT'S CORRECT.

Q DID NOT LISTEN TO THEM, IS THAT RIGHT?

A NO. MR. FELDMAN: ASKED AND ANSWERED. THE COURT: OVERRULED. YOU CAN CONFIRM THAT, SIR. THE WITNESS: THAT IS CORRECT. I DID NOT LISTEN TO THEM. BY MR. CLARKE:

Q HAVE YOU DESCRIBED THEM AS ALLEGEDLY SHOWING THE RAPE OF A YOUNG ASIAN WOMAN?

A YES.

Q DON'T THEY SHOW A RAPE? MR. FELDMAN: WELL, YOUR HONOR, THAT'S ARGUMENTATIVE AND CALLS FOR A CONCLUSION AND IS SPECULATIVE. THE COURT: SUSTAINED AS TO THE USE AND THE FORM OF THE QUESTION. BY MR. CLARKE:

Q DO THOSE VIDEOS, ATTACK VIDEOS, SHOW A RAPE? MR. FELDMAN: SAME OBJECTION, YOUR HONOR. THE COURT: OVERRULED. YOU CAN ANSWER THAT. THE WITNESS: I DON'T KNOW WHETHER THEY DO OR NOT. BY MR. CLARKE:

Q DO THEY LOOK LIKE A RAPE? MR. FELDMAN: YOUR HONOR, JUST A CONTINUING -- THE COURT: SUSTAINED. BY MR. CLARKE:

Q DO THEY INVOLVE A YOUNG GIRL?

A CAN YOU -- MR. FELDMAN: VAGUE AS TO THE TERM YOUNG. THE COURT: DEFINE IT. BY MR. CLARKE:

Q DO THEY INVOLVE A GIRL UNDER THE AGE OF EIGHTEEN?

A I DON'T KNOW.

Q DO THEY INVOLVE TWO ATTACKERS?

A YES.

Q BUT YOU DIDN'T HEAR THE SOUND?

A NO, SIR.

Q YOU DON'T KNOW WHO DOWNLOADED THOSE ATTACK VIDEOS, DO YOU?

A NO. NO, SIR.

Q YOU DON'T KNOW HOW RECENTLY THEY WERE VIEWED BY ANYONE, DO YOU?

A MAY I CHECK --

Q SURE.

A -- MY REPORT?

Q IF YOU HAVE SOMETHING THAT CAN AID IN THAT ANSWER.

A (PAUSE.) THE LAST ACCESS DATE THAT I HAVE FOR ATTACK FOUR, WHICH IS ONE OF THE ATTACK SERIES, IS 11/18/01.

Q WHAT IF A PERSON VIEWED THAT PARTICULAR ATTACK, -- AND LET ME JUST ASK A COUPLE QUESTIONS FIRST. THAT WAS ONE OF THE VIDEOS CONTAINED ON ONE OF THE C.D.'S, CORRECT, THE LOOSE MEDIA?

A CORRECT.

Q WHEN ONE VIEWS A PARTICULAR FILE, A MOVIE IN THIS CASE, FROM A C.D., CAN THAT BE VIEWED WITHOUT LEAVING ANY RECORD OF WHEN THAT WAS VIEWED?

A NO.

Q WHERE IS THE RECORD LEFT?

A THERE'S A LINK FILE THAT'S CREATED IN THE MACHINE THAT IT'S VIEWED IN. AND THE LINK FILE WILL HAVE THE NAME OF THE FILE.

Q AND THAT CAN NEVER BE DELETED?

A OH, IT COULD BE DELETED. YOU ASKED IF THERE'S A RECORD OF THAT. AND THERE IS. YOU TAKE A C.D. AND WITH ANY GIVEN IMAGE OR MOVIE AND YOU PUT IT IN THE COMPUTER AND PLAY IT ON A GIVEN DAY, THERE WILL BE A LINK SHOWING THAT NAME.

Q BUT THAT --

A SHOWING THAT FILE NAME.

Q AND THAT'S SOMETHING THAT CAN JUST BE DELETED?

A IT CAN BE DELETED.

Q HOW DIFFICULT IS THAT?

A TO DELETE IT? ANYBODY CAN DELETE IT.

Q ALL RIGHT. AS FAR AS THE VIEWING OF THOSE ATTACK VIDEOS, COULD THAT HAVE BEEN VIEWED ON FEBRUARY 1ST, 2002? MR. FELDMAN: SPECULATION. THE COURT: OVERRULED. THE WITNESS: COULD THEY HAVE BEEN? CERTAINLY. BY MR. CLARKE:

Q IS THAT TRUE WITH RESPECT TO EACH OF THE MOVIES CONTAINED IN THE LOOSE MEDIA?

A YES.

Q IS THAT ALSO TRUE WITH RESPECT TO ALL OF THE STILL IMAGES CONTAINED IN THE LOOSE MEDIA?

A COULD THEY HAVE BEEN VIEWED? YES. MR. CLARKE: COULD I HAVE JUST A MOMENT, YOUR HONOR? THE COURT: SURE. (PAUSE.) BY MR. CLARKE:

Q AS FAR AS THE USE OF E-MAIL, MR. LAWSON, CAN A PERSON USE E-MAIL USING A DIFFERENT NAME THAN THEIR OWN?

A CERTAINLY.

Q HAVE YOU ENCOUNTERED THAT IN YOUR CASE WORK BEFORE?

A PEOPLE USING DIFFERENT NAMES THAN THEIR OWN IN THEIR E-MAIL ADDRESS?

Q YES.

A YES.

Q ALL RIGHT. IF I COULD REFER YOUR ATTENTION TO AND I THINK IT'S SCREEN PRINT NUMBER 103 THAT YOU DESCRIBED EARLIER, DO YOU HAVE THAT HANDY?

A I'LL FIND IT. ALL RIGHT.

Q AND I BELIEVE YOU HAD DESCRIBED THAT THAT PARTICULAR SCREEN PRINT REFLECTED OF THE INDIVIDUAL WHOSE E-MAIL ADDRESS IS IDENTIFIED AS D. N. WEST 1 AS JOINING FREE DRIVE.

A YES.

Q WHAT'S FREE DRIVE?

A FREE DRIVE IS AN INTERNET-BASED FILE STORAGE SERVICE THAT'S OFFERED FOR PEOPLE WHO WISH TO STORE FILES REMOTELY, NOT IN THEIR COMPUTER.

Q ANY TYPES OF FILES?

A ANY TYPE OF FILE.

Q NOW, IN THAT PARTICULAR SCREEN PRINT 103, WAS THERE A PASSWORD ASSIGNED AS FAR AS FREE DRIVE DOT COM. WAS CONCERNED TO THE NAME D. N. WEST 1?

A YES, THERE IS.

Q WHO SELECTS THAT PASSWORD?

A THE USER.

Q WHAT'S THE NUMBER ON THAT PASSWORD?

A 5203.

Q IS THAT NUMBER FAMILIAR TO YOU FOR ANY REASON?

A NOT PARTICULARLY.

Q DO YOU KNOW MR. DAVID A. WESTERFIELD'S SOCIAL SECURITY NUMBER?

A NO. (DISCUSSION OFF THE RECORD BETWEEN MR. CLARKE AND MR. DUSEK.) MR. CLARKE: YOUR HONOR, I HAVE A DOCUMENT I WOULD LIKE COURT'S EXHIBIT NEXT IN ORDER. THE COURT: 159. MR. FELDMAN: YOUR HONOR, 159? THE COURT: 159. MR. CLARKE: YOUR HONOR, JUST FOR THE RECORD AT THIS POINT I WOULD HAVE IT IDENTIFIED AS A ONE-PAGE DOCUMENT. THE COURT: ALL RIGHT. (ONE-PAGE DOCUMENT MARKED TRIAL EXHIBIT NUMBER 159 FOR IDENTIFICATION.) BY MR. CLARKE:

Q MR. LAWSON, IF I CAN SHOW YOU WHAT'S BEEN MARKED EXHIBIT 159. COULD YOU TAKE A MOMENT JUST TO TAKE A LOOK AT WHAT THAT IS.

A (THE WITNESS COMPLIED.) IT LOOKS LIKE A LAW ENFORCEMENT PRINTOUT OF AN ARREST RECORD.

Q IN YOUR EXPERIENCE -- YOU'VE HAD EXPERIENCE AS A LAW ENFORCEMENT OFFICER.

A YES, SIR. MR. FELDMAN: EXCUSE ME. COULD WE SEE THE DOCUMENT, PLEASE. THE COURT: SURE. MR. FELDMAN: YOUR HONOR, I WANT TO ADDRESS THE COURT ON THIS DOCUMENT. THE COURT: ALL RIGHT. BOB. (SIDEBAR DISCUSSION, OUT OF THE HEARING OF THE JURY, AS FOLLOWS: (PROCEEDINGS NOT PART OF THE

PUBLIC RECORD.) (END OF SIDEBAR DISCUSSION.) MR. CLARKE: PROCEED, YOUR HONOR? THE COURT: YES. BY MR. CLARKE:

Q MR. LAWSON, REFERRING YOU BACK AGAIN TO EXHIBIT 159, JUST SO WE'RE CLEAR IN TERMS OF AN ARREST, DOES THAT DOCUMENT APPEAR TO REFLECT THE ARREST OF MR. WESTERFIELD IN THIS CASE?

A YES, IT DOES.

Q ALL RIGHT. DOES THAT HAVE IDENTIFYING INFORMATION OF MR. WESTERFIELD?

A YES, IT DOES.

Q INCLUDING A NAME?

A YES.

Q WHAT IS THE NAME THAT'S LISTED?

A DAVID ALAN WESTERFIELD.

Q IS THERE A SOCIAL SECURITY NUMBER LISTED?

A YES.

Q WHAT IS THAT? MR. FELDMAN: HEARSAY. THE COURT: DULY NOTED. OVERRULED. THE WITNESS: 005-52-5203. BY MR. CLARKE:

Q COULD YOU JUST READ ONCE AGAIN THE LAST FOUR DIGITS.

A 5203.

Q IS THAT THE SAME NUMBER AS THE PASSWORD THAT WAS REGISTERED UNDER THE NAME D. N. WEST 1 AT THE FREE DRIVE DOT COM. WEB SITE?

A YES, IT IS.

Q NOW, I WOULD LIKE TO -- WE ARE GOING TO SHIFT TOPICS HERE. PERHAPS I CAN GET THAT EXHIBIT OUT OF THE WAY. I WOULD LIKE TO ASK YOU SPECIFICALLY WITH REGARD TO THE LOOSE MEDIA, AND I BELIEVE YOU DESCRIBED THAT YOU VIEWED THEM IN SAN DIEGO. IS THAT CORRECT?

A THAT'S CORRECT.

Q WERE COPIES MADE FOR YOU OF THE LOOSE MEDIA?

A YES. THEY WERE COPIED TO A HARD DRIVE, A QUANTUM HARD DRIVE. EACH INDIVIDUAL PIECE WAS PUT ON THE HARD DRIVE.

Q THE HARD DRIVES THAT WERE COPIED OR HARD DRIVE OR HARD DRIVES, HOWEVER MANY THERE WERE, THAT WERE COPIED FROM THE LOOSE MEDIA, DID YOU TAKE THOSE BACK TO YOUR HOME IN WASHINGTON?

A NO.

Q WHY NOT?

A I DON'T ACCEPT ANY MEDIA THAT CONTAINS ANYTHING THAT IS ALLEGED TO BE CHILD PORNOGRAPHY IN OUR OFFICE UNLESS IT'S ACCOMPANIED BY A FEDERAL COURT ORDER FOR BOTH ITS TRANSPORTATION AND ITS POSSESSION.

Q IS THAT BECAUSE YOU'RE AFRAID IT MIGHT BE A CRIME? MR. FELDMAN: OBJECTION. IRRELEVANT. THE COURT: NO. OVERRULED. YOU MAY ANSWER. THE WITNESS: YES. I DON'T WANT TO GET ANYONE IN MY OFFICE OR MYSELF IN TROUBLE FOR A TECHNICAL VIOLATION OF FEDERAL LAW, SO THAT IS -- THAT'S THE STANDING RULE THAT WE HAVE IN OUR OFFICE. BY MR. CLARKE:

Q TECHNICAL OR A FULL VIOLATION OF FEDERAL LAW?

A IF IT'S ACCOMPANIED BY A STATE COURT ORDER SIGNED BY A STATE JUDGE, IT WOULD BE MY OPINION THAT IT WOULD BE LAWFUL FOR US TO BE IN POSSESSION OF IT TO DO OUR JOB. BUT, NEVERTHELESS, --

Q ABSENT -- YOU DIDN'T HAVE A COURT ORDER IN THIS CASE, RIGHT? MR. FELDMAN: YOUR HONOR, AGAIN THIS IS MISLEADING. OBJECTION AND REQUEST SIDEBAR. THE COURT: NO. THE OBJECTION IS SUSTAINED. NEXT QUESTION. BY MR. CLARKE:

Q YOU DIDN'T TAKE THOSE HARD DRIVES COPIED FROM THE LOOSE MEDIA TO WASHINGTON BECAUSE YOU WERE AFRAID YOU MIGHT BE COMMITTING A CRIME BY DOING SO, CORRECT?

A THAT'S CORRECT.

Q NOW I WOULD LIKE TO FOCUS IN ON THE ZIP -- SPECIFIC ZIP DISKS AS WE'VE USED THAT TERM AND THE C.D.'S THAT WERE PART OF THE LOOSE MEDIA. OKAY?

A OKAY.

Q IN PARTICULAR WAS THERE A ZIP NUMBER 16333?

A I'LL REFER TO MY REPORT.

Q FINE.

A I'M SORRY. YOU SAID A C.D. OR A ZIP?

Q A ZIP DISK.

A I DON'T HAVE ANYTHING SHOWING THE NAME OF A PARTICULAR ZIP. BUT I WOULD ASSUME THAT THAT'S THE CASE, THAT ONE OF THE ZIP DRIVES WAS NAMED THAT.

Q SO YOUR REPORT AND THE SUPPORTING DOCUMENTS DON'T LIST THE ZIP OR C.D. NUMBERS, IS THAT CORRECT?

A NOT IN THIS NOTEBOOK, NO.

Q IS IT BACK IN YOUR OFFICE?

A YEAH. IT MIGHT BE.

Q ON WHAT?

A WHAT I RECALL PRINTING OUT FROM THE HARD DRIVE THAT WAS PROVIDED BY THE R. C. F. L. WAS WHAT'S REFERRED TO AS A FILE TREE THAT EXPLAINED WHAT THE INDIVIDUAL PIECES OF MEDIA WERE THAT WERE COPIED TO THIS INDIVIDUAL HARD DRIVE, AND THEN THAT WOULD TELL ME WHICH WERE C.D.'S AND WHICH WERE ZIPS.

Q BUT TODAY WITH WHAT YOU HAVE YOU CAN'T TELL US, FOR INSTANCE, THE NUMBERS OF EACH OF THE ZIPS OR C.D.'S FROM THE LOOSE MEDIA.

A NO, SIR.

Q DO YOU RECALL ONE OF THOSE ZIP DISKS HAVING STILLS OF YOUNG CHILDREN?

A YES.

Q UNDRESSED?

A YES.

Q WHEN WAS THAT ZIP DISK CREATED?

A (PAUSE.)

Q AND IF YOU COULD JUST TELL US IF YOU ARE REFERRING TO A SPECIFIC DOCUMENT WHICH ONE IT IS.

A SCREEN PRINT 164.

Q AND THE DATE?

A IS THE FILE WOULD HAVE BEEN CREATED ON 12/13/99.

Q IF A PERSON WERE EIGHTEEN YEARS OLD TODAY, WHAT WOULD THEY HAVE BEEN IN DECEMBER OF '99?

A YOU ARE ASKING ME TO DO MATH. AGAIN.

Q IT'S NOT A MATH. QUIZ. IT'S NOT A MATH. QUIZ. MR. FELDMAN: YOUR HONOR, I'LL STIPULATE THE ANSWER IS FIFTEEN. THE COURT: YOU'RE QUICKER. THE WITNESS: ALMOST EVERYONE IS QUICKER AT MATH. THAN ME. MR. CLARKE: THANK YOU, YOUR HONOR. THE COURT: I WILL TAKE JUDICIAL NOTICE OF THAT IF NECESSARY. THE WITNESS: THANK YOU. THE COURT: OKAY. BY MR. CLARKE:

Q WAS THERE ANOTHER ZIP DISK THAT HAD STILL ANIME'S OF A YOUNG GIRL, A SEPARATE ZIP DISK IN THE LOOSE MEDIA?

A YES.

Q I ASSUME YOU CANNOT TELL US THE NUMBER OF THAT DISK.

A NO.

Q CAN YOU TELL US WHEN IT WAS CREATED?

A YES, I CAN. 3/18/99.

Q ALL RIGHT. AND WITHOUT DOING THE MATH., SAME YEAR AS THE EARLIER DISK.

A THANK YOU. YES.

Q DO YOU RECALL A C.D. THAT CONTAINED BOTH STILL IMAGES OF YOUNG GIRLS PLUS A VIDEO CALLED IAKA OR I-A-K-A? DO YOU RECALL THAT?

A NOT SPECIFICALLY. BUT I BELIEVE THERE -- I BELIEVE YOU THAT THERE IS. I DON'T RECALL THAT SPECIFIC FILE NAME.

Q WELL, I DON'T WANT YOU TO BELIEVE ME. WHAT I WANT TO KNOW IS CAN YOU GIVE US AN ANSWER TO THAT QUESTION WITH ANY OF THE MATERIALS YOU'VE BROUGHT WITH YOU TODAY.

A WHAT IS THE NAME OF THE FILE?

Q THE C.D.

A WHAT IS THE NAME OF THE C.D.?

Q WELL, IS THERE A NUMBER TO THE C.D. FIRST OF ALL?

A I DON'T KNOW. I CAN'T ANSWER THAT QUESTION.

Q ALL RIGHT. IS THERE A C.D. THAT CONTAINS THOSE ITEMS?

A YES.

Q ARE YOU GUESSING?

A NO. I DON'T KNOW THE NAME OF IT. I DON'T --

Q ALL RIGHT. WHAT DO YOU REMEMBER ABOUT THAT C.D.?

A THERE WERE A NUMBER OF IMAGES THAT WERE CATEGORIZED IN FOLDERS AND SUBFOLDERS ON THE C.D. WHAT I ASKED YOU WAS IF YOU WOULD GIVE ME THE NAME OF THE SPECIFIC FILE THAT YOU'RE LOOKING FOR. I'LL SEE IF I HAVE THE SCREEN PRINTS OF IT.

Q I THINK IN PARTICULAR THE VIDEO, IF THAT WILL HELP, IS SPELLED I-A-K-A.

A I-A-K-A. AND IT'S AN A.B.I.?

Q I DON'T KNOW. IF YOU CAN TELL US.

A (PAUSE.) NO, I DON'T HAVE A SCREEN PRINT WITH THAT NAME.

Q SO YOU CAN'T TELL US? MR. FELDMAN: ARGUMENTATIVE. THE COURT: TELL US WHAT? REPHRASE THE QUESTION, COUNSEL. BY MR. CLARKE:

Q SO YOU CAN'T TELL US IF THAT FILE EVEN CAME OFF ONE OF THE LOOSE MEDIA.

A NOT BY MEMORY, NO.

Q AND YOU HAVE NOTHING WITH YOU THAT CAN HELP US DETERMINE THAT.

A NO, SIR.

Q YOU DON'T KNOW WHO DOWNLOADED THE IMAGES AND/OR MOVIES AS PART OF THE LOOSE MEDIA ON ANY OF THE ZIP DISKS, CORRECT?

A THAT'S CORRECT.

Q YOU DON'T KNOW WHO DOWNLOADED ANY OF THE STILL IMAGES OR MOVIES ON ANY OF THE C.D.'S, CORRECT?

A THAT'S CORRECT.

Q WOULD IT BE CORRECT TO SAY THAT AS FAR AS DAVID NEAL WESTERFIELD HAVING BEEN RESPONSIBLE FOR CREATION OF THOSE ZIP DISKS OR C.D.'S, THAT THAT WOULD BE SPECULATION ON YOUR PART?

A THAT'S CORRECT.

Q NOW, AS FAR AS THE C.D.'S AND ZIPS THEMSELVES, DID THEY HAVE ANY ACTUAL MARKINGS ON THE C.D.? LET'S USE THE C.D.'S. DID THEY HAVE ANY MARKINGS ON THE C.D. ITSELF?

A I DON'T KNOW. I DIDN'T SEE THE ORIGINAL C.D.'S.

Q YOU'VE NEVER SEEN THEM?

A NO.

Q HAVE YOU EVER BEEN SHOWN ANY PHOTOGRAPHS OF THEM?

A NO.

Q I WOULD LIKE TO REFER YOU TO AN EXHIBIT NUMBERED 102, A SERIES OF PHOTOGRAPHS. ASK YOU IF YOU WOULD TO TAKE A MOMENT TO LOOK AT THOSE PHOTOGRAPHS.

A (THE WITNESS COMPLIED.)

Q HAVE YOU HAD A CHANCE TO LOOK AT THEM?

A YES.

Q HAVE YOU EVER BEEN SHOWN ANY OF THOSE PHOTOGRAPHS BEFORE?

A NO.

Q IN PARTICULAR, WITH REGARD TO THE PHOTOS ON EXHIBIT 102, WERE YOU EVER SHOWN PHOTOGRAPH I WITH A PLACARD 12 IN IT?

A NO.

Q WITH RESPECT TO PHOTOGRAPH J, HAVE YOU EVER SEEN A PHOTOGRAPH, THAT IS, THAT PHOTOGRAPH, DEPICTING WHAT'S PROBABLY FAIR TO CALL LOOSE MEDIA?

A NO.

Q WERE YOU GIVEN AN OPPORTUNITY TO LOOK AT THE LOOSE MEDIA WHEN YOU WERE IN SAN DIEGO? MR. FELDMAN: ARGUMENTATIVE. THE COURT: OVERRULED. YOU CAN ANSWER. MR. FELDMAN: VAGUE AS TO OPPORTUNITY. THE COURT: YOU CAN ANSWER. THE WITNESS: I'VE NEVER -- I RECEIVED MY COPIES OF THE MEDIA AND WAS QUESTIONED FROM MISS JONES WHO WORKS IN MR. FELDMAN'S OFFICE. SO I'VE NEVER HAD ANY CONTACT WITH ANY MEMBERS OF THE R. C. F. L. BY MR. CLARKE:

Q DID YOU EVER GO TO THE R. C. F. L.?

A NO.

Q DID YOU EVER ASK TO GO THERE TO VIEW THE ORIGINAL MEDIA?

A NO.

Q AS AN EXAMINER, WOULDN'T IT BE IMPORTANT TO YOU TO LOOK AT THE ACTUAL MEDIA THEMSELVES?

A IF I WERE ALLOWED TO. I HAVE NEVER BEEN ALLOWED TO LOOK AT THE ACTUAL PIECES OF ORIGINAL EVIDENCE.

Q DID YOU ASK IN THIS CASE?

A NO.

Q SO YOU WERE NEVER DENIED THAT OPPORTUNITY IN THIS CASE?

A NO.

Q SO YOU DON'T KNOW WHAT MARKINGS ARE ON THOSE C.D'S AND ZIP DISKS, CORRECT?

A THAT'S CORRECT.

Q DO YOU KNOW WHERE THEY WERE FOUND?

A IN THE DEFENDANT'S OFFICE.

Q IS IT IMPORTANT TO KNOW WHERE THEY WERE FOUND IN TRYING TO DETERMINE WHO'S RESPONSIBLE FOR THEM?

A THAT CAN BE HELPFUL, YES.

Q IT CAN BE EXTREMELY HELPFUL, CAN'T IT? MR. FELDMAN: ARGUMENTATIVE. THE COURT: SUSTAINED. NEXT QUESTION. BY MR. CLARKE:

Q C.D.'S CAN BE LABELED OR ARE LABELED, CORRECT? AND I'M NOT TALKING ABOUT EXTERNAL MARKINGS WITH A PEN OR WHATEVER, I'M TALKING ABOUT THE ELECTRONIC LABELING OF THEM. DO YOU UNDERSTAND WHAT I'M REFERRING TO?

A YES, SIR.

Q DO YOU KNOW HOW THE C.D.'S AS PART OF THE LOOSE MEDIA WERE LABELED?

A I REMEMBER THEM HAVING A TYPICAL C.D. NUMBERING SYSTEM THAT IS COMMON WHEN C.D.'S ARE COPIED IN A C.D. WRITE MACHINE FOR INSTANCE.

Q WERE ALL OF THESE C.D.'S LABELED WITH NUMBERS?

A AS I RECALL, THEY WERE.

Q ISN'T IT CORRECT THAT ONE OF THEM WAS LABELED SPECTRUM?

A I DON'T RECALL.

Q WOULDN'T THAT BE IMPORTANT TO KNOW IF YOU WERE TRYING TO DETERMINE WHO WAS RESPONSIBLE FOR THE CREATION OF THOSE C.D.'S?

A YES.

Q YOU DIDN'T DO THAT IN THIS CASE, CORRECT?

A I DIDN'T HAVE ACCESS TO THE ORIGINAL MEDIA.

Q YOU NEVER ASKED TO SEE THEM, CORRECT? MR. FELDMAN: ARGUMENTATIVE. THE COURT: IT'S BEEN ASKED AND ANSWERED. NEXT QUESTION. BY MR. CLARKE:

Q WOULDN'T THE LABELING OF A C.D. BE IMPORTANT IN HELPING TO TRY TO DETERMINE WHO WAS RESPONSIBLE FOR IT? MR. FELDMAN: ASKED AND ANSWERED. OBJECTION. THE COURT: SUSTAINED. BY MR. CLARKE:

Q ARE YOU AWARE OF THE NAME OF THE DEFENDANT'S BUSINESS?

A YES.

Q WHAT'S THAT?

A SPECTRUM DESIGNS I BELIEVE.

Q INCIDENTALLY, WITH REGARD TO THE LABELING OF THE C.D.'S, DID YOU REVIEW ANY OF THE REPORTS DONE BY THE R. C. F. L. IN THIS CASE?

A YES, SIR.

Q DON'T THOSE REPORTS LIST THE NAME SPECTRUM AS THE LABELING ON ONE OF THE C.D.'S IN THE LOOSE MEDIA?

A FROM MEMORY I DON'T RECALL IF THEY DO OR NOT.

Q WOULD THAT HAVE BEEN IMPORTANT FOR YOU TO LOOK AT?

A THE REPORT ITSELF?

Q TO FIND OUT ANY LABELING THAT EXISTED ON THESE C.D.'S.

A YES.

Q YOU DIDN'T DO THAT, CORRECT?

A I DIDN'T DO WHAT?

Q DIDN'T REVIEW THE REPORTS FOR DETERMINING WHETHER OR NOT THE LABELING OF THE C.D. WAS CONTAINED IN THEM.

A WHAT I SAID IS I DON'T REMEMBER SEEING THAT IN THE REPORT OR NOT. THAT THERE WAS ANY MENTIONING OF LABELING IN THE C. D.'S.

Q HOW ABOUT THE ORGANIZATION OF FILES ON THESE C.D.'S AND ZIP DISKS. DID YOU REVIEW THAT?

A YES.

Q THEY WERE HIGHLY ORGANIZED, WEREN'T THEY?

A IF YOU WANT TO DEFINE HIGHLY. . . THEY WERE ORGANIZED BETWEEN FOLDERS AND SUBFOLDERS, AND THE FOLDERS AND SUBFOLDERS GENERALLY DEPICTED WHAT WAS -- THE FOLDER WAS NAMED.

Q WELL, IN YOUR EXPERIENCE HAVEN'T YOU SEEN FILES INVOLVING PORNOGRAPHIC MATERIAL THAT WEREN'T ORGANIZED VERY WELL?

A YES.

Q THIS CASE REPRESENTED AN EXAMPLE OF WELL-ORGANIZED FILES, CORRECT?

A YES.

Q THE C.D.'S AND ZIP DISKS HAD FILES COMMONLY USING THE PREFIX I. E. A., CORRECT?

A CORRECT.

Q DID YOU EXAMINE THE COMPUTERS TO DETERMINE WHETHER OR NOT WITH RESPECT TO THE DEFENDANT'S BUSINESS THAT PREFIX I. E. A. WAS COMMONLY USED?

A I DID NOT NOTICE THAT IT WAS COMMONLY USED.

Q DID YOU LOOK FOR IT?

A YES.

Q WASN'T THAT IMPORTANT?

A YES.

Q AREN'T THERE MANY, MANY FILES PREFIXED BY I. E. A. RELATING TO THE DEFENDANT'S BUSINESS? MR. FELDMAN: VAGUE. I. E. A. THE COURT: OVERRULED. MR. FELDMAN: I'M SORRY. VAGUE. MANY, MANY, YOUR HONOR. THE COURT: YOU CAN ANSWER. THE WITNESS: NOT THAT I RECALL. BY MR. CLARKE:

Q DID YOU RECORD THAT ANYWHERE?

A RECORD THAT THERE WEREN'T ANY OR THAT I DIDN'T NOTICE ANY?

Q THE EXISTENCE OF THESE BUSINESS FILES LABELED STARTING WITH THE PREFIX I. E. A. MR. FELDMAN: ASSUMES FACTS NOT IN EVIDENCE. THE COURT: OVERRULED. YOU CAN ANSWER THAT. THE WITNESS: AND I'M NOT TRYING TO BE DIFFICULT. MAYBE I DON'T UNDERSTAND YOUR QUESTION. BY MR. CLARKE:

Q PART OF YOUR TASK IN THIS CASE WAS TO TRY TO HELP DETERMINE WHO WAS RESPONSIBLE FOR THESE C.D.'S AND ZIP DISKS. RIGHT? MR. FELDMAN: MISSTATES THE EVIDENCE. OBJECTION. THE COURT: OVERRULED. YOU MAY ANSWER. THE WITNESS: THAT WAS ONE OF THE THINGS THAT I WAS LOOKING AT, YES. BY MR. CLARKE:

Q WOULDN'T IT BE IMPORTANT IN THAT EXAMINATION TO SEE IF THERE'S ANY SIMILARITIES HELD BY FILES ON THE C.D.'S AND THE ZIP DISKS IN TERMS OF FILE NAMES AND C.D.'S, I'M SORRY, AND FILE NAME PREFIXES CONTAINED ON THE VARIOUS COMPUTERS?

A YES.

Q TODAY CAN YOU TELL US HOW MANY, EVEN APPROXIMATELY, THERE ARE FILE NAMES ON THE OFFICE COMPUTERS THAT START WITH I. E. A. RELATING TO A BUSINESS?

A NO, I CAN'T.

Q DID YOU RECORD THAT ANYWHERE?

A NO.

Q AS FAR AS THE MATERIALS THAT YOU REVIEWED, WERE YOU ASKED TO REVIEW ANY POLICE REPORTS?

A YES.

Q WHAT POLICE REPORTS?

A THE FORENSICS REPORTS FOR THE -- THERE WERE, AS I RECALL, THERE WERE SEVERAL DIFFERENT DETECTIVES THAT CONTRIBUTED TO THE FORENSICS REPORTS FROM THE SAN DIEGO REGIONAL FORENSICS LABORATORY. AND I'M TRYING TO RECALL IF THERE WERE ANY REPORTS THAT WERE ALSO WRITTEN BY THE LEAD DETECTIVE IN THE CASE. I DON'T RECALL. THE ONLY REPORTS THAT I RECALL SPECIFICALLY SITTING DOWN AND READING ARE THE FORENSICS REPORTS.

Q SO REPORTS DONE BY COMPUTER EXPERTS?

A YES.

Q WERE YOU ASKED TO REVIEW ANY TRANSCRIPTS OF WITNESSES' STATEMENTS?

A THE TRANSCRIPT THAT I -- THE ONLY TRANSCRIPT THAT I RECALL REVIEWING WAS THE TESTIMONY OF I BELIEVE IT'S DETECTIVE WATKINS.

Q NOW, TRANSCRIPT. I THINK YOU SAID TESTIMONY. IS THAT SOMETHING DIFFERENT FROM SIMPLY A TRANSCRIPT OF AN INTERVIEW?

A YES.

Q OKAY. YOU'VE BEEN IN LAW ENFORCEMENT PREVIOUSLY, RIGHT?

A YES.

Q YOU KNOW WHAT TESTIMONY IN COURT IS.

A YES.

Q DO YOU KNOW WHAT A -- OBVIOUSLY YOU KNOW WHAT A TRANSCRIPT OF --

A YES.

Q -- OF RECORDED STATEMENTS OF A WITNESS --

A YES.

Q YOU MENTIONED MR. WATKINS. WHAT WAS IT THAT YOU WERE ASKED TO REVIEW?

A HIS TESTIMONY IN TRIAL, IN THIS TRIAL. I THINK IT WAS A WEEK AGO ROUGHLY.

Q NOW, MAKING THE DISTINCTION BETWEEN TESTIMONY AND TRANSCRIPTS OF A STATEMENT, --

A M-HM.

Q -- WERE YOU ASKED OR DID YOU REVIEW, RATHER, ANY OTHER STATEMENTS OR TESTIMONY OF ANY OTHER WITNESSES? MR. FELDMAN: YOUR HONOR, OBJECTION. THIS IS IMPROPER. I REQUEST SIDEBAR. THE COURT: OVERRULED. YOU CAN ANSWER. MR. FELDMAN: YOUR HONOR, THERE'S A FIFTH AMENDMENT ISSUE. I'M NOT TRYING TO ARGUE. THE COURT: OUT OF AN ABUNDANCE OF CAUTION, BOB, COME TO SIDEBAR. (SIDEBAR DISCUSSION, OUT OF THE HEARING OF THE JURY, AS FOLLOWS: (PROCEEDINGS NOT PART OF THE PUBLIC RECORD.) (END OF SIDEBAR DISCUSSION.) BY MR. CLARKE:

Q MR. LAWSON, WERE YOU ASKED OR DID YOU OTHERWISE REVIEW TRANSCRIPTS OF ANY STATEMENTS BY A DAVID NEAL WESTERFIELD?

A YES.

Q DAVID NEAL WESTERFIELD I ASSUME IT'S YOUR UNDERSTANDING IS THE SON AS OPPOSED TO DAVID A. WESTERFIELD, THE DEFENDANT IN THIS CASE. IS THAT CORRECT?

A CORRECT.

Q AND YOU REVIEWED A TRANSCRIPT OF HIS STATEMENTS, CORRECT?

A CORRECT. IT WAS A TRANSCRIPT OF HIS -- I BELIEVE HIS INTERVIEW WITH TWO SAN DIEGO POLICE DETECTIVES.

Q DID THOSE STATEMENTS PLAY ANY ROLE IN THE CONCLUSIONS YOU REACHED IN THIS CASE?

A NO.

Q AS FAR AS AN INDIVIDUAL WHO YOU THINK MAY HAVE BEEN INVOLVED IN DOWNLOADING PARTICULAR MATERIAL, WOULD IT BE IMPORTANT TO YOU TO KNOW WHAT THAT PERSON SAYS?

A YES.

Q AND YOU READ THOSE STATEMENTS, CORRECT?

A YES.

Q WHY DID YOU IGNORE THEM? MR. BOYCE: OBJECTION. MR. FELDMAN: ASSUMES FACTS NOT IN EVIDENCE. THE COURT: SUSTAINED. BY MR. CLARKE:

Q DID THOSE STATEMENTS PLAY ANY ROLE IN YOUR CONCLUSIONS IN THIS CASE AS TO THE ORIGIN OF THOSE C.D.'S AND ZIP DISKS? MR. FELDMAN: ASKED AND ANSWERED. THE COURT: I BELIEVE HE'S ANSWERED IT, BUT I WILL ALLOW YOU TO ANSWER IT ONE MORE TIME, SIR. THE WITNESS: DID IT? NO. BY MR. CLARKE:

Q WHY NOT? MR. BOYCE: OBJECTION. RELEVANCE. THE COURT: SUSTAINED. BY MR. CLARKE:

Q I BELIEVE YOU DESCRIBED, MR. LAWSON, PLAYED AT LEAST -- FIRST OF ALL, ARE YOU THE ONLY PERSON THAT WORKED ON THIS CASE FROM YOUR PARTICULAR BUSINESS?

A NO.

Q WHO ELSE DID?

A MY WIFE CAME TO SAN DIEGO WHO IS ALSO A FORENSICS EXAMINER IN OUR OFFICE, BROUGHT A SECOND FORENSICS MACHINE TO SAN DIEGO DURING THAT FIRST WEEK IN JUNE AND HELPED ME TO ACQUIRE THE MEDIA AND DO AN INITIAL EVALUATION.

Q I BELIEVE YOU DESCRIBED THE FACT THAT YOUR -- AT LEAST YOUR BUSINESS HAD PUT IN A NUMBER OF HOURS. CORRECT?

A CORRECT.

Q WAS YOUR WIFE PAID FOR HER TIME DOWN HERE?

A NO.

Q CAN YOU TELL US, LET'S SAY UP TO AND INCLUDING TODAY, APPROXIMATELY HOW MUCH YOU EITHER HAVE BILLED OR WILL BILL IN TOTAL MR. FELDMAN IN THIS CASE?

A YOU'RE NOT GOING TO ASK ME TO DO THE MATH. AGAIN, BUT I WOULD ESTIMATE WE PROBABLY HAVE SPENT BETWEEN 125 TO ROUGHLY 150 HOURS. MY COMPANY'S RATE FOR COURT-APPOINTED CASES IS \$135.00 AN HOUR.

Q ALL RIGHT. SO THAT COULD BE AS MUCH AS WHAT, ALMOST \$20,000.00 OR WOULD BE ALMOST \$20,000.00?

A I'LL TAKE YOUR WORD FOR IT. MR. CLARKE: THANK YOU. NO FURTHER QUESTIONS, YOUR HONOR. THE COURT: ALL RIGHT. MR. FELDMAN. REDIRECT EXAMINATION BY MR. FELDMAN:

Q I'M JUST GOING TO TRY TO GO IN THE SAME SEQUENCE THAT MR. CLARKE WENT. THAT YOU'RE A MEMBER OF THE NATIONAL ASSOCIATION OF CRIMINAL DEFENSE LAWYERS, DID THAT ADVERSELY AFFECT YOUR ABILITY TO BE A MEMBER OF THE CUSTOMS DEPARTMENT OF THE FEDERAL GOVERNMENT?

A NO. MR. CLARKE: OBJECTION. RELEVANCE. THE COURT: OVERRULED. THE ANSWER WAS NO. NEXT QUESTION. BY MR. FELDMAN:

Q YOU TOLD US ON DIRECT EXAMINATION YOU WERE A MEMBER OF THE DRUG ENFORCEMENT ADMINISTRATION. THAT'S A FEDERAL AGENCY, ISN'T IT?

A CORRECT.

Q IT'S FEDERALLY CHARTERED TO INTERDICT NARCOTICS, ISN'T THAT RIGHT?

A CORRECT.

Q YOU WERE A FEDERAL LAW ENFORCEMENT OFFICER FOR A NUMBER OF YEARS, THAT'S RIGHT?

A CORRECT.

Q DID THAT HAVE ANYTHING TO DO WITH YOUR BEING A MEMBER OF THE NATIONAL ASSOCIATION OF CRIMINAL DEFENSE LAWYERS? MR. CLARKE: OBJECTION. IRRELEVANT AGAIN AS TO TIMING. THE COURT: SUSTAINED. BY MR. FELDMAN:

Q WITH REGARD TO OTHER WORK THAT YOU'VE DONE, UNITED STATES SECRET SERVICE, . . . THOSE ARE JOBS THAT REQUIRED YOU TO HAVE INTEGRITY, RIGHT?

A CORRECT.

Q YOU HAVE TOLD THE JURY THE TRUTH TODAY, HAVEN'T YOU?

A CORRECT.

Q YOU HAVEN'T HELD ANYTHING BACK, HAVE YOU?

A NO.

Q HOW MANY DIFFERENT COMPUTERS DOES IT APPEAR NEAL WESTERFIELD HAD ACCESS TO?

A FOUR. MR. CLARKE: WELL, EXCUSE ME. OBJECTION. FOUNDATION. THE COURT: SUSTAINED. MR. CLARKE: MOVE TO STRIKE. THE COURT: THE JURY IS TO DISREGARD THE LAST ANSWER. NEXT QUESTION. BY MR. FELDMAN:

Q BASED ON YOUR REVIEW OF THE COMPUTERS THAT YOU TESTIFIED TO ON DIRECT AND ON CROSS-EXAMINATION, WERE YOU ABLE TO FORM AN OPINION AS TO WHETHER OR NOT A PERSON KNOWN AS D. N. WEST OR NEAL WESTERFIELD MAY HAVE ACCESSED THOSE COMPUTERS? MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: SUSTAINED. BY MR. FELDMAN:

Q YOU TOLD US YOU CHECKED FOUR COMPUTERS. RIGHT?

A YES.

Q WITH REGARD TO THE FIRST COMPUTER YOU CHECKED, WAS THAT A GATEWAY?

A YES.

Q DID YOU LOOK TO SEE WHETHER THERE WAS AN E-MAIL ADDRESS OR ADDRESSES?

A YES.

Q DID YOU NOTICE WHETHER OR NOT THERE WAS AN E-MAIL ADDRESS D. N. WEST?

A I DON'T BELIEVE THERE WAS IN THE D. N. WEST E-MAIL ADDRESS IN THE GATEWAY. THERE WERE SCHOOL DOCUMENTS.

Q OH. SCHOOL DOCUMENTS. OKAY. SO DID THAT SUGGEST THAT THAT COMPUTER HAD BEEN ACCESSED BY A DAVID ALAN WESTERFIELD? MR. CLARKE: EXCUSE ME. OBJECTION. CALLS FOR SPECULATION. THE COURT: ALL RIGHT. WE ARE IN THE SAME BOAT WE WERE BACK BEFORE, MR. FELDMAN. NEXT QUESTION. MR. FELDMAN: YES, YOUR HONOR. BY MR. FELDMAN:

Q WITH REGARD TO EACH OF THE COMPUTERS, DID IT APPEAR TO YOU AS THOUGH SOMEONE NAMED D. N. WEST WAS ACCESSING THE COMPUTERS?

A YES. MR. CLARKE: WELL, EXCUSE ME. LACK OF FOUNDATION AS TO WHO. THE COURT: WELL, JUST THE NAME. I'LL LIMIT THE QUESTIONING TO THE NAME HE SAW, COUNSEL, AND THAT'S ALL YOU'RE GOING TO GET. MR. FELDMAN: THAT'S

ALL I ASK. THE COURT: REPHRASE THE QUESTION. MR. FELDMAN: I'M SORRY. THE COURT: OR ASK IT AGAIN. BY MR. FELDMAN:

Q WITH REGARD TO THE COMPUTERS THAT YOU REVIEWED, DID YOU CONCLUDE THAT A PERSON NAMED D. N. -- THAT A PERSON UTILIZING THE NAME D. N. WEST HAD ACCESSED THOSE FOUR COMPUTERS?

A YES.

Q DO YOU HAVE A FIFTEEN-YEAR-OLD SON?

A HE'S TWELVE.

Q DOES YOUR TWELVE-YEAR-OLD HAVE ACCESS TO YOUR COMPUTER? MR. CLARKE: OBJECTION. RELEVANCE. THE COURT: SUSTAINED. BY MR. FELDMAN:

Q WITH REGARD TO YOUR PROFESSIONAL EXPERIENCE, YOU'RE AWARE THAT THERE'S A SERIES OF DEVICES IN PLACE TODAY THAT PREVENT CHILDREN FROM ACCESSING COMPUTERS, IS THAT RIGHT?

A THAT'S CORRECT.

Q WERE THOSE DEVICES IN PLACE IN 1999 ARE YOU AWARE?

A I BELIEVE SOME OF THEM WERE.

Q DO YOU HAVE A WAY TO KEEP CHILDREN OFF THE COMPUTER IF YOU'RE NOT IN THE HOUSE?

A THERE ARE SEVERAL DIFFERENT FILTERING SOFTWARES THAT ONE CAN BUY THAT WILL FILTER THEIR ACCESS TO CERTAIN SITES OR NOT ALLOW THE COMPUTER TO BE TURNED ON AT ALL.

Q WITH REGARD TO ANY OF THE COMPUTERS THAT YOU INSPECTED IN THIS CASE, DID YOU NOTICE ANY OF THOSE FILTERING DEVICES TO WHICH YOU JUST MADE REFERENCE, SIR?

A NO.

Q DID YOU NOTICE ANYTHING THAT WOULD PREVENT A CHILD, FIFTEEN-YEAR-OLD, A SIXTEEN-YEAR-OLD, WHATEVER, FROM TURNING THE COMPUTER ON AND OFF?

A NO.

Q DID YOU NOTICE ANYTHING THAT WOULD PREVENT A FIFTEEN-YEAR-OLD BOY TO GO SURFING LOOKING FOR NEWS?

A NO.

Q IN YOUR EXPERIENCE, AS A HUMAN BEING, ISN'T THAT COMMON FOR FIFTEEN-YEAR-OLD BOYS TO DO? MR. CLARKE: OBJECTION. LACK OF FOUNDATION. RELEVANCE. MR. FELDMAN: FOUNDATION? THE COURT: I THINK EVERY PARENT IN THE ROOM COULD ANSWER THAT QUESTION. YOU MAY ANSWER, MR. LAWSON. THE WITNESS: YES. WE'VE ACTUALLY HAD THAT COME UP AS AN ISSUE IN AT LEAST TWO CASES IN MY OFFICE. BY MR. FELDMAN:

Q SO IS IT THE CASE THAT AS AN INVESTIGATOR, AS A FORENSIC CONSULTANT, YOU HAVE INVESTIGATED CASES OF WHAT APPEAR TO BE THE PATRIARCH WE WILL SAY OF THE FAMILY ACTUALLY I GUESS ACCESSING THE INTERNET OR PORN. SURFING AND IT ACTUALLY TURNED OUT TO BE A YOUNGER MEMBER OF THE FAMILY?

A THAT'S CORRECT.

Q WITH REGARD TO THIS I. E. A., MR. CLARKE'S MENTIONED I. E. A., DO YOU ATTACH ANY SIGNIFICANCE TO THE INITIALS I. E. A.?

A I NOTICED THAT A GOOD NUMBER OF THE PORNOGRAPHIC IMAGES IN THE GATEWAY AND ON THE LOOSE MEDIA HAD AN I. E. A. DESIGNATOR FOLLOWED BY A NUMBER. AND AT THE TIME I DID NOTICE THAT. AND AT THE TIME I MADE THE ASSUMPTION -- MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: YOU USED THE WORD ASSUMPTION. SUSTAINED. MR. FELDMAN: OKAY. BY MR. FELDMAN:

Q WITH REGARD TO YOUR OBSERVATIONS REGARDING I. E. A., HAVE YOU SEEN -- YOU HAVEN'T SPECIFICALLY SEEN THOSE THREE INITIALS CONNECTED WITH ANY PARTICULAR J PEG OR M PEG, HAVE YOU? MR. CLARKE: OBJECTION. VAGUE AS TO WHICH. THE COURT: YES. BE SPECIFIC. BY MR. FELDMAN:

Q AS TO ANY FORM OF COMPUTER DIGITAL REPRODUCTION, BE IT AVI, DOT MOV, DOT J PEG, DOT J P-E-G, ANY OF THOSE, -- MR. CLARKE: OBJECTION. IN THIS CASE, ANY CASE? THE COURT: OVERRULED. YOU MAY ANSWER. MR. FELDMAN: ANY CASE. THE WITNESS: HAVE I SEEN THAT BEFORE? YES. MR. FELDMAN: YES. BY MR. FELDMAN:

Q I JUST DIDN'T WANT TO FORGET. IF A PERSON GOES TO A WEB SITE, IF A PERSON IS SURFING, PORN. SURFING, OR ANY TYPE OF SURFING, AND GOES TO A WEB SITE AND CLICKS TO A WEB SITE AND IS SHOWN A VARIETY OF PHOTOGRAPHS, --

A YES.

Q -- HYPOTHETICALLY SAY I WANT TO GO TO HAWAII AND I TYPE W. W. W. HAWAII DOT COM., AND IT TAKES ME TO A SITE THAT HAS A HUNDRED PICTURES OF THE HAWAIIAN ISLANDS, ALL RIGHT? --

A YES.

Q -- IF I WANTED TO DOWNLOAD ANY OF THOSE PHOTOGRAPHS, I WOULD JUST HAVE TO CLICK ON THE PARTICULAR THUMBNAIL, IS THAT RIGHT?

A YOU USE THE RIGHT MOUSE BUTTON TO CLICK ON IT, AND THEN YOU WOULD SAVE IT, YES.

Q ALL RIGHT. WITH REGARD TO THE SEQUENCE OF THE PHOTOGRAPHS, DO THEY HAVE COMMON I DON'T KNOW IF DENOMINATOR IS THE RIGHT WORD, BUT COMMON LETTERS OR NUMBERS?

A THEY OFTEN DO, YES.

Q SO THE MERE PRESENCE OF THE SAME INITIALS IS -- ONLY MEANS OR CAN INFER AT LEAST THAT A PARTICULAR IMAGE MAY HAVE BEEN DOWNLOADED FROM THE SAME SITE.

A CORRECT.

Q YOU WERE ASKED QUESTIONS CONCERNING YOUR REPORTS. YOU ACTUALLY PREPARED A DOCUMENT THAT YOU INTENDED TO BE A CONFIDENTIAL COMMUNICATION BETWEEN YOU AND US, IS THAT RIGHT?

A CORRECT.

Q YOU USED THE WORD PRELIMINARY AND THE WORD REPORT. CORRECT?

A CORRECT.

Q THEN YOU AND I HAD HAD A CONVERSATION, RIGHT?

A YES.

Q I TOLD YOU WE HAVE TO GIVE THAT TO MR. CLARKE, RIGHT?

A RIGHT. MR. CLARKE: OBJECTION. I THINK COUNSEL IS LEADING THE WITNESS. THE COURT: HE IS LEADING. SUSTAINED. ASK THE QUESTION AGAIN. / / / BY MR. FELDMAN:

Q WHAT, IF ANYTHING, DID YOU DO AFTER I TOLD YOU THAT MATERIAL NEEDED TO GET DISTRIBUTED TO MR. CLARKE IMMEDIATELY?

A I BELIEVE I MADE SURE THAT YOU HAD ALL THE SCREEN PRINTS THAT ACCOMPANIED IT. AND I ASSUMED THAT YOU GAVE IT TO MR. CLARKE.

Q YOU FED. EX.'D THEM DOWN TO ME, DIDN'T YOU?

A YES.

Q WITH REGARD TO THE SCREEN PRINTS THAT YOU SHOWED US ON DIRECT EXAMINATION, DID THEY REPRESENT A PARTICULAR PATTERN OF PORNOGRAPHY ACCESS? MR. CLARKE: EXCUSE ME. OBJECTION. MISSTATES THE EVIDENCE. WELL, LACK OF FOUNDATION AS TO ACCESS. THE COURT: OVERRULED. HE CAN ANSWER THAT. YOU MAY ANSWER, SIR. THE WITNESS: IN THE SCREEN PRINTS THAT WE DISCUSSED TODAY, YES, I DID. BY MR. FELDMAN:

Q AND WHAT KIND OF PATTERN?

A THE IMAGES THAT WERE ON THE WEB SITES THAT ARE ACCESSED IN AND AROUND THE DATE AND TIME OF THE D. N. WEST AT HOT MAIL DOT COM. TENDED TO BE EITHER ANIME' OR TEEN PORNOGRAPHY, WITH THE ONE EXCEPTION ON THE ONE DAY THAT WE SAW WHERE THERE WAS BESTIALITY. AND I'M TRYING TO THINK OF THE RIGHT WORD. BONDAGE.

Q WERE YOU ABLE TO TELL IF DAVID ALAN WESTERFIELD, MY CLIENT, EVER ACCESSED ANY PORNOGRAPHY SITES?

A I'M CERTAIN THAT HE DID. THERE WERE A GREAT NUMBER OF PORNOGRAPHIC SITES THAT HAD BEEN ACCESSED ON ALL -- ON BOTH OF THE OFFICE COMPUTERS.

Q AND DID THOSE SITES SHOW A PARTICULAR PATTERN?

A THEY TENDED TO, YES.

Q OF?

A ADULT WOMEN IN NUDE CONTEXT.

Q ALL RIGHT. ANYTHING IN PARTICULAR ABOUT THESE NUDE WOMEN?

A THE SITE THAT I NOTED THAT WAS VISITED MOST OFTEN THAT I WAS FAIRLY CERTAIN WAS NOT ATTRIBUTED TO DAVID NEAL WESTERFIELD WAS -- IS A SITE CALLED PROJECT VOYEUR DOT COM. AND IT'S PRIMARILY PEOPLE WHO SEND PICTURES OF THEIR WIVES AND GIRLFRIENDS. AND MOST OF THE IMAGES THAT WERE ASSOCIATED WITH THOSE TENDED TO BE WOMEN IN THEIR THIRTIES NUDE.

Q WAS THERE ANYTHING ABOUT BREAST SIZE IN ANY OF THE SITES THAT YOU WERE NOTICING?

A I DON'T RECALL. THERE MAY HAVE BEEN, BUT I DON'T RECALL.

Q MR. CLARKE ASKED YOU QUESTIONS CONCERNING AN ALLEGED RAPE SCENE AND ASKED YOU WHETHER YOU HAD HEARD IT. I'M JUST TRYING TO FOCUS YOU ON THE SERIES OF ATTACK J PEGS. IS IT THE CASE BASED ON YOUR TRAINING AND EXPERIENCE THAT YOU CAN'T TELL WHETHER SOMETHING'S REAL OR NOT ON THE INTERNET?

A THAT'S CORRECT.

Q PEOPLE ARE PAID TO FAKE, AREN'T THEY?

A THAT'S CORRECT.

Q JUST BECAUSE YOU HEAR SOUNDS OR SEE SIGHTS DOESN'T MEAN WHAT YOU'RE SEEING OR HEARING IS REAL, ISN'T THAT TRUE?

A THAT'S CORRECT.

Q THEY MIGHT LOOK YOUNG OR THEY MIGHT LOOK OLD. IS IT YOUR UNDERSTANDING THESE PEOPLE ARE PAID?

A YES.

Q SO THEY'RE ACTORS AND ACTRESSES, RIGHT?

A YES.

Q WHETHER IT'S IN A VIDEO THAT'S DEPICTING A RAPE SCENE OR A VIDEO DEPICTING STRAIGHT SEXUAL INTERCOURSE.

A THAT'S CORRECT.

Q SO MERELY BECAUSE A VIDEO LOOKS A PARTICULAR WAY DOESN'T MEAN WHAT IT'S DEPICTING IS ACTUALLY OCCURRING, IS THAT RIGHT?

A CORRECT.

Q AND IS THAT THE CASE WHETHER YOU HEAR IT OR NOT?

A CORRECT.

Q DOES SOUND MAKE A DIFFERENCE AS TO WHETHER OR NOT SOMEBODY'S BEING PAID FOR THE ACTION?

A NO.

Q DOES SOUND MAKE A DIFFERENCE AS TO WHETHER OR NOT A PERSON IS FAKING SOMETHING?

A I WOULDN'T THINK SO.

Q MR. CLARKE ASKED YOU QUESTIONS ABOUT DELETING FILES. AND I GUESS THE ABILITY -- I'M NOT REAL SURE ABOUT THAT. WHAT DID YOU UNDERSTAND THOSE QUESTIONS ABOUT DELETIONS TO MEAN? MR. CLARKE: EXCUSE ME. ARGUMENTATIVE AS PHRASED. THE COURT: SUSTAINED. JUST REPHRASE IT. / / / BY MR. FELDMAN:

Q DO YOU RECALL MR. CLARKE ASKING YOU QUESTIONS ABOUT DELETING FILES?

A YES.

Q WAS IT YOUR UNDERSTANDING HE WAS TALKING ABOUT DELETING FILES OF THE FOOTPRINTS THAT LED TO SITES?

A WHAT I UNDERSTOOD HIS QUESTION TO BE WAS THE DELETION OF FOOTPRINTS IS A GOOD WAY TO PUT IT OF VIEWING THE VARIOUS IMAGES ON THE LOOSE MEDIA, WHETHER THEY WERE C.D.'S OR ZIPS.

Q NOW, HOW DO YOU GO ABOUT DELETING THOSE FOOTPRINTS?

A THOSE PARTICULAR LINK FILES WOULD, I WOULD THINK, I'VE NEVER TRIED TO DELETE THEM, I WOULD THINK THEY WOULD BE -- MR. CLARKE: EXCUSE ME. OBJECTION. LACK OF FOUNDATION. MR. FELDMAN: THEN MOTION TO STRIKE ALL THE TESTIMONY ON CROSS. THE COURT: WE WILL DEAL WITH IT LATER, MR. FELDMAN. KEEP GOING. MR. FELDMAN: YES, YOUR HONOR. BY MR. FELDMAN:

Q SIR, YOU'RE A COMPUTER FORENSIC EXPERT, RIGHT?

A YES.

Q AND YOU DON'T HAVE SPECIFIC KNOWLEDGE AS TO HOW TO DELETE THE FOOTPRINTS THAT WE HAVE JUST MADE REFERENCE TO ON THE C.D.'S, IS THAT RIGHT?

A NO.

Q WHEN YOU SAY NO, YOU AGREE, IS THAT RIGHT?

A THAT'S CORRECT. I WOULDN'T KNOW HOW TO DO THAT.

Q HAVE YOU EVER READ -- IS THAT SOMETHING THAT I COULD MAYBE FIND IN "COMPUTER EDGE"? DO YOU KNOW WHAT "COMPUTER EDGE" IS?

A THE ONLY WAY THAT I WOULD KNOW TO FIGURE OUT HOW TO DO THAT WOULD BE TO DO IT AND TRY AND LOOK AT IT AGAIN WITH THE FORENSICS TOOL AND SEE IF THAT WORKED.

Q DID YOU NOTICE ANY EVIDENCE IN -- ON ANY OF THE MEDIA OF THE EXISTENCE OF A FORENSICS TOOL DESIGNED TO DELETE FOOTPRINTS? MR. CLARKE: OBJECTION. LACK OF FOUNDATION. THE COURT: OVERRULED. YOU CAN ANSWER. THE WITNESS: NO. BY MR. FELDMAN:

Q MR. CLARKE ASKED YOU WHETHER OR NOT ALL OF THESE PICTURES COULD HAVE BEEN VIEWED ON FEBRUARY THE 1ST, 2002. THEY COULD HAVE BEEN VIEWED ANY TIME SINCE THEIR CREATION, ISN'T THAT RIGHT?

A THAT'S RIGHT.

Q AND ANY OPINION YOU HAD WOULD REALLY BE JUST SPECULATIVE.

A THAT'S CORRECT.

Q IN THE ABSENCE OF SOMETHING ON ONE OF YOUR FORENSICS PROGRAMS THAT WOULD GIVE THE DATE OF --

A IF I FOUND A LINK FILE IN ONE OF THE COMPUTERS THAT MATCHED A FILE NAME ON ONE OF THE LOOSE PIECES OF MEDIA, YOU WOULD HAVE A MORE REASONABLE BASIS FOR ASSUMING THAT PARTICULAR PICTURE HAD BEEN VIEWED.

Q DO YOU KNOW WHETHER NEAL WESTERFIELD KNOWS HIS FATHER'S SOCIAL SECURITY NUMBER?

A I DON'T KNOW IF HE DOES OR NOT.

Q DO YOU THINK THAT IF -- IS THERE A FORENSIC REASON WHY THE OWNER OF A COMPUTER THAT PRESUMABLY IS HIS PERSONAL COMPUTER WOULD USE HIS SON'S E-MAIL TO SIGN ONTO THE COMPUTER IN ANY MANNER? MR. CLARKE: OBJECTION. CALLS FOR SPECULATION. THE COURT: SUSTAINED. YOU NEED NOT ANSWER. BY MR. FELDMAN:

Q CAN YOU THINK OF ANY REASON WHY THE OWNER OF A PERSONAL COMPUTER WOULD USE ANOTHER PERSON'S NAME TO SIGN ON WHERE THAT INDIVIDUAL HAS UNIQUE AND UNRESTRICTED INDIVIDUAL ACCESS? MR. CLARKE: SAME OBJECTION. THE COURT: SAME RULING. YOU NEED NOT ANSWER, SIR. BY MR. FELDMAN:

Q YOU TALKED ABOUT REPORTS THAT YOU READ FROM THE REGIONAL COMPUTER FORENSICS LAB. ONE OF THOSE REPORTS WAS PREPARED BY A MAN NAMED ARMSTRONG, ISN'T THAT RIGHT?

A I BELIEVE SO, YES.

Q AND YOU TOOK INTO CONSIDERATION IN EVALUATING YOUR CONCLUSIONS THAT THE SAN DIEGO REGIONAL COMPUTER FORENSICS LAB. CONCLUDED -- MR. CLARKE: OBJECTION. CALLS FOR HEARSAY. BY MR. FELDMAN:

Q -- NONE OF -- THE COURT: APPROACH THE BENCH. BOB. (SIDEBAR DISCUSSION, OUT OF THE HEARING OF THE JURY, AS FOLLOWS: (PROCEEDINGS NOT PART OF THE PUBLIC RECORD.) (END OF SIDEBAR DISCUSSION.) THE COURT: ALL RIGHT. MR. FELDMAN. BY MR. FELDMAN:

Q WITH REGARD TO THE HARD DRIVE THAT YOU WERE EVALUATING, YOU WERE ASKED QUESTIONS BY MR. CLARKE ABOUT LOOSE MEDIA AND DID YOU ASK FOR THIS MEDIA OR THAT MEDIA. THE EN CASE SOFTWARE REQUIRES YOU TO UTILIZE HARD DRIVES, DOES IT?

A NO. IT DOESN'T REQUIRE YOU TO USE HARD DRIVES.

Q WELL, WAS THERE A PROBLEM IN YOU USING C.D.'S AND ZIP DISKS INSTEAD OF HAVING THE DATA TRANSFERRED TO A HARD DRIVE?

A NO.

Q WHY DID YOU ASK FOR IT TO BE TRANSFERRED TO A HARD DRIVE?

A I DON'T RECALL THAT I DID.

Q OKAY. ULTIMATELY WHAT DID YOU END UP WITH FOR PURPOSES OF YOUR FORENSIC EVALUATION? WHAT I'M ASKING YOU, WHAT I'M REALLY TRYING TO ASK YOU IS HOW MUCH DATA DID YOU HAVE. DID YOU HAVE A NUMBER OF HARD DRIVES; DID YOU HAVE SOME C.D.'S? WHAT DID YOU HAVE; WHAT WERE YOU LOOKING AT?

A THERE WERE A TOTAL OF SIX HARD DRIVES THAT WERE PRESENTED TO ME.

Q OKAY. I WANT YOU TO TELL ME.

A IN ONE OF THOSE HARD DRIVES CONTAINED INDIVIDUAL COPIES OF THE INDIVIDUAL PIECES OF LOOSE MEDIA COPIED TO ONE HARD DRIVE.

Q DID THAT PROCESS IN ANY MANNER AFFECT YOUR ABILITY TO RECONSTRUCT DATES OF ACCESS OR ANY OF THAT?

A YES.

Q HOW SO?

A WHEN C.D.'S ARE COPIED TO A HARD DRIVE SUCH AS THAT, IT WILL CHANGE THE DATES OF THE -- OF SOME OF THE SUBFOLDERS AND FOLDERS ON THE C.D. TO THE CURRENT DATE THAT THE C.D. IS BEING COPIED.

Q IN OTHER WORDS, IF I HAVE A C.D. BURNER AND I CREATE AND I TRY AND BURN A C.D., WHAT I'M GOING TO GET IS THE DATE I CREATE IT, IS THAT WHAT YOU'RE SAYING?

A ON MANY OF THE FOLDERS AND SUBFOLDERS. THAT'S NOT TRUE OF ALL OF THE DATES OF ALL OF THE FILES ON THE MEDIA, BUT MANY OF THE FOLDERS WILL ASSUME THE DATE OF THE DATE THE C.D. IS BEING COPIED.

Q SO, IN OTHER WORDS, HAD YOU GOTTEN A COPY OF THE C.D.'S, THE DATES WOULDN'T HAVE BEEN I GUESS APPROPRIATE FOR THE KIND OF INVESTIGATION YOU NEEDED TO DO.

A I'M SORRY. COULD YOU ASK ME THAT AGAIN?

Q SURE. IF YOU HAD GONE TO EITHER THROUGH MY OFFICE OR DIRECTLY TO MR. WATKINS OR THE R. C. F. L. AND SAID YOU WANTED A COPY OF THE C.D., A C.D., AND THEY DID A STANDARD DISK COPY OR WHATEVER IT'S CALLED, WOULD THE COPY OF THE C.D. THAT RESULTED IN ANY WAY AFFECT YOUR ABILITY TO RECONSTRUCT THE ORIGINAL DATA?

A YOU WOULD HAVE TO USE A FORENSIC SOFTWARE TO DO SO. YOU CAN'T JUST COPY IT FROM ONE C.D. TO ANOTHER. YOU HAVE TO USE A NORTON GHOST OR EN CASE AND MAKE YOUR COPY.

Q I'M SORRY. DID YOU MAKE IT APPARENT THAT AT LEAST FROM THE SAN DIEGO LAB. YOU WANTED THE HARD DRIVES TO BE COMPATIBLE WITH EN CASE SOFTWARE SO THAT YOU COULD UTILIZE THAT FORENSIC TOOL?

A YES.

Q WITH REGARDS TO THE ISSUE OF LABELING A C.D., WE'VE LEARNED THERE'S A PROGRAM CALLED ADAPTEK. HAVE YOU EVER HEARD OF ADAPTEK?

A YES.

Q THAT'S A PROGRAM THAT ALLOWS YOU TO CREATE A C.D. THAT YOU CAN BOTH READ AND WRITE, IS THAT CORRECT?

A THE C.D. ITSELF ALSO HAS TO BE A READ/WRITE C.D., BUT YES.

Q SO IF I USE ADAPTEK SOFTWARE, CAN I CREATE A LABEL TO SAY ANYTHING I WANT IT TO SAY?

A I THINK THAT YOU CAN, BUT I'M NOT SURE.

Q WELL, YOU CREATE C.D.'S FROM TIME TO TIME, DON'T YOU?

A YES.

Q THERE'S A COMMAND AS YOU ARE CREATING A C.D. THAT ASKS YOU TO NAME IT, IS THAT RIGHT?

A THAT'S CORRECT.

Q I DON'T KNOW. IS THAT CALLED A VOLUME?

A I'M NOT SURE WHAT IT'S CALLED SPECIFICALLY. TECHNICALLY I'M NOT SURE WHAT IT'S CALLED.

Q ONCE THE C.D.'S NAMED, THE NAME STAYS FOREVER, IS THAT RIGHT?

A THAT'S CORRECT.

Q BUT THE NAME DOESN'T COME WITH THE COMPUTER, IT COMES WITH THE PERSON THAT'S CREATING THE C.D., ISN'T THAT TRUE?

A THAT'S CORRECT.

Q SO THAT MEANS THAT I COULD TAKE THIS LAPTOP COMPUTER IF IT HAD A C.D. BURNER AND CREATE ONE DISK, ONE C.D. DISK THAT SAID, HYPOTHETICALLY, SPECTRUM DESIGN, RIGHT?

A CORRECT.

Q AND YOU WOULD NEVER KNOW WHETHER IT WAS DAVID WESTERFIELD'S SPECTRUM DESIGN OR STEVE FELDMAN'S RIPPING HIM OFF. MR. CLARKE: OBJECTION. THE WITNESS: YES. MR. CLARKE: CALLS FOR SPECULATION. THE COURT: SUSTAINED. MR. CLARKE: MOVE TO STRIKE THE ANSWER. THE COURT: THE JURY IS TO DISREGARD THE ANSWER. BY MR. FELDMAN:

Q IT IS IMPOSSIBLE TO TELL MERELY ON THE BASIS OF THE NAME ON THE C.D. WHO THE CREATOR OF THE C.D. IS.

A THAT'S CORRECT.

Q YOU MIGHT WANT SOME OTHER FORENSIC DEVICES TO HELP YOU SUCH AS FINGERPRINTS, RIGHT? MR. CLARKE: OBJECTION. I THINK THIS IS BEYOND THE SCOPE. THE COURT: SUSTAINED. BY MR. FELDMAN:

Q WE DIDN'T ASK YOU OR DID WE HAVE CONVERSATIONS ABOUT YOU PRINTING UP EVERY SINGLE SCREEN PRINT THAT -- EVERY SINGLE SCREEN PRINT, A COPY OF EVERY SINGLE SCREEN? DID WE EVER TALK ABOUT THAT?

A NO. YOU WANT TO MAKE THE DISTINCTION BETWEEN EVERY SINGLE SCREEN PRINT AND EVERY SINGLE SCREEN.

Q YES.

A BECAUSE YOU HAVE SEEN, AS FAR AS I AM AWARE, YOU HAVE SEEN EVERY SCREEN PRINT THAT I HAVE MADE IN THIS CASE. CERTAINLY NOT EVERY SCREEN I'VE LOOKED AT. I'VE LOOKED AT THOUSANDS AND THOUSANDS OF SCREENS. SO...

Q WHAT'S INVOLVED IN MAKING A SCREEN PRINT? YOU PUT TOGETHER THE BINDER THAT WE'VE HAD MARKED -- I'M SORRY -- IF YOU LOOK ON THE OUTSIDE, IT GIVES US AN EXHIBIT NUMBER. THE COURT: 157. MR. FELDMAN: THANK YOU. BY MR. FELDMAN:

Q -- WE HAVE HAD MARKED 157, AND IT HAS A SERIES OF SCREEN PRINTS, SIR. WHAT DOES IT TAKE TO CREATE ONE OF THOSE? HOW DOES THAT HAPPEN?

A THE SCREEN PRINT PROGRAM RUNS IN THE BACKGROUND OF MY INVESTIGATIVE MACHINE. AND WHEN I AM VIEWING SOMETHING ON THE SCREEN THAT I WANT TO CAPTURE FOR LATER REPORT OR WHATEVER, I HIT PRINT SCREEN BUTTON.

Q HOW LONG DOES IT TAKE?

A I'M EMBARRASSED TO SAY, BUT OUR PRINTERS ARE FAIRLY SLOW. WE DON'T HAVE ANY COLOR LASER PRINTERS ATTACHED TO OUR FORENSIC MACHINES. THEY ARE ALL INK JET PRINTERS. AND IT TAKES A MINUTE OR SO TO PRINT OUT ANY GIVEN SCREEN PRINT.

Q AND IF THERE'S MORE DETAIL TO THE SCREENS, IT TAKES LONGER?

A IT TAKES LONGER, THAT'S CORRECT.

Q AND IF THERE'S BIGGER PICTURES, IT TAKES LONGER THAN IF THERE IS JUST LANGUAGE ACROSS, IS THAT RIGHT?

A THAT'S CORRECT.

Q SO THE MORE DETAIL IN THE PARTICULAR SCREEN PRINT, THE LONGER IT TAKES TO PRINT, IS THAT RIGHT?

A THAT'S CORRECT. MR. FELDMAN: YOUR HONOR, JUST ONE MOMENT. THE COURT: SURE. (PAUSE.) BY MR. FELDMAN:

Q SIR, DO YOU HAVE 158 UP THERE? IT'S THE COMPUTER PRINT --

A YES.

Q HAVE YOU EVER BEEN SHOWN THIS BEFORE THIS AFTERNOON?

A NO.

Q AND IT SAYS IN THE LEFT CORNER PRINTED BY J. WATKINS, R 1 OF THE F. B. I. CARD. IS THAT RIGHT?

A YES.

Q IT'S DATED JUNE THE 28TH.

A YES.

Q HMMM. YOU JUST GOT IT FOR THE FIRST TIME TODAY?

A YES. MR. CLARKE: EXCUSE ME. OBJECTION TO COUNSEL'S COMMENTS. THE COURT: SUSTAINED. BY MR. FELDMAN:

Q DID YOU JUST GET IT FOR THE FIRST TIME TODAY?

A ON THE STAND HERE, YES.

Q THERE'S A NUMBER OF -- YOU HAD A SCREEN PRINT THAT I'M SORRY I THINK IT WAS NUMBERED -- WHAT I'M AFTER ARE THE SCREEN PRINTS THAT ARE FEBRUARY THE 4TH AT I THINK 4:00 O'CLOCK OR 4:50. AND I JUST DON'T -- KNOW THEY WERE SEPARATELY MARKED I THINK IN THE ONE-FORTY SEQUENCE IN OUR COURT. THE COURT: IT WAS 142 AND 143. MR. FELDMAN: THANK YOU, YOUR HONOR. THE REPORTER: MR. FELDMAN. (THE REPORTER HANDED THE EXHIBITS TO MR. FELDMAN.) MR. FELDMAN: THANK YOU. I'VE GOT THEM. BY MR. FELDMAN:

Q I WOULD LIKE TO SHOW YOU WHAT'S BEEN PREVIOUSLY MARKED 142-A AND 142-B. NOW, I DON'T UNDERSTAND SOMETHING. WE'VE BEEN GIVEN THIS LIST OF WHAT PURPORTS TO TO BE INTERNET EXPLORER HISTORY. MR. CLARKE: EXCUSE ME. OBJECTION TO COUNSEL'S PREFATORY COMMENTS, YOUR HONOR. THE

COURT: OVERRULED. I HAVEN'T EVEN HEARD THE QUESTION YET. MR. CLARKE: I THINK THAT'S WHAT I MEANT, YOUR HONOR. THE COURT: GO AHEAD, MR. FELDMAN. MR. FELDMAN: THANK YOU, YOUR HONOR. BY MR. FELDMAN:

Q WE SEE IN 142 THAT IT SAYS 2/4/02 AT 4:47 P.M. OR THEREABOUTS. IS THAT RIGHT?

A YES.

Q 1647, IF YOU WILL TRUST ME, IS ABOUT 4:47 P.M. AND I WASN'T IN THE MILITARY EITHER. IN LOOKING AT 158, WE DON'T SEE AN ENTRY 16 -- WE DON'T SEE ANY ENTRIES IN THE 1600S. DOES 158 MEAN THAT THE ACTIVITY THAT'S DEPICTED IN 142 NEVER HAPPENED?

A NO.

Q SO IS IT YOUR TESTIMONY THAT WHAT WE SEE OCCURRING AT 2/4/02 AT 4:47 P.M., THIS SURFING AROUND TEEN DREAMER AND LESBIAN BORDELLO, SIR, THAT'S NOT REFLECTED IN 158?

A NO, IT'S NOT.

Q DO YOU UNDERSTAND WHY THAT IS?

A NO. I DIDN'T CREATE THE DOCUMENT AS I SAID. SO I REALLY DON'T FEEL COMFORTABLE COMMENTING ON WHAT IT IS OR WHAT IT ISN'T OR HOW IT WAS MADE.

Q ALL RIGHT.

A I KNOW THIS IS THE DOCUMENT THAT --

Q THIS -- I'M SORRY. YOU SAY THIS. YOU ARE REFERRING TO 142-A?

A 142-A IS A DOCUMENT THAT I MADE FROM MY SCREEN PRINT PROGRAM WHILE I DID MY EN CASE EXAMINATION OF THIS COMPUTER. SO THAT I CAN TESTIFY TO KNOWING ABOUT. THIS I CAN'T.

Q WHEN YOU SAY THIS, YOU ARE REFERRING TO 158?

A TO 158.

Q 158 DESCRIBES A SERIES OF WE WILL CALL THEM HITS AT W. W. W. DOT "UNION TRIB." DOT COM SOMEWHERE BETWEEN LOOKS LIKE 5:50 P.M. OR SO, 5:20 P.M. OR SO, AND INTO ALMOST 8:00 O'CLOCK, P.M. CAN YOU DRAW ANY INFERENCES FROM THAT? MR. CLARKE: OBJECTION. VAGUE. THE COURT: SUSTAINED. BY MR. FELDMAN:

Q WE SEE IN 158 AN ADDRESS DAVID WESTERFIELD AT COLON HOST W. W. W. DOT ROHAN DOT S. D. S. U. DOT E. D. U. 2/04/02 AT 1745 HOURS. DIDN'T YOU NOTICE THAT E-MAIL ADDRESS SOME PLACE ELSE IN ONE OF YOUR SCREEN PRINTS?

A YES.

Q DO TWO PEOPLE HAVE THE SAME E-MAIL? CAN TWO PEOPLE HAVE THE EXACT SAME E-MAIL ADDRESS?

A NO. TWO PEOPLE CAN SHARE AN E-MAIL ADDRESS, BUT. . . YOU WOULDN'T HAVE TWO PEOPLE HAVING THE EXACT SAME E-MAIL ADDRESS.

Q ALL RIGHT. CAN YOU IN READING -- YOU USED THE WORD U.R.L. IN DESCRIBING SOME OF THE WORDS THAT APPEAR ON 158. I ALREADY KNOW U.R.L. I THINK STANDS FOR UNIFORM RESOURCE LOCATOR. DOESN'T IT?

A YES.

Q WHAT'S THAT?

A THE UNIFORM RESOURCE LOCATOR IS THE SPECIFIC NUMBER THAT'S GIVEN TO A GIVEN WEB SITE SUCH THAT IT'S TRACKABLE ON THE INTERNET. IT'S LIKE THE HOME ADDRESS, IF YOU WILL, SIMILAR TO THE ADDRESS ON THE FRONT OF YOUR HOUSE, ONLY IT'S THE INTERNET ADDRESS FOR A GIVEN SITE.

Q AND IS THERE -- I DIDN'T MEAN TO INTERRUPT. I APOLOGIZE. WE SEE ON 158 ON THE -- IF YOU LOOK AT THE PIECE OF PAPER ON THE FAR LEFT ON THE PAPER IT SAYS U.R.L., THEN IT SAYS DATE AND TIME, AND THEN IT SAYS LOCATION. WE SEE A WHOLE BUNCH OF WORDS IN LOCATION, NOT JUST WORDS, BUT I GUESS SYMBOLS AND ABBREVIATIONS. DO ANY OF THEM HAVE ANY PARTICULAR MEANING?

A THE WORLDWIDE WEB DESIGNATOR IS HERE WITH, FOR INSTANCE, HERE AT THE VERY TOP ENTRY IS WORLDWIDE WEB DOT PIGGS-HAUSE DOT COM.

Q YOU SAID HERE. I'M SORRY. WHAT YOU JUST REFERRED TO, SIR, I BELIEVE IS PAGE 1 OF COURT EXHIBIT 158, LINE 1. IS THAT CORRECT?

A YES.

Q SO WE SEE DAVID WESTERFIELD AT H.T.T.P. COLON FRONT SLASH FRONT SLASH W. W. W. DOT P-I-G-G-S HYPHEN H-A-U-S-E DOT COM. FRONT SLASH BOARD FRONT SLASH QUESTION MARK TOPIC EQUALS TOPIC ONE.

A CORRECT.

Q WHAT DOES THAT MEAN?

A THAT THIS -- THIS IS -- WHAT IT'S REPRESENTING IS A VISIT TO APPARENTLY A VISIT TO THE PIGGS-HAUSE DOT COM. WEB SITE. AND THE SLASH BOARD SLASH IS LIKELY A DESIGNATOR FOR A BULLETIN BOARD THAT'S ON THAT PAGE FOR DISCUSSING WHATEVER IS THE POINT OF INTEREST FOR THE PAGE.

Q OKAY. PAGE 2 THERE'S AN ENTRY. IT SAYS U.R.L., IT SAYS 1750 AND 32 ALL THE WAY DOWN AT THE BOTTOM 1750. AND I'M SHOWING YOU -- MR. FELDMAN: AND

FOR THE RECORD, COUNSEL, IT'S THE THIRD ENTRY UP FROM THE BOTTOM, PAGE 2, COURT EXHIBIT 158. THAT SAYS DAVID WEST AT H.T.T.P. COLON FRONT SLASH FRONT SLASH, AND IT KEEPS GOING FOR ANOTHER LINE OR TWO. BY MR. FELDMAN:

Q CAN YOU DRAW ANY MEANING FROM ANY OF THIS?

A THE -- ALONG THAT FIRST LINE THAT YOU STARTED TO READ IT WAS DOT HOT MAIL DOT M.S.M. DOT COM. THEN FORWARD SLASH, SOME LETTERS, FORWARD SLASH, GET MESSAGE, CRUM BOX, WHICH IN MY EXPERIENCE I RECOGNIZE THAT USUALLY TO MEAN THE IN BOX FOR THE -- FOR A HOT MAIL ACCOUNT.

Q SO IT APPEARS, THEN, THAT SOMEONE, DAVID WEST AT H.T.T.P. COLON FRONT SLASH FRONT SLASH W. W. W. DOT HOT MAIL DOT M.S.M. DOT COM. APPEARS TO HAVE BEEN ACCESSING E-MAIL.

A YES.

Q YOU SAID CRUM BOX. IS IT C-R-U-M B-O-X?

A YES. I'M SORRY.

Q CAN YOU TELL WHAT WAS BEING ACCESSED?

A NO.

Q YOU CAN'T TELL WHETHER THE GUY CLICKED?

A NOT FROM THIS. BUT IN YOUR SCREEN PRINTS CAN YOU TELL IF SOMEBODY CLICKED?

A YES.

MR. FELDMAN: YOUR HONOR, WOULD YOU CONSIDER THIS AN APPROPRIATE TIME FOR RECESS?

THE COURT: SURE. JUDGING FROM ALL THE NODDING HEADS OVER THERE, I WOULD SAY THE WHOLE GROUP DOES. ALL RIGHT. PLEASE REMEMBER THE ADMONITION OF THE COURT NOT TO DISCUSS ANY OF THE EVIDENCE OR TESTIMONY AMONG YOURSELVES OR WITH OTHERS NOR FORM OR EXPRESS ANY OPINION ON THE MATTER UNTIL IT IS SUBMITTED TO YOU FOR DECISION. PLEASE BE OUTSIDE THE DOOR AT 3:15, A QUARTER PAST 3:00.

MR. FELDMAN: THANK YOU.

(RECESS, 3:00 O'CLOCK, P.M., TO 3:15 O'CLOCK, P.M.)

1 THE COURT: OKAY. WELCOME BACK, LADIES AND GENTLEMEN.

2 ALL RIGHT, MR. FELDMAN.

3 MR. FELDMAN: NO FURTHER QUESTIONS. THANK YOU.

4 THE COURT: ALL RIGHT.

5 ANYTHING FURTHER, MR. CLARKE?

6 MR. CLARKE: BRIEFLY, YOUR HONOR.

7

8 RECROSS-EXAMINATION +

9 BY MR. CLARKE:

10 Q. MR. LAWSON, THERE WERE BUSINESS TYPE FILES NOT ONLY

11 ON THE TWO COMPUTERS IN THE OFFICE BUT ALSO ON THE GATEWAY, 12
CORRECT?

13 MR. FELDMAN: VAGUE AS TO BUSINESS TYPE, YOUR HONOR.

14 THE COURT: OVERRULED.

15 YOU CAN ANSWER.

16 THE WITNESS: I BELIEVE I RECALL THAT, YES.

17 18 BY MR. CLARKE:

19 Q. BY BUSINESS FILE -- AND PERHAPS WE SHOULD DEFINE

20 THAT A LITTLE BIT. IS IT CORRECT TO SAY THAT ON THESE THREE

21 COMPUTERS THERE WERE FILES THAT APPEARED RELATED TO ENGINEERING

22 AND MATTERS OF A SIMILAR TYPE?

23 A. YES. THAT IS VERY CORRECT.

24 Q. WHEN ONE SAVES A FILE LIKE THAT DOES ONE HAVE TO

25 TYPE IN A NAME FOR THE FILE?

26 A. GENERALLY, YES.

27 Q. AND IF THEY'RE PRECEDED BY IEA, THE PERSON HAD TO

28 TYPE THAT IN, DIDN'T THAT PERSON? .

7188

1 A. ON A TEXT TYPE DOCUMENT, YES. 2 Q. HOW ABOUT -- AND I DON'T KNOW, I'VE
HEARD THE TERM

3 CAD, WHAT'S CAD?

4 A. COMPUTER AIDED DESIGN.

5 Q. ARE THERE OR IS THERE SOFTWARE THAT ONE CAN -- I'M

6 SORRY, ARE THERE CAD TYPE SOFTWARE?

7 A. THERE IS CAD TYPE SOFTWARE.

8 Q. AND WHEN ONE SAVES SUCH A FILE ONE HAS TO TYPE IN

9 SOMETHING, CORRECT?

10 A. I'M SORRY, I'VE NEVER -- I'VE NEVER EVEN OPENED ANY

11 CAD SOFTWARE. I DON'T KNOW.

12 Q. ALL RIGHT.

13 IS THERE SOFTWARE RELATED TO BUSINESS OTHER THAN

14 TEXT TYPE SOFTWARE THAT YOU EVEN FEEL COMFORTABLE TALKING ABOUT?

15 A. SURE. LIKE EXCEL SPREAD SHEETS AND THINGS LIKE

16 THAT, SURE.

17 Q. ALL RIGHT. 18 IF ONE SAVES A FILE AS AN EXCEL SPREAD SHEET ONE

19 HAS TO TYPE IN THE NAME OF THAT FILE TO SAVE IT, CORRECT?

20 A. CORRECT.

21 Q. IF IT'S A FILE THAT STARTS WITH IEA, THAT PERSON

22 HAD TO TYPE IN IEA, CORRECT?

23 A. CORRECT.

24 Q. THAT IEA PREFIX IS ALSO ATTACHED AS A -- WELL, AS A

25 PREFIX TO IMAGES OF CHILDREN UNDER 18 IN THE LOOSE MEDIA,

26 CORRECT?

27 A. CORRECT.

28 Q. YOU CANNOT TELL US HOW MANY BUSINESS FILES THERE .

7189

1 WERE ON THE TWO IN THE OFFICE AND THE GATEWAY BECAUSE YOU DIDN'T 2
MAKE ANY NOTE OF THAT, CORRECT?

3 A. CORRECT.

4 Q. THE EXHIBIT 142 -- I'M SORRY, IS IT IN FRONT OF

5 YOU?

6 A. YES.

7 Q. I BELIEVE MR. FELDMAN ASKED YOU ABOUT THAT IN

8 RELATIONSHIP TO FEBRUARY 4TH AND, I'M SORRY, CAN YOU TELL US

9 WHAT TIME?

10 A. 4:47.

11 Q. OR -- HATE TO DO IT BUT WOULD THAT BE

1647 HOURS?

12 A. YES.

13 Q. ALL RIGHT.

14 IS IT YOUR TESTIMONY THAT THAT WAS AN ACTUAL SITE

15 VISIT?

16 A. NO.

17 Q. ALL RIGHT. 18 IF I CAN TURN -- IF IT WASN'T A SITE VISIT WHAT WAS

19 IT?

20 A. THIS IS AN IMAGE FROM A SITE THAT WAS VISITED.

21 Q. OKAY. WELL, ALL RIGHT. FINE.

22 IS IT YOUR TESTIMONY THAT THAT EXHIBIT REFLECTS --

23 AND I REALIZE IT'S A SCREEN PRINT, IS THAT RIGHT?

24 A. THAT'S CORRECT.

25 Q. IS IT YOUR TESTIMONY THAT THAT EXHIBIT REFLECTS AN
26 ACTUAL SITE VISIT?

27 A. YES.

28 Q. ISN'T IT CORRECT THAT THERE WAS NO SITE VISIT AT .

7190

1 THAT DAY AND TIME? 2 A. ACCORDING TO MY ANALYSIS THERE WAS.

3 Q. THE C. D.S IN THE LOOSE MEDIA, AS WE'VE USED THAT
4 TERM, YOU COULD HAVE LOOKED AT THEM AT THE R. C. F. L., CORRECT?

5 MR. FELDMAN: THAT'S BEEN ASKED AND ANSWERED.

6 MR. DUSEK: NO FURTHER QUESTIONS.

7 THE COURT: ANYTHING FURTHER.

8 MR. FELDMAN: NO, YOUR HONOR.

9 THE COURT: IS THE EXPERT TO BE EXCUSED?

10 MR. CLARKE: NO OBJECTION.

11 MR. FELDMAN: NO OBJECTION.

12 THE COURT: ALL RIGHT, SIR. YOUR TIME WITH US IS DONE.

13 PLEASE REMEMBER YOU'RE UNDER AN ADMONITION NOT TO DISCUSS YOUR
14 TESTIMONY WITH ANY INDIVIDUALS UNTIL THE MATTER'S CONCLUDED, ALL
15 RIGHT?

16 THE WITNESS: I UNDERSTAND.

17 MR. DUSEK: JUST THE WITNESS WAS GOING TO COMPLY WITH THE
18 REQUEST THAT WE SPOKE ABOUT EARLIER.

19 THE COURT: AND IF YOU COME UPON ADDITIONAL INFORMATION,
20 MAKE SURE MR. FELDMAN'S CONTACTED?

21 THE WITNESS: YES, SIR.

